

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[811 NE2d 1, 778 NYS2d 739]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EDWARD
WILLIAMS, Appellant.

Decided March 25, 2004

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 15, 2003. The Appellate Division affirmed a judgment of the Supreme Court, New York County (William A. Wetzel, J., at hearing; Budd G. Goodman, J., at trial and sentence), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second and third degrees and criminal possession of a controlled substance in the fifth degree.

People v Williams, 304 AD2d 406, affirmed.

HEADNOTE

Crimes — Jurors — Selection of Jury

CPL 270.15 (3), which provides that “[t]he court may . . . , in its discretion, direct that all sworn jurors be removed from the jury box and that the jury box be occupied by such additional number of persons from the panel as the court shall direct,” gives a trial court discretion to remove sworn jurors and fill the box with any number of jurors that it chooses. In this case, out of 18 prospective jurors called for the initial round of jury selection, seven were chosen to serve. The court then ordered one prospective juror at a time put into the box for questioning and challenges. Jury selection continued in this manner until the jury was completed. While the trial court’s procedure was not unlawful, it may have needlessly prolonged jury selection, and should not be followed.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Laura I. Appleman* and *Robert S. Dean* of counsel), for appellant.

Robert M. Morgenthau, District Attorney, New York City (Meredith Boylan and Susan Axelrod of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed. Defendant was convicted of criminal possession of a weapon in the second and third degrees (Penal Law § 265.03 [2]; § 265.02 [4], respectively) and criminal possession of a controlled substance in the fifth degree (Penal Law § 220.06 [5]).

The court called 18 prospective jurors for the initial round of jury selection. Of those, seven were ultimately chosen to serve. Over the objection of both sides, the court then ordered one prospective juror at a time put into the box for questioning and challenges. Jury selection continued in this manner until the jury was completed. Defendant contends that this violated CPL 270.15 (3) and that at least five jurors should have been placed in the box.

CPL 270.15 (3) states in relevant part, “The court may thereupon direct that the persons excluded be replaced in the jury box by an equal number from the panel or, in its discretion, direct that all sworn jurors be removed from the jury box and that the jury box be occupied by such additional number of persons from the panel as the court shall direct.” This section gives the court discretion in the number of prospective jurors placed in the jury box following completion of the first round. Indeed, as this Court made clear in *People v Alston*, the trial court has discretion to “remove sworn jurors and fill the box with any number of jurors that it chooses.” (88 NY2d 519, 524 [1996].) While the trial court’s procedure was not unlawful, it may have needlessly prolonged jury selection, and should not be followed.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order affirmed in a memorandum.

[811 NE2d 2, 778 NYS2d 740]

In the Matter of CITINEIGHBORS COALITION OF HISTORIC CARNEGIE HILL, by JURATE KAZICKAS et al., as Cochairs, et al., Appellants, v NEW YORK CITY LANDMARKS PRESERVATION COMMISSION et al., Respondents.

Decided March 25, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 12, 2003. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Leland DeGrasse, J.), entered in a proceeding pursuant to CPLR article 78, which had denied a petition to annul a certificate of appropriateness regarding proposed plans for construction of a new building and dismissed the proceeding.

Matter of Citineighbors Coalition of Historic Carnegie Hill v New York City Landmarks Preserv. Commn., 306 AD2d 113, appeal dismissed.

HEADNOTE

Appeal — Academic and Moot Questions — Challenge to Certificate Approving Construction in Historic District — Substantial Completion of Construction

In a proceeding to review a certificate of appropriateness approving a proposal to construct a new building in a historic district, the appeal is dismissed as moot. Typically, the doctrine of mootness is invoked where a change in circumstances prevents a court from rendering a decision that would effectively determine an actual controversy. Where the change in circumstances involves a construction project, work progress must be considered. This construction project was substantially complete, and the property owner and developer had spent millions of dollars. Further, it cannot be said that the building's top several stories may readily be demolished without undue hardship. Petitioners were required, at a minimum, to seek an injunction to enjoin construction during this litigation's pendency. The exception to the mootness doctrine does not apply because there is a realistic likelihood that the issues presented here will recur with an adequately developed record and with a timely opportunity for review.

APPEARANCES OF COUNSEL

Nixon Peabody LLP, New York City (*Roger R. Crane, Jr.* and *Erika J. Duthiers* of counsel), for appellants.

Bryan Cave LLP, New York City (*Robert S. Davis, Judith M. Gallent* and *Inger K. Hultgren* of counsel), for Tamarkin Co. and another, respondents.

Michael A. Cardozo, Corporation Counsel, New York City (*Dona B. Morris, Francis F. Caputo, Mark A. Silberman* and

Dana H. Biberman of counsel), for New York City Landmarks Preservation Commission and another, respondents.

Kramer Levin Naftalis & Frankel, LLP, New York City (*Jeffrey L. Braun, Michael T. Sillerman* and *Richard G. Leland* of counsel), for Real Estate Board of New York, Inc., amicus curiae.

Christopher Rizzo and *Dorothy M. Miner*, New York City, for Preservation League of New York State and others, amici curiae.

Jack L. Lester, New York City, for Carnegie Hill Neighbors, Inc., amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The appeal should be dismissed, with costs, as moot.

On June 10, 2002, the New York City Landmarks Preservation Commission issued a certificate of appropriateness (COA) approving a proposal for 47 East 91st Street, LLC, the property owner, and Tamarkin Co., a real estate developer, to construct an eight-story building with a one-story penthouse atop an existing one-story building located on the northeast corner of Madison Avenue and East 91st Street, which is within the Carnegie Hill Historic District. The Commission issued the COA after a 2^{1/2}-year review as a consequence of which the property owner and developer twice scaled back their initial proposal. The total projected cost of the work approved by the COA was approximately \$36.7 million.

On July 2, 2002, petitioners commenced this CPLR article 78 proceeding to annul the COA. They did not apply for a temporary restraining order or preliminary injunction to halt the highly visible construction work by then underway at the site. Petitioners argued, as relevant on this appeal, that the Commission's issuance of a COA was a discretionary act requiring compliance with the environmental review procedures of the State Environmental Quality Review Act (SEQRA). On January 8, 2003, Supreme Court denied the petition and dismissed the proceeding, concluding that issuance of a COA is a ministerial act exempt from SEQRA. The Appellate Division subsequently affirmed (306 AD2d 113 [1st Dept 2003]), and we granted leave to appeal (100 NY2d 514 [2003]).

“Typically, the doctrine of mootness is invoked where a change in circumstances prevents a court from rendering a deci-

sion that would effectively determine an actual controversy” (*Matter of Dreikausen v Zoning Bd. of Appeals of City of Long Beach*, 98 NY2d 165, 172 [2002]). Where the change in circumstances involves a construction project, we must consider how far the work has progressed towards completion. Because a “race to completion cannot be determinative,” however, other factors bear on mootness in this context as well. (*Id.*) “Chief among them has been a challenger’s failure to seek preliminary injunctive relief or otherwise preserve the status quo to prevent construction from commencing or continuing during the pendency of the litigation” (*Dreikausen*, 98 NY2d at 173). Also significant are whether work was undertaken without authority or in bad faith, and whether substantially completed work is “readily undone, without undue hardship” (*id.*). Further, we may elect to retain jurisdiction despite mootness if recurring novel or substantial issues are sufficiently evanescent to evade review otherwise.

This construction project is substantially complete. By July 31, 2003, after more than a year of construction, the building’s steel and concrete structure, including its supporting columns and floors, had been erected; the brick facade was 100% complete; and 90% of the window frames had been installed. The property owner and developer had already spent roughly \$25.7 million. Further, we cannot say that the building’s top several stories may be readily demolished without undue hardship, a remedy that petitioners suggest remains available. As the property owner and developer point out, reducing the building’s height would inevitably alter the proportion, mass and details of a design that the Commission determined would fit in with the special architectural and historic character of the district.

Nor have the property owner and developer engaged in an unseemly race to completion intended to moot petitioners’ lawsuit. After obtaining the approvals necessary to commence construction—a time-consuming endeavor—the property owner and developer had every business incentive to complete the building as quickly as possible so as to profit from their investment and avoid paying interest on construction loans.

Importantly, petitioners did not try to enjoin construction during this litigation’s pendency, nonfeasance that they chalk up to “monetary constraints” and the unlikelihood of success. In short, petitioners simply assumed that Supreme Court would not grant them injunctive relief or, in the alternative, would

require an undertaking in an amount more than they could or wanted to give. Under *Dreikausen*, however, petitioners were required, at a minimum, to seek an injunction in the circumstances presented here. Having pursued a strategy that foisted all financial risks (other than their own legal fees and related expenses) onto the property owner and the developer, petitioners may not expect us to overlook the substantial completion of this construction project.

Finally, the exception to the mootness doctrine does not apply because “[t]here is a realistic likelihood that the issues presented here will recur with an adequately developed record and with a timely opportunity for review” (*Matter of Gold-Greenberger v Human Resources Admin. of City of N.Y.*, 77 NY2d 973, 974-975 [1991]). Specifically, those objecting to a COA on SEQRA grounds may safeguard their challenge against mootness by promptly requesting injunctive relief.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Appeal dismissed, with costs, in a memorandum.

PERRY FRANKEL, Respondent, v KARYN FRANKEL, Defendant.
SCHLISSEL, OSTROW, KARABATOS, POEPPLEIN & TAUB, PLLC,
Nonparty-Appellant.

Submitted March 22, 2004; decided March 25, 2004

Reported below, 309 AD2d 65.

Motion by American Academy of Matrimonial Lawyers, New York Chapter for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Twenty copies of the brief may be filed and three copies served within 15 days.

DUSAN M. JEVTIC et al., Appellants, v LIBERTY MUTUAL INSURANCE Co. et al., Respondents.

Submitted November 26, 2003; decided March 25, 2004

Reported below, 2 AD3d 1492.

Motion by Dusan Jevtic, insofar as it seeks leave to appeal on behalf of Ljubica Jevtic, dismissed upon the ground that Dusan

Jevtic is not authorized to represent Ljubica Jevtic; motion for leave to appeal otherwise denied.

In the Matter of SONYA LATIMORE (Admitted as SONYA WHITTEN LATIMORE), a Suspended Attorney, Appellant. DEPARTMENTAL DISCIPLINARY COMMITTEE FOR THE FIRST JUDICIAL DEPARTMENT, Respondent.

Submitted November 10, 2003; decided March 25, 2004

Reported below, 307 AD2d 214.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that denied appellant's reinstatement petition, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining part of the Appellate Division order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

LOCAL GOVERNMENT ASSISTANCE CORPORATION et al., Appellants-Respondents, v SALES TAX ASSET RECEIVABLE CORPORATION et al., Respondents-Appellants.

Submitted March 15, 2004; decided March 25, 2004

Reported below, 5 AD3d 829.

Motion for leave to appeal denied as unnecessary.

Judge R.S. SMITH taking no part.

In the Matter of EMMANUEL D. PATTERSON, Appellant, v JAMES L. BERBARY et al., Respondents.

Submitted January 26, 2004; decided March 25, 2004

Reported below, 1 AD3d 943.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FRANCISCO CARRANZA, Appellant.

Submitted March 1, 2004; decided March 25, 2004

Reported below, 306 AD2d 351.

Motion for assignment of counsel granted and Mark Diamond, Esq., Box 1895, Murray Hill Station, New York, NY 10016 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JAMES COMBEST, Appellant.

Submitted March 22, 2004; decided March 25, 2004

Reported below, 1 AD3d 525.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CHARLES DANIELS, Appellant.

Submitted March 8, 2004; decided March 25, 2004

Reported below, 308 AD2d 389.

Motion for assignment of counsel granted and Laura Johnson, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NICHOLSON MCCOY, Appellant.

Submitted February 23, 2004; decided March 25, 2004

Motion by Eliot Spitzer, Attorney General of the State of New York, for an order pursuant to Executive Law § 71 permitting movant to file a brief and participate in oral argument of the appeal, granted in each respect.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
NICHOLSON MCCOY, Appellant.

Submitted March 22, 2004; decided March 25, 2004

Motion by the Brennan Center for Justice at NYU School of Law et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANA
MARIE SANTI, Appellant.

Submitted March 15, 2004; decided March 25, 2004

Reported below, 308 AD2d 464.

Motion for assignment of counsel granted and Lynn W.L. Fahey, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

64TH ASSOCIATES, L.L.C., Appellant, v MANHATTAN EYE, EAR &
THROAT HOSPITAL et al., Respondents.

Submitted March 22, 2004; decided March 25, 2004

Reported below, 301 AD2d 462.

Motion by Eliot Spitzer, Attorney General of the State of New York, for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed.

[811 NE2d 5, 778 NYS2d 743]

In the Matter of HERTZ CORPORATION, Appellant. COMMISSIONER
OF LABOR, Respondent.

Decided March 30, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered February 13, 2003. The Appellate Division affirmed a decision of the New York State Unemployment Insurance Appeal Board which had affirmed a decision of an administrative law judge as-

sessing appellant Hertz Corporation \$23,403.25 in additional unemployment insurance contributions. The appeal brings up for review a prior nonfinal order of the Appellate Division, entered July 23, 1998 (see *Matter of Eisner [Hertz Corp.—Commissioner of Labor]*, 252 AD2d 847). The Appellate Division, with two Justices dissenting, had affirmed two decisions of the Unemployment Insurance Appeal Board ruling that Hertz was liable for additional unemployment insurance contributions.

Matter of Hertz Corp. (Commissioner of Labor), 302 AD2d 708, reversed.

HEADNOTE

Unemployment Insurance — Employee or Independent Contractor

Substantial evidence does not exist to support the Unemployment Insurance Appeal Board's determination that claimant was appellant corporation's employee for purposes of receiving unemployment insurance benefits. An employer-employee relationship exists when the evidence demonstrates that the employer exercises control over the results produced by a claimant or the means used to achieve the results. Such evidence was lacking where claimant visited travel agencies to promote the employer's products by distributing sales materials and making presentations, chose which agencies to visit and when to visit them, was compensated on a per-visit basis, was not required to attend meetings, had minimal supervision, was free to sell products that did not compete with the corporation and her contract with the employer identified her as an independent contractor. Incidental control over the results produced—without further evidence of control over the means employed to achieve the results—will not constitute substantial evidence of an employer-employee relationship.

APPEARANCES OF COUNSEL

Akin Gump Strauss Hauer & Feld, LLP, New York City (*Jonathan L. Sulds* and *Lori J. Pennay* of counsel), for appellant.

Eliot Spitzer, Attorney General, New York City (*Steven Segall, Caitlin J. Halligan, Peter H. Schiff, M. Patricia Smith* and *Steven Koton* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the matter remitted to that Court with directions to remand to respondent for further proceedings in accordance with this memorandum.

Claimant was engaged by STARS (Special Travel Agency Representative Service Network), a marketing organization operated by Hertz Corporation. She visited travel agencies to

promote Hertz's products by distributing sales materials and making presentations. Within her assigned territory, claimant chose which agencies she would visit and when she would visit them, was compensated on a per-visit basis, was not required to attend meetings, had minimal supervision and was free to sell products that did not compete with Hertz. Her contract with Hertz identified her as an independent contractor, and Hertz reported her pay on a 1099 form.

Substantial evidence does not exist to support the Unemployment Insurance Appeal Board's determination that claimant was a Hertz employee for purposes of receiving unemployment insurance benefits. An employer-employee relationship exists when the evidence demonstrates that the employer exercises control over the results produced by claimant or the means used to achieve the results (*Matter of 12 Cornelia St.*, 56 NY2d 895, 897 [1982]). Such evidence was lacking here. Incidental control over the results produced—without further evidence of control over the means employed to achieve the results—will not constitute substantial evidence of an employer-employee relationship (*Matter of Ted Is Back Corp.*, 64 NY2d 725, 726 [1984]).

That Hertz gave claimant instruction on what to wear, what products to promote and how to make a presentation does not support the conclusion that claimant was an employee. "The requirement that the work be done properly is a condition just as readily required of an independent contractor as of an employee and not conclusive as to either" (*Matter of Werner*, 210 AD2d 526, 528 [3d Dept 1994]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, READ and R.S. SMITH concur in memorandum; Judge GRAFFEO taking no part.

Order reversed, etc.

NEW YORK TELEPHONE COMPANY, Appellant, v NASSAU COUNTY et al., Respondents. (Action No. 1.)

In the Matter of NEW YORK WATER SERVICE CORPORATION, Appellant, v NASSAU COUNTY et al., Respondents. (Proceeding No. 1.)

In the Matter of LONG ISLAND WATER CORPORATION, Appellant, v NASSAU COUNTY et al., Respondents. (Proceeding No. 2.)

Submitted November 17, 2003; decided March 30, 2004

Reported below, 297 AD2d 663.

Motion to strike portions of respondents' brief denied.

PRIMAGENCY, INC., Respondent, v V-FORMATION, INC., Appellant.

Submitted February 17, 2004; decided March 30, 2004

Reported below, 3 AD3d 392.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's denial of the motion to vacate, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of LASHAWN WINTHROP, Appellant, v GLENN S. GOORD, as Commissioner of Correctional Services, Respondent.

Submitted February 23, 2004; decided March 30, 2004

Reported below, 1 AD3d 1065.

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying summary relief, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion, insofar as it seeks leave to appeal from the Appellate Division order of affirmance, dismissed as untimely (*see* CPLR 5513 [b]). Motion for poor person relief dismissed as academic.

APPEALS WITHDRAWN AND DISCONTINUED

(March 1, 2004 through March 31, 2004)

Mina, Matter of, v Weber	4th Dept: 309 AD2d 1251	3/17/04
Rosenblum, Matter of, v New York State Workers' Compensation Bd.	1st Dept: 309 AD2d 120	3/23/04

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(March 1, 2004 through March 31, 2004)

People v Aldegón	App Div, 2d Dept, 2/18/04 (Kings)	dismissed 3/19/04 (Grafteo, J.)
People v Alvarado	1st Dept: 3 AD3d 320 (NY)	denied 3/23/04 (Grafteo, J.)
People v Anonymous	1st Dept: 2 AD3d 1490 (Bronx [Bamberger, J.])	denied 3/30/04 (Read, J.) (Indictment No. 53/01)
People v Arnold	App Div, 2d Dept, 2/10/04 (Orange)	dismissed 3/12/04 (R.S. Smith, J.)
People v Austin	4th Dept: 4 AD3d 829 (Seneca)	denied 3/25/04 (G.B. Smith, J.)
People v Baby	2d Dept: 2 AD3d 536 (Suffolk)	denied 3/29/04 (Read, J.)
People v Baher	1st Dept: 308 AD2d 365 (NY)	denied 3/15/04 (Read, J.)
People v Banks	1st Dept: 2 AD3d 226 (NY)	denied 3/15/04 (Read, J.)
People v Benjamin (Irvin)	2d Dept: 2 AD3d 740 (Queens)	denied 3/25/04 (G.B. Smith, J.)
People v Benjamin (Ivan)	2d Dept: 2 AD3d 740 (Queens)	denied 3/25/04 (G.B. Smith, J.)
People v Benton	4th Dept: 4 AD3d 765 (Erie)	denied 3/23/04 (Grafteo, J.)
People v Boyce	3d Dept: 2 AD3d 1208 (Rensselaer)	denied 3/8/04 (Ciparick, J.)
People v Boyd	2d Dept: 3 AD3d 535 (Kings)	denied 3/23/04 (R.S. Smith, J.)
People v Boykin	2d Dept: 1 AD3d 524 (Orange)	denied 3/5/04 (Ciparick, J.)
People v Branch	2d Dept: 2 AD3d 872 (Suffolk)	denied 3/12/04 (R.S. Smith, J.)
People v Brickey	3d Dept: 3 AD3d 603 (Franklin)	denied 3/10/04 (Kaye, Ch.J.)

People v Brown (Adrian)	4th Dept: 2 AD3d 1491 (Monroe)	denied 3/9/04 (Rosenblatt, J.)
People v Brown (Isaiah)	1st Dept: 3 AD3d 835 (NY)	denied 3/18/04 (Ciparick, J.)
People v Brown (Timothy)	1st Dept: 302 AD2d 245 (NY)	denied 3/19/04 (Grafteo, J.)
People v Bryan	2d Dept: 2 AD3d 452 (Kings)	denied 3/29/04 (Read, J.)
People v Bryant (Lance)	2d Dept: 2 AD3d 741 (Suffolk)	denied 3/15/04 (Read, J.)
People v Bryant (Ozzie)	2d Dept: 2 AD3d 873 (Kings)	denied 3/18/04 (Ciparick, J.)
People v Buckmon	2d Dept: 309 AD2d 814 (Rockland)	denied 3/31/04 (G.B. Smith, J.) (upon reconsideration)
People v Calvo	2d Dept: 1 AD3d 605 (Nassau)	denied 3/15/04 (Read, J.)
People v Camargo	1st Dept: 3 AD3d 392 (NY)	denied 3/30/04 (R.S. Smith, J.)
People v Cannon	3d Dept: 2 AD3d 898 (Rensselaer)	denied 3/31/04 (Read, J.)
People v Caraway	2d Dept: 3 AD3d 536 (Kings)	denied 3/18/04 (G.B. Smith, J.)
People v Cardona	App Div, 1st Dept, 2/10/04 (NY)	dismissed 3/17/04 (Rosenblatt, J.)
People v Carter	4th Dept: 1 AD3d 1028 (Oneida)	denied 3/15/04 (Read, J.)
People v Carver	2d Dept: 3 AD3d 503 (Kings)	denied 3/12/04 (R.S. Smith, J.)
People v Chin	1st Dept: 3 AD3d 427 (NY)	denied 3/19/04 (Rosenblatt, J.)
People v Chi Yuan Hwang	1st Dept: 2 AD3d 245 (NY)	denied 3/9/04 (Rosenblatt, J.)
People v Cobb	App Div, 2d Dept, 3/1/04 (Westchester)	dismissed 3/18/04 (Kaye, Ch.J.)
People v Cogger	4th Dept: 2 AD3d 1279 (Orleans)	denied 3/29/04 (Grafteo, J.)
People v Coleman	4th Dept: 2 AD3d 1490 (Oneida)	denied 3/30/04 (R.S. Smith, J.)
People v Collins	1st Dept: 2 AD3d 369 (Bronx)	denied 3/23/04 (R.S. Smith, J.)
People v Concepcion	2d Dept: 2 AD3d 873 (Orange)	denied 3/8/04 (Ciparick, J.)
People v Cooper (Adolphus)	1st Dept: 4 AD3d 140 (NY)	denied 3/25/04 (G.B. Smith, J.)

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People v Cooper (Bronson)	4th Dept: 4 AD3d 899 (Erie)	denied 3/25/04 (G.B. Smith, J.)
People v Crompt	County Ct, 11/21/03 (Livingston)	denied 3/29/04 (Read, J.)
People v Crowder	2d Dept: 2 AD3d 454 (Kings)	denied 3/5/04 (Ciparick, J.)
People v Cruz	4th Dept: 2 AD3d 1490 (Monroe)	denied 3/18/04 (Grafteo, J.)
People v Dawson	1st Dept: 2 AD2d 324 (NY)	denied 3/9/04 (Ciparick, J.)
People v Diakite	1st Dept: 1 AD3d 283 (Bronx)	denied 3/15/04 (Read, J.)
People v Diaz (Ricardo)	1st Dept: 2 AD3d 300 (Bronx)	denied 3/30/04 (G.B. Smith, J.)
People v Diaz (William)	1st Dept: 2 AD3d 317 (NY)	denied 3/12/04 (R.S. Smith, J.)
People v Donaldson	3d Dept: 1 AD3d 800 (Chemung)	denied 3/1/04 (Ciparick, J.)
People v Doyle	1st Dept: 3 AD3d 126 (NY)	denied 3/29/04 (Read, J.)
People v Dye (Matthew)	4th Dept: 2 AD3d 1490 (Wayne)	denied 3/3/04 (Grafteo, J.) (Appeal No. 1)
People v Dye (Matthew)	4th Dept: 2 AD3d 1490 (Wayne)	denied 3/3/04 (Grafteo, J.) (Appeal No. 2)
People v Echeverri	2d Dept: 3 AD3d 576 (Queens)	denied 3/31/04 (Read, J.)
People v Emma	2d Dept: 2 AD3d 1492 (Suffolk)	denied 3/8/04 (Ciparick, J.)
People v Encarnacion	4th Dept: 2 AD3d 1491 (Onondaga)	denied 3/29/04 (Grafteo, J.)
People v Evans	3d Dept: 2 AD3d 888 (Albany)	denied 3/25/04 (G.B. Smith, J.)
People v Fiegoli	1st Dept: 2 AD3d 276 (NY)	denied 3/18/04 (Ciparick, J.)
People v Fluellen	1st Dept: 2 AD3d 286 (Bronx)	denied 3/31/04 (Read, J.)
People v Formey	1st Dept: 4 AD3d 134 (NY)	denied 3/31/04 (G.B. Smith, J.)
People v Fox	2d Dept: 3 AD3d 577 (Kings)	denied 3/25/04 (G.B. Smith, J.)
People v Fryer	2d Dept: 2 AD3d 874 (Suffolk)	denied 3/12/04 (R.S. Smith, J.)
People v Fuller	1st Dept: 2 AD3d 162 (NY)	denied 3/5/04 (Ciparick, J.)
People v Furlong	4th Dept: 4 AD3d 839 (Oswego)	denied 3/25/04 (G.B. Smith, J.)
People v Gambaccini	3d Dept: 2 AD3d 1065 (St. Lawrence)	denied 3/1/04 (Ciparick, J.)

People v Garcia (Alexander)	1st Dept: 2 AD3d 302 (NY)	denied 3/9/04 (Rosenblatt, J.)
People v Garcia (Fermin)	1st Dept: 3 AD3d 836 (Bronx)	denied 3/30/04 (Read, J.)
People v Garcia (Jesus)	4th Dept: 1 AD3d 935 (Genesee)	denied 3/5/04 (Ciparick, J.)
People v Garcia (Victor)	1st Dept: 2 AD3d 321 (NY)	denied 3/15/04 (Read, J.)
People v Garder	4th Dept: 4 AD3d 899 (Wayne)	denied 3/22/04 (Grafteo, J.)
People v Gaskin	1st Dept: 2 AD3d 347 (NY)	denied 3/30/04 (G.B. Smith, J.)
People v Gauze	2d Dept: 3 AD3d 538 (Suffolk)	denied 3/18/04 (G.B. Smith, J.)
People v Gayner H. (Kings)	App Term, 2d Dept: 2 Misc 3d 44 (Kings)	denied 3/18/04 (G.B. Smith, J.)
People v Glover	4th Dept: 4 AD3d 852 (Monroe)	denied 3/25/04 (G.B. Smith, J.)
People v Goldbaum	App Term, 2d Dept: 1 Misc 3d 132(A) (Queens)	denied 3/5/04 (Rosenblatt, J.)
People v Gonzalez (Domingo)	2d Dept: 3 AD3d 579 (Queens)	denied 3/30/04 (R.S. Smith, J.)
People v Gonzalez (Juan)	1st Dept: 3 AD3d 446 (NY)	denied 3/25/04 (G.B. Smith, J.)
People v Gordon	1st Dept: 2 AD3d 269 (NY)	denied 3/30/04 (R.S. Smith, J.)
People v Green	1st Dept: 2 AD3d 279 (NY)	denied 3/18/04 (Grafteo, J.)
People v Gress	4th Dept: 4 AD3d 830 (Erie)	denied 3/23/04 (Grafteo, J.)
People v Guzman	2d Dept: 2 AD3d 536 (Suffolk)	denied 3/29/04 (Read, J.)
People v Hall	1st Dept: 2 AD3d 227 (NY)	denied 3/18/04 (Ciparick, J.)
People v Harris	4th Dept: 1 AD3d 881 (Erie)	denied 3/15/04 (Read, J.)
People v Harrison (Edward)	4th Dept: 2 AD3d 1454 (Steuben)	denied 3/31/04 (Read, J.)
People v Harrison (John)	4th Dept: 4 AD3d 825 (Ontario)	denied 3/30/04 (G.B. Smith, J.)
People v Hasslinger	3d Dept: 4 AD3d 564 (Schenectady)	denied 3/1/04 (Grafteo, J.)
People v Henning	3d Dept: 2 AD3d 979 (Albany)	denied 3/15/04 (Read, J.)

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People v Hercules	App Div, 1st Dept, 12/2/03 (NY)	denied 3/1/04 (Ciparick, J.)
People v Hernandez (Curly)	1st Dept: 3 AD3d 325 (NY)	denied 3/19/04 (Grafteo, J.)
People v Hernandez (Felix)	1st Dept: 3 AD3d 348 (NY)	denied 3/29/04 (Read, J.)
People v Hill	4th Dept: 2 AD3d 1425 (Erie)	denied 3/16/04 (Rosenblatt, J.)
People v Hines	2d Dept: 3 AD3d 580 (Westchester)	denied 3/29/04 (Grafteo, J.)
People v Hodge	4th Dept: 2 AD3d 1428 (Monroe)	denied 3/29/04 (Grafteo, J.)
People v Hofler	1st Dept: 2 AD3d 176 (NY)	granted 3/9/04 (Rosenblatt, J.)
People v Hopson	4th Dept: 2 AD3d 1399 (Monroe)	denied 3/18/04 (Grafteo, J.)
People v Hoyt	1st Dept: 2 AD3d 227 (NY)	denied 3/1/04 (Ciparick, J.)
People v Hubrecht	1st Dept: 2 AD3d 289 (NY)	denied 3/29/04 (Read, J.)
People v Hylton	2d Dept: 2 AD3d 459 (Kings)	denied 3/16/04 (Ciparick, J.)
People v Iannone	4th Dept: 2 AD3d 1283 (Oneida)	denied 3/8/04 (Ciparick, J.)
People v Ingram	1st Dept: 2 AD3d 211 (NY)	denied 3/31/04 (Read, J.)
People v Inserra	App Term, 2d Dept: 2 Misc 3d 21 (Queens)	granted 3/9/04 (Rosenblatt, J.)
People v Irons	3d Dept: 3 AD3d 740 (Schenectady)	denied 3/23/04 (R.S. Smith, J.)
People v Jackson (Adrian)	1st Dept: 2 AD3d 305 (NY)	denied 3/19/04 (Rosenblatt, J.)
People v Jackson (Derrick)	2d Dept: 3 AD3d 581 (Suffolk)	denied 3/18/04 (G.B. Smith, J.)
People v Jacque	4th Dept: 2 AD3d 1362 (Monroe)	denied 3/9/04 (Ciparick, J.)
People v James (Anthony)	1st Dept: 2 AD3d 291 (NY)	denied 3/9/04 (Ciparick, J.)
People v James (Michael)	2d Dept: 2 AD3d 751 (Queens)	denied 3/5/04 (Ciparick, J.)
People v Jeffrey	App Div, 4th Dept, 12/31/03 (Wayne)	denied 3/30/04 (G.B. Smith, J.)
People v Jeffries	App Div, 4th Dept, 1/20/04 (Erie)	dismissed 3/9/04 (Rosenblatt, J.)

People v Jelinek	2d Dept: 1 AD3d 378 (Nassau)	denied 3/4/04 (Ciparick, J.)
People v Jennings	2d Dept: 2 AD3d 1492 (Suffolk)	denied 3/9/04 (Ciparick, J.)
People v Joiner	4th Dept: 2 AD3d 1490 (Erie)	denied 3/19/04 (Grafteo, J.)
People v Jones	4th Dept: 2 AD3d 1397 (Erie)	denied 3/18/04 (G.B. Smith, J.)
People v Jossiah	2d Dept: 2 AD3d 877 (Richmond)	denied 3/9/04 (Ciparick, J.)
People v King	1st Dept: 3 AD3d 324 (NY)	denied 3/23/04 (Grafteo, J.)
People v Kirkland	App Div, 2d Dept, 2/25/04 (Kings)	dismissed 3/19/04 (Grafteo, J.)
People v Knight	App Term, 1st Dept: 2003 NY Slip Op 51343(U) (NY)	denied 3/4/04 (Kaye, Ch.J.)
People v Koufomichalis	3d Dept: 2 AD3d 987 (Clinton)	denied 3/10/04 (Kaye, Ch.J.)
People v Kramer	3d Dept: 3 AD3d 664 (Rensselaer)	denied 3/23/04 (R.S. Smith, J.)
People v Lane	3d Dept: 1 AD3d 801 (Schenectady)	denied 3/15/04 (Read, J.)
People v Lawrence	2d Dept: 298 AD2d 405 (Suffolk)	denied 3/9/04 (Ciparick, J.)
People v Lawton	1st Dept: 3 AD3d 836 (NY)	denied 3/18/04 (Ciparick, J.)
People v Lebron	App Div, 1st Dept, 1/6/04 (NY)	dismissed 3/30/04 (Read, J.)
People v Lerario	3d Dept: 1 AD3d 635 (Sullivan)	denied 3/24/04 (Ciparick, J.)
People v Lima	2d Dept: 2 AD3d 754 (Kings)	denied 3/18/04 (Grafteo, J.)
People v Logan	4th Dept: 2 AD3d 1392 (Monroe)	denied 3/18/04 (Ciparick, J.)
People v Lopez	1st Dept: 2 AD3d 234 (NY)	denied 3/5/04 (Ciparick, J.)
People v Lowe	2d Dept: 309 AD2d 877 (Queens)	denied 3/15/04 (Kaye, Ch.J.)
People v Lynch (Brian) ¹	2d Dept: 309 AD2d 878 (Orange)	denied 2/11/04 (Rosenblatt, J.)
People v Lynch (Darryl)	4th Dept: 4 AD3d 809 (Erie)	denied 3/23/04 (Grafteo, J.)
People v Mainella	4th Dept: 2 AD3d 1330 (Wyoming)	denied 3/15/04 (Read, J.)
People v Major	1st Dept: 309 AD2d 649 (NY)	denied 3/15/04 (Read, J.)

1. Omitted from February 2004 list.

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People v Mandrall	2d Dept: 4 AD3d 901 (Kings)	denied 3/30/04 (Read, J.)
People v Marshall (Cyril)	3d Dept: 2 AD3d 1157 (Albany)	denied 3/15/04 (Read, J.)
People v Marshall (Marcus)	1st Dept: 3 AD3d 318 (Bronx)	denied 3/23/04 (Grafteo, J.)
People v Martinez	2d Dept: 3 AD3d 583 (Queens)	denied 3/31/04 (Grafteo, J.)
People v Mateo	4th Dept: 2 AD3d 1365 (Monroe)	denied 3/19/04 (Rosenblatt, J.)
People v Mayo	1st Dept: 4 AD3d 899 (NY)	denied 3/30/04 (G.B. Smith, J.)
People v Mazyck	2d Dept: 3 AD3d 583 (Kings)	denied 3/29/04 (Grafteo, J.)
People v McAloney	2d Dept: 2 AD3d 538 (Orange)	denied 3/8/04 (Ciparick, J.)
People v McCafferty	3d Dept: 1 AD3d 799 (Rensselaer)	denied 3/15/04 (Read, J.)
People v McCowen	2d Dept: 3 AD3d 540 (Kings)	denied 3/30/04 (R.S. Smith, J.)
People v McNerney	4th Dept: 1 AD3d 1044 (Erie)	denied 3/29/04 (Read, J.)
People v Mendez	1st Dept: 3 AD3d 458 (NY)	denied 3/18/04 (Ciparick, J.)
People v Mingo	1st Dept: 1 AD3d 298 (Bronx)	denied 3/31/04 (Read, J.)
People v Momplaisir	1st Dept: 2 AD3d 320 (NY)	denied 3/30/04 (R.S. Smith, J.)
People v Moon	3d Dept: 3 AD3d 600 (Columbia)	denied 3/29/04 (Grafteo, J.)
People v Moore	2d Dept: 1 AD3d 421 (Nassau)	denied 3/1/04 (Ciparick, J.)
People v Morales	1st Dept: 2 AD3d 300 (Bronx)	denied 3/30/04 (G.B. Smith, J.)
People v Moran	1st Dept: 3 AD3d 836 (NY)	denied 3/30/04 (Read, J.)
People v Muenala	2d Dept: 2 AD3d 1492 (Queens)	denied 3/30/04 (Read, J.)
People v Muhammad	2d Dept: 3 AD3d 585 (Suffolk)	denied 3/29/04 (Read, J.)
People v Novick	2d Dept: 3 AD3d 541 (Dutchess)	denied 3/31/04 (Grafteo, J.)
People v O'Brien	3d Dept: 2 AD3d 1222 (Ulster)	denied 3/19/04 (Rosenblatt, J.)
People v Pannell	2d Dept: 3 AD3d 541 (Queens)	denied 3/31/04 (Grafteo, J.)
People v Paris	2d Dept: 2 AD3d 881 (Westchester)	denied 3/26/04 (R.S. Smith, J.)

People v Parker (Bruce)	2d Dept: 3 AD3d 585 (Nassau)	denied 3/25/04 (G.B. Smith, J.)
People v Parker (James)	3d Dept: 307 AD2d 538 (Broome)	denied 3/29/04 (Read, J.) (upon reconsideration)
People v Parker (Tomeka)	4th Dept: 2 AD3d 1282 (Monroe)	denied 3/18/04 (Ciparick, J.)
People v Paul	App Div, 1st Dept, 1/29/04 (NY)	dismissed 3/31/04 (Read, J.)
People v Paulino	1st Dept: 3 AD3d 836 (NY)	denied 3/23/04 (Grafteo, J.)
People v Payne	1st Dept: 2 AD3d 159 (NY)	denied 3/31/04 (Read, J.)
People v Pelaez	1st Dept: 3 AD3d 349 (NY)	denied 3/18/04 (G.B. Smith, J.)
People v Pena (Eulogio)	1st Dept: 309 AD2d 687 (Bronx)	denied 3/15/04 (Read, J.)
People v Pena (Jose)	1st Dept: 2 AD3d 249 (NY)	denied 3/5/04 (Ciparick, J.)
People v Pepe	4th Dept: 2 AD3d 1491 (Oneida)	denied 3/18/04 (Grafteo, J.)
People v Perez (Carlos)	App Div, 2d Dept, 1/5/04 (Nassau)	dismissed 3/30/04 (Read, J.)
People v Perez (Cecilio)	1st Dept: 2 AD3d 1490 (Bronx)	denied 3/1/04 (Ciparick, J.)
People v Perez (Jerry)	2d Dept: 2 AD3d 882 (Queens)	denied 3/31/04 (G.B. Smith, J.)
People v Perine	2d Dept: 3 AD3d 586 (Kings)	denied 3/30/04 (R.S. Smith, J.)
People v Perne	2d Dept: 3 AD3d 586 (Kings)	denied 3/30/04 (R.S. Smith, J.)
People v Perry	3d Dept: 2 AD3d 1153 (Essex)	denied 3/16/04 (Rosenblatt, J.)
People v Plaisted	3d Dept: 2 AD3d 906 (St. Lawrence)	denied 3/19/04 (Grafteo, J.)
People v Polanco	App Div, 2d Dept, 1/14/04 (Kings)	dismissed 3/16/04 (Ciparick, J.)
People v Porter (Ryan)	4th Dept: 2 AD3d 1429 (Monroe)	denied 3/29/04 (Read, J.) (Appeal No. 1)
People v Porter (Ryan)	4th Dept: 2 AD3d 1431 (Monroe)	denied 3/29/04 (Read, J.) (Appeal No. 2)
People v Profitt	App Div, 2d Dept, 1/21/04 (Queens)	dismissed 3/12/04 (R.S. Smith, J.)
People v Pysadee	4th Dept: 1 AD3d 959 (Cattaraugus)	denied 3/8/04 (Ciparick, J.)

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People v Quinones	1st Dept: 3 AD3d 836 (NY)	denied 3/18/04 (G.B. Smith, J.)
People v Ramos (Jose)	2d Dept: 2 AD3d 883 (Kings)	denied 3/19/04 (Rosenblatt, J.)
People v Ramos (Samuel)	1st Dept: 2 AD3d 300 (Bronx)	denied 3/30/04 (G.B. Smith, J.)
People v Ramos (Victor)	2d Dept: 2 AD3d 760 (Kings)	denied 3/26/04 (R.S. Smith, J.)
People v Resto	1st Dept: 4 AD3d 899 (NY)	denied 3/25/04 (G.B. Smith, J.)
People v Rhymer	1st Dept: 3 AD3d 315 (NY)	denied 3/19/04 (Grafteo, J.)
People v Rhymes	4th Dept: 2 AD3d 1491 (Monroe)	dismissed 3/30/04 (Read, J.)
People v Richards	2d Dept: 2 AD3d 883 (Queens)	denied 3/19/04 (Grafteo, J.)
People v Rickenbacker	1st Dept: 3 AD3d 836 (NY)	denied 3/18/04 (Ciparick, J.)
People v Roach (Leon)	4th Dept: 2 AD3d 1389 (Monroe)	denied 3/19/04 (Grafteo, J.) (Appeal No. 1)
People v Roach (Leon)	4th Dept: 2 AD3d 1390 (Monroe)	denied 3/19/04 (Grafteo, J.) (Appeal No. 2) (upon reconsideration)
People v Robertson	2d Dept: 2 AD3d 756 (Orange)	denied 3/15/04 (Read, J.)
People v Robinson	4th Dept: 1 AD3d 1019 (Wayne)	denied 3/15/04 (Read, J.)
People v Rodriguez (Franklin)	1st Dept: 2 AD3d 296 (Bronx)	granted 3/19/04 (Grafteo, J.)
People v Rodriguez (Santiago)	1st Dept: 2 AD3d 284 (NY)	denied 3/8/04 (Ciparick, J.)
People v Rosario	2d Dept: 308 AD2d 496 (Queens)	denied 3/18/04 (G.B. Smith, J.)
People v Rose	4th Dept: 2 AD3d 1324 (Monroe)	denied 3/5/04 (Ciparick, J.)
People v Ross	2d Dept: 2 AD3d 465 (Queens)	denied 3/30/04 (G.B. Smith, J.)
People v Russell	4th Dept: 2 AD3d 1455 (Erie)	denied 3/29/04 (Read, J.)
People v Saladeen	App Div, 4th Dept, 1/20/04 (Erie)	dismissed 3/9/04 (Rosenblatt, J.)
People v Sanchez	App Div, 1st Dept, 12/24/02 (Bronx)	dismissed 3/25/04 (Ciparick, J.)

People v Santos	1st Dept: 3 AD3d 317 (Bronx)	denied 3/18/04 (G.B. Smith, J.)
People v Sass	2d Dept: 3 AD3d 836 (Suffolk)	denied 3/30/04 (Read, J.)
People v Sellers	2d Dept: 2 AD3d 654 (Westchester)	denied 3/9/04 (Ciparick, J.)
People v Shealy	2d Dept: 3 AD3d 510 (Westchester)	denied 3/18/04 (Grafteo, J.)
People v Sherron	2d Dept: 2 AD3d 885 (Queens)	denied 3/18/04 (Grafteo, J.)
People v Singleton	1st Dept: 3 AD3d 408 (NY)	denied 3/18/04 (G.B. Smith, J.)
People v Smith (Damion)	4th Dept: 2 AD3d 1431 (Erie)	denied 3/16/04 (Rosenblatt, J.) (Appeal No. 1)
People v Smith (Damion)	4th Dept: 2 AD3d 1434 (Erie)	denied 3/16/04 (Rosenblatt, J.) (Appeal No. 2)
People v Smith (Latrevette)	3d Dept: 2 AD3d 1057 (Albany)	denied 3/1/04 (Ciparick, J.)
People v Steele	4th Dept: 2 AD3d 1397 (Erie)	denied 3/18/04 (G.B. Smith, J.)
People v Stephens (Darryl)	1st Dept: 3 AD3d 57 (Bronx)	denied 3/31/04 (G.B. Smith, J.)
People v Stephens (David)	3d Dept: 2 AD3d 888 (Albany)	denied 3/25/04 (G.B. Smith, J.)
People v Subgidio (Kelvin)	App Div, 2d Dept, 2/18/04 (Rockland)	dismissed 3/25/04 (G.B. Smith, J.)
People v Subgidio (Kelvin)	2d Dept: 1 AD3d 388 (Rockland)	denied 3/31/04 (G.B. Smith, J.)
People v Swaby	1st Dept: 2 AD3d 104 (Bronx)	denied 3/29/04 (Read, J.)
People v Taylor (George)	3d Dept: 300 AD2d 746 (Saratoga)	denied 3/19/04 (Grafteo, J.)
People v Taylor (Robert)	2d Dept: 1 AD3d 619 (Suffolk)	denied 3/4/04 (Ciparick, J.)
People v Taylor (Todd)	4th Dept: 2 AD3d 1306 (Erie)	denied 3/9/04 (Ciparick, J.)
People v Terry	3d Dept: 2 AD3d 977 (Albany)	denied 3/16/04 (Rosenblatt, J.)
People v Thang Thanh Nguyen	4th Dept: 309 AD2d 1269 (Monroe)	denied 3/19/04 (Grafteo, J.)
People v Thomas	2d Dept: 2 AD3d 758 (Suffolk)	denied 3/9/04 (Rosenblatt, J.)

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People v Thompson (Dominic)	2d Dept: 3 AD3d 511 (Queens)	denied 3/18/04 (Ciparick, J.)
People v Thompson (Wayne)	App Term, 1st Dept: 1 Misc 3d 138(A) (NY)	denied 3/25/04 (G.B. Smith, J.)
People v Thorpe	2d Dept: 2 AD3d 467 (Queens)	denied 3/1/04 (Ciparick, J.)
People v Tighe	4th Dept: 2 AD3d 1364 (Yates)	denied 3/15/04 (Read, J.)
People v Torres	App Term, 1st Dept: 1 Misc 3d 126(A) (NY)	denied 3/8/04 (Ciparick, J.)
People v Tyler	2d Dept: 1 AD3d 541 (Kings)	denied 3/18/04 (Grafteo, J.) (upon reconsideration)
People v Umber	3d Dept: 2 AD3d 1051 (Schenectady)	denied 3/15/04 (Read, J.)
People v Vargas-Ortiz	2d Dept: 2 AD3d 886 (Richmond)	denied 3/9/04 (Rosenblatt, J.)
People v Vetere ²	App Div, 1st Dept, 10/14/03 (NY)	dismissed 12/2/03 (Ciparick, J.)
People v Victorial	1st Dept: 2 AD3d 105 (Bronx)	denied 3/15/04 (Read, J.)
People v Victory	1st Dept: 2 AD3d 324 (NY)	denied 3/9/04 (Ciparick, J.)
People v Waller	2d Dept: 4 AD3d 440 (Queens)	denied 3/25/04 (G.B. Smith, J.)
People v Walton	2d Dept: 309 AD2d 956 (Nassau)	denied 3/15/04 (Read, J.)
People v Warren	1st Dept: 2 AD3d 186 (Bronx)	denied 3/1/04 (Ciparick, J.)
People v Washington	3d Dept: 3 AD3d 741 (Schenectady)	denied 3/29/04 (Read, J.)
People v Wasyl	4th Dept: 2 AD3d 1491 (Erie)	denied 3/29/04 (Read, J.)
People v Watkins (Brian)	4th Dept: 2 AD3d 1391 (Erie)	denied 3/9/04 (Ciparick, J.) (Appeal No. 1)
People v Watkins (Brian)	4th Dept: 2 AD3d 1392 (Erie)	denied 3/9/04 (Ciparick, J.) (Appeal No. 2)
People v Wegman	4th Dept: 2 AD3d 1333 (Steuben)	denied 3/8/04 (Ciparick, J.)
People v Welch	4th Dept: 2 AD3d 1354 (Niagara)	denied 3/9/04 (Ciparick, J.)

2. Omitted from December 2003 list.

People v White (David)	2d Dept: 3 AD3d 543 (Suffolk)	denied 3/31/04 (Read, J.)
People v White (Lawrence)	1st Dept: 2 AD3d 262 (NY)	denied 3/29/04 (Read, J.)
People v Whitelow	4th Dept: 2 AD3d 1393 (Monroe)	denied 3/23/04 (Grafteo, J.)
People v Wigfall	1st Dept: 2 AD3d 164 (Bronx)	denied 3/15/04 (Read, J.)
People v Williams	2d Dept: 2 AD3d 760 (Kings)	denied 3/26/04 (R.S. Smith, J.)
People v Willis (Daryl)	2d Dept: 2 AD3d 657 (Orange)	dismissed 3/25/04 (G.B. Smith, J.)
People v Willis (Nathaniel)	4th Dept: 2 AD3d 1322 (Ontario)	denied 3/8/04 (Ciparick, J.) (Appeal No. 1)
People v Willis (Nathaniel)	4th Dept: 2 AD3d 1323 (Ontario)	denied 3/8/04 (Ciparick, J.) (Appeal No. 2)
People v Windsor	App Term, 2d Dept: 2 Misc 3d 130(A) (Kings)	denied 3/29/04 (Grafteo, J.)
People v Winfield	2d Dept: 3 AD3d 544 (Suffolk)	denied 3/18/04 (G.B. Smith, J.)
People v Wooden	4th Dept: 4 AD3d 775 (Monroe)	denied 3/31/04 (G.B. Smith, J.)
People v Word	App Div, 1st Dept, 9/25/03 (NY)	denied reconsideration 3/3/04 (Ciparick, J.)

[810 NE2d 907, 778 NYS2d 455]

In the Matter of STANLEY MOORE, Appellant, v BRION D. TRAVIS,
as Chair of the New York State Division of Parole, Respon-
dent.

Decided April 1, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered April 17, 2003. The order, insofar as appealed from, affirmed a judgment of the Supreme Court, Albany County (Anthony Kane, J.), entered in a proceeding pursuant to CPLR article 78, which had dismissed a petition to review a Division of Parole determination denying petitioner's request for expungement of information from his parole file.

Petitioner's parole was revoked upon a conviction for burglary. Supreme Court denied petitioner's request to expunge from his parole file certain misinformation concerning his role in the burglary, namely, that he entered the home of the victims and caused them injury. The Appellate Division affirmed, concluding that petitioner's claim that the Parole Board improperly refused to expunge the misinformation lacked merit, that although this information was considered by the Board at a 1996 appearance, the resulting determination denying the request for release was administratively annulled and a new hearing held, that the October 2000 Board considered the fact that petitioner was the driver of the getaway vehicle and not a principal actor, that in view of this the Board had, in effect, already corrected any misinformation, and that expungement was not necessary.

Matter of Moore v Travis, 304 AD2d 1001, affirmed.

HEADNOTE

Parole — Revocation — Expunging Misinformation in Parole File

The Division of Parole reasonably denied petitioner's belated request to expunge misinformation in his parole file which had been corrected in a prior Parole Board appearance and upon which the Division did not rely in denying petitioner parole.

APPEARANCES OF COUNSEL

Stanley Moore, appellant pro se.

Eliot Spitzer, Attorney General, Albany (*Frank Brady*, *Daniel Smirlock* and *Wayne L. Benjamin* of counsel), for respondent.

Harold V. Ferguson, Jr., Brooklyn, for New York State Defenders Association, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be affirmed without costs. Under the circumstances of this case, the Division of Parole's denial of petitioner's belated request to expunge misinformation which has already been corrected and upon which the Division does not rely was reasonable (*see Matter of Pell v Board of Educ.*, 34 NY2d 222, 231 [1974]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, READ and R.S. SMITH concur; Judge GRAFFEO taking no part.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order, insofar as appealed from, affirmed, without costs, in a memorandum.

[811 NE2d 7, 778 NYS2d 745]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v EUGENE
HICKS, Appellant.

Decided April 1, 2004

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered January 13, 2003. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Vincent F. Naro, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a controlled substance in the third degree with intent to sell.

People v Hicks, 301 AD2d 538, affirmed.

HEADNOTE

Crimes — Controlled Substances — Criminal Sale

In a prosecution for sale of heroin, the trial court did not abuse its discretion in allowing the arresting officer to testify that the packaging of 14 glassine envelopes of heroin recovered from defendant was inconsistent with personal use and consistent with the packaging that the officer had encountered in previous drug sale arrests. The arresting officer was properly qualified as a narcotics expert. The officer's testimony regarding quantity and packaging was helpful to the jury in understanding the evidence and reaching a verdict, where the defense was that defendant possessed the heroin for his personal use. Based on day-to-day experience, common observation and knowledge, the average juror might not be aware of the quantity and packaging of heroin carried by someone selling drugs, as opposed to someone who merely used them. Since the expert testimony was beyond the ken of the average juror, it matters not whether the testimony related to the ultimate issue in the case.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, New York City (*Jay L. Weiner* of counsel), for appellant.

Richard A. Brown, District Attorney, Kew Gardens (*James A. Dolan* and *John M. Castellano* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant was convicted after a jury trial of criminal possession of a controlled substance in the third degree for the possession of a narcotic drug with intent to sell (Penal Law § 220.16 [1]). Following a buy-and-bust operation, police arrested defendant and found 14 glassine envelopes of heroin on his person. We conclude that the trial court did not abuse its discretion in allowing the arresting officer to testify that the packaging of the drugs recovered from defendant was inconsistent with personal use and consistent with the packaging that the officer had encountered in previous drug sale arrests.

The arresting officer testified that he had been a police officer for 10 years, that he was serving his third year as an investigator for the narcotics division and that, as such, received continuing special training in “identifying narcotics, packaging, and characteristics for sale,” and was properly qualified as a narcotics expert (*see Matott v Ward*, 48 NY2d 455, 459 [1979]; *see also* Prince, Richardson on Evidence § 7-304 [Farrell 11th ed]).

The officer’s testimony as to the quantity and packaging of the narcotics found on defendant was helpful to the jury in understanding the evidence and reaching a verdict (*see People v Lee*, 96 NY2d 157, 162 [2001]). Here, the defense was that defendant possessed the 14 glassine envelopes of heroin for his personal use. Based on day-to-day experience, common observation and knowledge, the average juror may not be aware of the quantity and packaging of heroin carried by someone who sells drugs, as opposed to someone who merely uses them (*see People v Brown*, 97 NY2d 500, 505 [2002]). Since the expert testimony was beyond the ken of the average juror, it matters not whether the testimony related to the ultimate issue in the case (*see People v Cronin*, 60 NY2d 430, 432-433 [1983]).

Defendant’s remaining contention that the court failed to give an adequate expert witness instruction is without merit.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order affirmed in a memorandum.

In the Matter of ATM ONE, LLC, Appellant, v ANA LANDAVERDE,
Respondent.

Submitted March 13, 2004; decided April 1, 2004

Reported below, 307 AD2d 922.

Motion for permission to allow law student to orally argue the appeal herein denied.

In the Matter of RICHARD CRANE, Appellant, v STATE OF NEW YORK, EXECUTIVE DEPARTMENT, CRIME VICTIMS BOARD, Respondent.

Submitted March 8, 2004; decided April 1, 2004

Reported below, 303 AD2d 787.

Motion for clarification of this Court's January 12, 2004 order denied [*see* 1 NY3d 593].

AMY N. HOLTERMAN, Respondent, v ROBERT K. HOLTERMAN, Appellant.

Submitted March 29, 2004; decided April 1, 2004

Reported below, 307 AD2d 442.

Motion by American Academy of Matrimonial Lawyers, New York Chapter for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed.

MOHAMMED KAWOYA, Appellant, v PET PANTRY WAREHOUSE, INC., et al., Respondents, et al., Defendant.

Submitted March 22, 2004; decided April 1, 2004

Reported below, 3 AD3d 368.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the Court of Appeals does not have jurisdiction to entertain this appeal from the order of the Appellate Division where the appeal to the Appellate Division was from an order entered on an appeal from another court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5601 [a]).

In the Matter of the Claim of VLADIMIR KESELMAN, Appellant, v NEW YORK CITY TRANSIT AUTHORITY, Respondent. WORKERS' COMPENSATION BOARD, Respondent.

Submitted February 2, 2004; decided April 1, 2004

Reported below, 1 AD3d 652.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the denial of appellant's application for full Board review, dismissed upon the ground that such portion of the order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

LOCAL GOVERNMENT ASSISTANCE CORPORATION et al., Appellants-Respondents, v SALES TAX ASSET RECEIVABLE CORPORATION et al., Respondents-Appellants.

Submitted March 29, 2004; decided April 1, 2004

Reported below, 5 AD3d 829.

Motion by Bank of New York as Successor Trustee under the Local Government Assistance Corporation Bond Resolutions for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

Judge R.S. SMITH taking no part.

In the Matter of MALTA TOWN CENTRE I, LTD., Respondent, v TOWN OF MALTA BOARD OF ASSESSMENT REVIEW, Appellant.

Submitted February 9, 2004; decided April 1, 2004

Reported below, 2 AD3d 957.

Motion by the New York State Board of Real Property Services for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the proposed brief is accepted as filed.

MITSUHIRO HONZAWA et al., Respondents, v HIROKUNI HONZAWA et al., Appellants, et al., Defendants.

Submitted March 22, 2004; decided April 1, 2004

Reported below, 309 AD2d 629.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that denied appellants' motion to enlarge the record and affirmed Supreme Court's order denying appellants' motion to vacate the judgment, dismissed upon the ground that such portion of the order does not finally

determine the action within the meaning of the Constitution;
motion for leave to appeal otherwise denied.

In the Matter of STANLEY MOORE, Appellant, v BRION D. TRAVIS,
Respondent.

Submitted January 5, 2004; decided April 1, 2004

Reported below, 304 AD2d 1001.

Motion for assignment of counsel denied.

Judge GRAFFEO taking no part.

In the Matter of STANLEY MOORE, Appellant, v BRION D. TRAVIS,
Respondent.

Submitted March 22, 2004; decided April 1, 2004

Reported below, 304 AD2d 1001.

Motion to expand record on appeal granted.

Judge GRAFFEO taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
DASHAUN REED, Appellant.

Submitted March 1, 2004; decided April 1, 2004

Reported below, 2 AD3d 463.

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that no appeal lies as of right from the
order of the Appellate Division entered in this criminal action
(*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

[811 NE2d 33, 778 NYS2d 771]

In the Matter of MAISON SCAHILL, Respondent, v GREECE CEN-
TRAL SCHOOL DISTRICT, Appellant.

In the Matter of JOHN M. STARR, Respondent, v GREECE CENTRAL
SCHOOL DISTRICT, Appellant.

Decided April 6, 2004

SUMMARY

APPEAL, in the first above-entitled proceeding, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 21, 2003, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Monroe County). The Appellate Division, with two Justices dissenting, modified, on the law and in the exercise of discretion, and, as modified, confirmed a determination of the Board of Education of the Greece Central School District, which had found petitioner guilty of misconduct and terminated his employment. The modification consisted of partially granting the petition and reducing the penalty to suspension without pay and benefits for two years, retroactive to March 13, 2002.

APPEAL, in the second above-entitled proceeding, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered November 21, 2003, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, entered in Monroe County). The Appellate Division, with two Justices dissenting, modified, on the law and in the exercise of discretion, and, as modified, confirmed a determination of the Board of Education of the Greece Central School District, which had found petitioner guilty of misconduct and terminated his employment. The modification consisted of partially granting the petition and reducing the penalty to suspension without pay and benefits for two years, retroactive to March 13, 2002.

Matter of Scahill v Greece Cent. School Dist., 1 AD3d 909, reversed.

Matter of Starr v Greece Cent. School Dist., 1 AD3d 914, reversed.

HEADNOTE**Civil Service — Disciplinary Punishment**

Respondent School District did not abuse its discretion in terminating petitioners, two long-time employees, as the penalty does not shock judicial conscience. The terminations were based on petitioners' misconduct in selling at least 14,000 untaxed cigarettes on school property and using a school vehicle to store the cigarettes. This misconduct, which occurred over several months, involved the misappropriation of work time and a violation of the District's trust and policy.

APPEARANCES OF COUNSEL

Harris Beach LLP, Pittsford (*Edward A. Trevvett* of counsel), for appellant.

Chamberlain, D'Amanda, Oppenheimer & Greenfield, Rochester (Michael A. Sciortino of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

In each case, the judgment of the Appellate Division, insofar as appealed from, should be reversed, with costs, and the petition dismissed.

The District's terminations of petitioners, two long-time employees, were based on their misconduct in selling at least 14,000 untaxed cigarettes on school property and using a school vehicle to store the cigarettes. This misconduct, which occurred over several months, involved the misappropriation of work time and a violation of the District's trust and policy. Thus, the District did not abuse its discretion in terminating petitioners' employment as the penalty does not shock judicial conscience (see *Matter of Kelly v Safir*, 96 NY2d 32, 39-40 [2001]; see also *Matter of Pell v Board of Educ.*, 34 NY2d 222, 233 [1974]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur in memorandum.

In each case: On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), judgment, insofar as appealed from, reversed, etc.

[811 NE2d 34, 778 NYS2d 772]

In the Matter of DALE MALONE, Claimant, v BOB BERNHARDT PAVING et al., Appellants. WORKERS' COMPENSATION BOARD, Respondent.

Decided April 6, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered November 13, 2003. The Appellate Division, with two Justices dissenting, affirmed a decision of the Workers' Compensation Board, which had assessed a penalty against the carrier for late payment of a workers' compensation award.

Matter of Malone v Bernhardt Paving, 1 AD3d 781, affirmed.

HEADNOTE

Workers' Compensation — Penalty for Carrier's Late Payment of Award

The Appellate Division properly upheld the Workers' Compensation Board's imposition of a penalty under Workers' Compensation Law § 25 (3) (f) against

the carrier for failure to pay the award within 10 days, the failure resulting from the carrier's mailing a check to the wrong address. The penalty award is consistent with the purpose of the statute in favor of prompt payment of workers' compensation benefits to injured employees.

APPEARANCES OF COUNSEL

Levene Gouldin & Thompson, LLP, Binghamton (*Jason M. Carlton* of counsel), for appellants.

Eliot Spitzer, Attorney General, Albany (*Patrick J. Walsh* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs. The Appellate Division properly upheld the Workers' Compensation Board's imposition of a penalty under Workers' Compensation Law § 25 (3) (f) against the carrier for failure to pay the award within 10 days. The penalty award is consistent with the purpose of the statute "in favor of prompt payment of workers' compensation benefits to injured employees" (*Matter of Keser v New York State Elmira Psychiatric Ctr.*, 92 NY2d 100, 105 [1998]). The carrier's mistake in addressing the payment to the wrong street name and number is sufficiently distinguishable from the carrier's one-letter spelling mistake in the street name in *Krug's Glazing Servs.* (WCB No. 8951 2610, 1998 WL 707503, 1998 NYWCLR [LRP] LEXIS 286 [Sept. 16, 1998]) to warrant a different result (*see Matter of Charles A. Field Delivery Serv. [Roberts]*, 66 NY2d 516, 517-520 [1985]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed, with costs, in a memorandum.

CATHYANN CAPORALE, Appellant, v MICHAEL C. MESBAH et al.,
Respondents.

Submitted February 23, 2004; decided April 6, 2004

Reported below, 303 AD2d 350.

Motion for leave to appeal dismissed upon the ground that the judgment sought to be appealed from does not finally

determine the action within the meaning of the Constitution.
Motion for reargument denied [*see* 1 NY3d 590].

EDWARD HARRIS, Appellant, et al., Plaintiff, v CITY OF NEW YORK,
Respondent.

Submitted March 1, 2004; decided April 6, 2004

Reported below, 2 AD3d 782.

Motion for leave to appeal dismissed upon the ground that appellant, having stipulated to a reduction in damages at the Appellate Division, is not a party aggrieved (*see Whitfield v City of New York*, 90 NY2d 777, 780 n [leave dismissed]).

HELEN C. SIEGER, Appellant, v UNION OF ORTHODOX RABBIS OF
THE UNITED STATES AND CANADA, INC., et al., Respondents.

Submitted February 17, 2004; decided April 6, 2004

Reported below, 1 AD3d 180.

Motion to dismiss appeal, insofar as it relates to defendants Haim Kraus and Elimelech Zalman Lebowitz, granted and appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved; motion to dismiss appeal, insofar as it relates to all other defendants, granted and appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

Chief Judge KAYE taking no part.

APPEALS DISMISSED ON CONSTITUTIONAL GROUNDS

Decided March 25, 2004

Almonte, Matter of, v New York State Div. of Parole	3d Dept: 2 AD3d 1239
People ex rel. Almonte v New York State Div. of Parole	3d Dept: 2 AD3d 1239

Decided April 1, 2004

Durio, Matter of, v New York State Div. of Parole	3d Dept: 3 AD3d 816
Felton, Matter of, v Selsky	3d Dept: 2 AD3d 1033

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Knipple, Matter of, v Jackson

3d Dept: 2 AD3d 1238

Decided April 6, 2004

DeCostole Carting, Inc., Matter of, v Business
Integrity Commn. of City of N.Y.

1st Dept: 2 AD3d 225

Rochester, City of, v Teremy

4th Dept: 2 AD3d 1349

**MOTIONS FOR EXTENSION OF TIME TO APPLY
FOR PERMISSION TO APPEAL PURSUANT TO CPL 460.20**

Decided March 25, 2004

People v Pridgen

1st Dept: 3 AD3d 393

granted

Decided April 1, 2004

People v Gibson

1st Dept: 308 AD2d 375

granted

**MOTIONS FOR LEAVE TO APPEAL/APPEALS
DISMISSED ON FINALITY GROUNDS**

Decided March 25, 2004

Bennett v State of New York

App Div, 3d Dept,
Oct. 17, 2003

Board of Educ. of City of N.Y. v Hershkowitz

1st Dept: 308 AD2d 334

Cornelius G., Jr., Matter of (Cornelius G.)

1st Dept: 2 AD3d 283

Frederick v Fried

2d Dept: 308 AD2d 507

Lebron v State of New York

App Div, 3d Dept,
Jan. 9, 2004

Decided March 30, 2004

Canela v Audubon Gardens Realty Corp.

2d Dept: 304 AD2d 702

Robertson v Greenstein

1st Dept: 308 AD2d 381

Rondout Elec., Inc. v Monroe-Woodbury Cent. School
Dist.

2d Dept: 1 AD3d 423

Decided April 1, 2004

Cobb, Matter of, v Cobb

4th Dept: 4 AD3d 747

Ireland, Matter of

App Div, 3d Dept,
Nov. 20, 2003

Kurt J., Matter of (John K.)

3d Dept: 4 AD3d 568

Parsons v 218 E. Main St. Corp.

2d Dept: 1 AD3d 420

Tucker v 64 W. 108th St. Corp.

1st Dept: 2 AD3d 193

Decided April 6, 2004

Weinberger v Judlau Contr., Inc.

2d Dept: 2 AD3d 631

MOTIONS FOR REARGUMENT OR RECONSIDERATION

Decided March 25, 2004

Aspro Mech. Contr., Inc. v
Fleet Bank, N.A.

1 NY3d 324

denied

Melnitzky v Sotheby Parke
Bernet, Inc.

100 NY2d 510

denied

Decided April 1, 2004

Montasano v Napoli

100 NY2d 511

dismissed
as untimely**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(April 1, 2004 through April 30, 2004)

Miller, Matter of

2d Dept: 3 AD3d 76

4/9/04

Rodriguez, Matter of, v Hevesi

App Div, 1st Dept,
Sept. 4, 2003

4/29/04

APPEALS WITHDRAWN AND DISCONTINUED

(April 1, 2004 through April 30, 2004)

Molly, Inc., Matter of, v County
of Onondaga

4th Dept: 2 AD3d 1418

4/16/04

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(April 1, 2004 through April 30, 2004)

People v Agurto

1st Dept: 1 AD3d 1064 (Bronx)

denied 4/19/04
(Ciparick, J.)

People v Aldegón

App Div, 2d Dept, 2/18/04 (Kings)

denied
reconsideration
4/15/04
(Grafteo, J.)

People v Allen (Denzel)

1st Dept: 308 AD2d 401 (Bronx)

denied 4/23/04
(Rosenblatt, J.)
(upon
reconsideration)

People v Allen (Michael) App Div, 1st Dept, 1/22/04 (NY)

denied 4/20/04
(Rosenblatt, J.)

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People v Almarez	3d Dept: 2 AD3d 1151 (Greene)	denied 4/23/04 (Rosenblatt, J.)
People v Alvarez	1st Dept: 3 AD3d 456 (Bronx)	denied 4/1/04 (Grafteo, J.)
People v Amaya	2d Dept: 4 AD3d 900 (Nassau)	denied 4/9/04 (Grafteo, J.)
People v Barber	4th Dept: 2 AD3d 1290 (Erie)	denied 4/1/04 (Grafteo, J.)
People v Beals	1st Dept: 2 AD3d 329 (NY)	denied 4/19/04 (R.S. Smith, J.)
People v Benoit	3d Dept: 3 AD3d 604 (Chemung)	denied 4/19/04 (Ciparick, J.)
People v Blocker	App Div, 1st Dept, 2/20/04 (Bronx)	dismissed 4/13/04 (R.S. Smith, J.)
People v Boler	4th Dept: 4 AD3d 768 (Erie)	denied 4/23/04 (Rosenblatt, J.)
People v Bolling	4th Dept: 4 AD3d 899 (Wayne)	denied 4/23/04 (Rosenblatt, J.)
People v Bonadonna	4th Dept: 4 AD3d 899 (Livingston)	denied 4/19/04 (Ciparick, J.)
People v Bond	1st Dept: 2 AD3d 323 (NY)	denied 4/14/04 (R.S. Smith, J.)
People v Brown	App Div, 2d Dept, 2/4/04 (Queens)	dismissed 4/1/04 (Ciparick, J.)
People v Burdo	3d Dept: 1 AD3d 793 (Clinton)	denied 4/27/04 (Read, J.)
People v Camacho	4th Dept: 4 AD3d 862 (Wyoming)	denied 4/23/04 (Rosenblatt, J.)
People v Catu	1st Dept: 2 AD3d 306 (NY)	granted 4/8/04 (R.S. Smith, J.)
People v Chin	2d Dept: 3 AD3d 574 (Queens)	denied 4/2/04 (R.S. Smith, J.)
People v Constant	2d Dept: 3 AD3d 537 (Nassau)	denied 4/19/04 (Ciparick, J.)
People v Cooper	2d Dept: 309 AD2d 816 (Rockland)	denied 4/20/04 (Rosenblatt, J.)
People v Corker	2d Dept: 309 AD2d 816 (Rockland)	denied 4/20/04 (Rosenblatt, J.)
People v Cruz	1st Dept: 3 AD3d 449 (NY)	denied 4/14/04 (R.S. Smith, J.)
People v Davis	1st Dept: 3 AD3d 339 (Bronx)	denied 4/27/04 (Read, J.)
People v Demosthene	2d Dept: 2 AD3d 874 (Rockland)	denied 4/20/04 (Rosenblatt, J.)
People v Deyes	2d Dept: 3 AD3d 575 (Queens)	denied 4/2/04 (R.S. Smith, J.)
People v Douglas (Courtney)	3d Dept: 2 AD3d 1050 (Broome)	denied 4/2/04 (R.S. Smith, J.)

People v Douglas (Tracey)	1st Dept: 309 AD2d 597 (NY)	granted 4/13/04 (Read, J.)
People v Edwards	2d Dept: 3 AD3d 504 (Kings)	denied 4/19/04 (Ciparick, J.)
People v Evans	1st Dept: 3 AD3d 390 (NY)	denied 4/14/04 (Read, J.)
People v Faden	1st Dept: 1 AD3d 200 (Bronx)	denied 4/21/04 (Kaye, Ch.J.)
People v Felix	2d Dept: 2 AD3d 535 (Kings)	denied 4/8/04 (G.B. Smith, J.)
People v Flanagan	App Div, 2d Dept, 2/25/04 (Kings)	dismissed 4/9/04 (Ciparick, J.)
People v Forte	1st Dept: 4 AD3d 123 (Bronx)	denied 4/20/04 (Rosenblatt, J.)
People v Franza	App Div, 1st Dept, 2/26/04 (NY)	dismissed 4/23/04 (R.S. Smith, J.)
People v Garcia	1st Dept: 2 AD3d 264 (Bronx)	denied 4/20/04 (Rosenblatt, J.)
People v Gauthier	1st Dept: 4 AD3d 143 (NY)	denied 4/9/04 (Read, J.)
People v Geligas	1st Dept: 2 AD3d 368 (NY)	denied 4/19/04 (Ciparick, J.)
People v Gladden	2d Dept: 307 AD2d 367 (Kings)	denied 4/20/04 (Rosenblatt, J.)
People v Gonzalez	1st Dept: 4 AD3d 157 (NY)	denied 4/20/04 (Rosenblatt, J.)
People v Gootwier	1st Dept: 4 AD3d 143 (NY)	denied 4/9/04 (Read, J.)
People v Graham	4th Dept: 1 AD3d 1066 (Erie)	denied 4/27/04 (Read, J.)
People v Hanks	4th Dept: 4 AD3d 900 (Livingston)	denied 4/8/04 (G.B. Smith, J.)
People v Harripersaud	2d Dept: 4 AD3d 375 (Queens)	denied 4/19/04 (Ciparick, J.)
People v Harris	4th Dept: 4 AD3d 770 (Cayuga)	denied 4/14/04 (R.S. Smith, J.)
People v Hassett	4th Dept: 4 AD3d 899 (Livingston)	denied 4/19/04 (Ciparick, J.)
People v Heggs	2d Dept: 3 AD3d 539 (Kings)	denied 4/19/04 (R.S. Smith, J.)
People v Hendricks	4th Dept: 2 AD3d 1450 (Oneida)	denied 4/9/04 (Read, J.)
People v Hernandez	App Term, 1st Dept: 2 Misc 3d 129(A) (NY)	denied 4/23/04 (Rosenblatt, J.)
People v Holland	2d Dept: 4 AD3d 375 (Suffolk)	denied 4/2/04 (R.S. Smith, J.)
People v Irizzary	1st Dept: 2 AD3d 319 (Bronx)	denied 4/20/04 (Rosenblatt, J.)

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People v Jackson	App Div, 4th Dept, 3/15/04 (Erie)	dismissed 4/23/04 (R.S. Smith, J.)
People v Johnson (George)	2d Dept: 3 AD3d 581 (Queens)	denied 4/20/04 (Rosenblatt, J.)
People v Johnson (James)	2d Dept: 4 AD3d 483 (Kings)	denied 4/8/04 (G.B. Smith, J.)
People v Jones	4th Dept: 4 AD3d 853 (Monroe)	granted 4/23/04 (Rosenblatt, J.)
People v Jordan	4th Dept: 4 AD3d 796 (Ontario)	denied 4/9/04 (Read, J.)
People v Kairis	4th Dept: 4 AD3d 806 (Onondaga)	denied 4/23/04 (Rosenblatt, J.)
People v King	App Div, 2d Dept, 3/2/04 (Westchester)	dismissed 4/16/04 (Ciparick, J.)
People v Konsistorum	1st Dept: 3 AD3d 394 (NY)	denied 4/20/04 (Rosenblatt, J.)
People v Langworthy	4th Dept: 1 AD3d 1013 (Cayuga)	denied 4/19/04 (Ciparick, J.)
People v Lanza (Robert)	App Div, 3d Dept, 12/8/03 (Columbia)	denied reconsideration 4/16/04 (Ciparick, J.)
People v Lanza (Robert)	App Div, 3d Dept, 12/8/03 (Columbia)	denied reconsideration 4/16/04 (Ciparick, J.)
People v Lawton	4th Dept: 4 AD3d 899 (Steuben)	denied 4/19/04 (Ciparick, J.)
People v Le Grand	App Div, 2d Dept, 3/3/04 (Kings)	dismissed 4/8/04 (Kaye, Ch.J.)
People v Leon	1st Dept: 3 AD3d 403 (NY)	denied 4/19/04 (Ciparick, J.)
People v Lopez	App Div, 1st Dept, 2/3/04 (NY)	denied 4/9/04 (Grafteo, J.)
People v Louis	1st Dept: 2 AD3d 109 (NY)	denied 4/27/04 (Read, J.)
People v Lozano	2d Dept: 3 AD3d 836 (Queens)	denied 4/7/04 (Rosenblatt, J.)
People v Malone	3d Dept: 3 AD3d 795 (Tompkins)	denied 4/19/04 (Ciparick, J.)
People v Marquez	1st Dept: 2 AD3d 343 (NY)	granted 4/7/04 (R.S. Smith, J.)
People v Matin	App Term, 2d Dept, 2/27/04 (Nassau)	dismissed 4/14/04 (Grafteo, J.)
People v McCall	2d Dept: 2 AD3d 650 (Westchester)	denied 4/20/04 (Rosenblatt, J.)
People v McDaniel (Corey)	2d Dept: 4 AD3d 485 (Dutchess)	denied 4/20/04 (Rosenblatt, J.)

People v McDaniel (Peter)	2d Dept: 4 AD3d 485 (Dutchess)	denied 4/20/04 (Rosenblatt, J.)
People v McKenzie	1st Dept: 2 AD3d 348 (Bronx)	denied 4/20/04 (Rosenblatt, J.)
People v Miller	App Div, 2d Dept, 10/7/02 (Queens)	denied 4/9/04 (Read, J.)
People v Morrow	2d Dept: 3 AD3d 584 (Case No. 47) (Suffolk)	denied 4/14/04 (R.S. Smith, J.)
People v Muhammad	App Div, 1st Dept, 2/20/04 (Bronx)	dismissed 4/13/04 (R.S. Smith, J.)
People v Nance	4th Dept: 2 AD3d 1473 (Erie)	denied 4/1/04 (Grafteo, J.)
People v Nayyar	1st Dept: 3 AD3d 387 (Bronx)	denied 4/20/04 (Rosenblatt, J.)
People v Nitty	3d Dept: 3 AD3d 604 (Chemung)	denied 4/19/04 (Ciparick, J.)
People v Nunez	1st Dept: 4 AD3d 899 (Bronx)	denied 4/14/04 (R.S. Smith, J.)
People v Obert	3d Dept: 1 AD3d 631 (Clinton)	denied 4/23/04 (Rosenblatt, J.)
People v O'Donnell	3d Dept: 3 AD3d 599 (Rensselaer)	denied 4/16/04 (Grafteo, J.)
People v Olivo	1st Dept: 4 AD3d 127 (Bronx)	denied 4/20/04 (Rosenblatt, J.)
People v Parris	1st Dept: 1 AD3d 134 (NY)	granted 4/1/04 (Read, J.)
People v Partee	App Div, 1st Dept, 12/30/03 (NY)	denied 4/9/04 (Read, J.)
People v Peralta (Calixto)	1st Dept: 3 AD3d 353 (Bronx)	denied 4/19/04 (Ciparick, J.)
People v Peralta (Johnny)	App Div, 1st Dept, 2/10/04 (Bronx)	dismissed 4/14/04 (Grafteo, J.)
People v Perez	2d Dept: 3 AD3d 836 (Kings)	denied 4/20/04 (Rosenblatt, J.)
People v Porter	2d Dept: 3 AD3d 543 (Kings)	denied 4/20/04 (Rosenblatt, J.)
People v Quinones	1st Dept: 2 AD3d 1490 (NY)	denied 4/9/04 (Read, J.)
People v Raqiyb	App Div, 4th Dept, 3/15/04 (Erie)	dismissed 4/23/04 (R.S. Smith, J.)
People v Rhodes	1st Dept: 3 AD3d 319 (NY)	denied 4/1/04 (Read, J.)
People v Rios	4th Dept: 4 AD3d 841 (Niagara)	denied 4/9/04 (Grafteo, J.)
People v Rivera (John)	2d Dept: 2 AD3d 884 (Kings)	denied 4/14/04 (R.S. Smith, J.)
People v Rivera (Ricardo)	2d Dept: 4 AD3d 901 (Queens)	denied 4/20/04 (Rosenblatt, J.)

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People v Rivera (William)	2d Dept: 2 AD3d 543 (Kings)	granted 4/7/04 (Grafteo, J.)
People v Roberts	1st Dept: 3 AD3d 404 (NY)	denied 4/20/04 (Rosenblatt, J.)
People v Robinson	1st Dept: 3 AD3d 404 (NY)	denied 4/20/04 (Rosenblatt, J.)
People v Rolling	1st Dept: 3 AD3d 436 (NY)	denied 4/2/04 (R.S. Smith, J.)
People v Roque	1st Dept: 3 AD3d 316 (NY)	denied 4/19/04 (Ciparick, J.)
People v Ross	4th Dept: 2 AD3d 1490 (Monroe)	denied 4/23/04 (Rosenblatt, J.)
People v Rourke	2d Dept: 4 AD3d 377 (Kings)	denied 4/20/04 (Rosenblatt, J.)
People v St. Paul	3d Dept: 3 AD3d 604 (Chemung)	denied 4/19/04 (Ciparick, J.)
People v Santiago	1st Dept: 2 AD3d 263 (Bronx)	denied 4/1/04 (Grafteo, J.)
People v Scott	2d Dept: 2 AD3d 653 (Westchester)	denied 4/9/04 (Read, J.)
People v Severe	2d Dept: 3 AD3d 836 (Suffolk)	denied 4/20/04 (Rosenblatt, J.)
People v Skoda	2d Dept: 4 AD3d 378 (Kings)	denied 4/19/04 (R.S. Smith, J.)
People v Smith	2d Dept: 4 AD3d 378 (Queens)	denied 4/19/04 (Ciparick, J.)
People v Sullivan	1st Dept: 4 AD3d 223 (NY)	denied 4/20/04 (Rosenblatt, J.)
People v Swift	4th Dept: 4 AD3d 900 (Cayuga)	dismissed 4/13/04 (R.S. Smith, J.)
People v Torres (Dwan-Amer)	1st Dept: 3 AD3d 433 (NY)	denied 4/9/04 (Read, J.)
People v Torres (Elisha)	2d Dept: 309 AD2d 823 (Queens)	denied 4/23/04 (Rosenblatt, J.) (upon reconsideration)
People v Torres (Hector)	3d Dept: 4 AD3d 624 (Schenectady)	denied 4/23/04 (Rosenblatt, J.)
People v Torres (Ivan)	1st Dept: 2 AD3d 367 (NY)	denied 4/1/04 (Grafteo, J.)
People v Torres (Jesenia)	1st Dept: 3 AD3d 836 (Bronx)	denied 4/19/04 (Ciparick, J.)
People v Urrutia	4th Dept: 2 AD3d 1475 (Monroe)	denied 4/23/04 (Rosenblatt, J.)
People v Vachet	2d Dept: 4 AD3d 492 (Kings)	denied 4/20/04 (Rosenblatt, J.)
People v VanPelt	2d Dept: 3 AD3d 836 (Suffolk)	denied 4/20/04 (Rosenblatt, J.)
People v Vasquez	1st Dept: 3 AD3d 343 (NY)	denied 4/20/04 (Rosenblatt, J.)

People v Vaughn	2d Dept: 2 AD3d 656 (Kings)	denied 4/9/04 (Read, J.)
People v Vega	1st Dept: 3 AD3d 239 (Bronx)	denied 4/19/04 (Ciparick, J.)
People v Watts	1st Dept: 3 AD3d 425 (NY)	denied 4/20/04 (Rosenblatt, J.)
People v Waver	1st Dept: 3 AD3d 360 (NY)	granted 4/8/04 (R.S. Smith, J.)
People v Weaver	1st Dept: 3 AD3d 360 (NY)	granted 4/8/04 (R.S. Smith, J.)
People v Whittlesey	App Term, 2d Dept, 1/13/04 (Westchester)	denied 4/27/04 (Read, J.)
People v Williams (David)	App Div, 2d Dept, 2/18/04 (Westchester)	dismissed 4/23/04 (Rosenblatt, J.)
People v Williams (David)	App Div, 2d Dept, 3/1/04 (Westchester)	dismissed 4/23/04 (Rosenblatt, J.)
People v Williams (DeAndre)	App Div, 2d Dept, 2/18/04 (Westchester)	dismissed 4/23/04 (Rosenblatt, J.)
People v Williams (DeAndre)	App Div, 2d Dept, 03/01/04 (Westchester)	dismissed 4/23/04 (Rosenblatt, J.)
People v Willis (Daniel)	2d Dept: 5 AD3d 407 (Suffolk)	denied 4/20/04 (Rosenblatt, J.)
People v Willis (Kevin)	3d Dept: 3 AD3d 793 (Ulster)	denied 4/9/04 (Read, J.)

[813 NE2d 585, 780 NYS2d 505]

In the Matter of HEADRIVER, LLC, Respondent, v TOWN BOARD
OF THE TOWN OF RIVERHEAD, Appellant.

Argued March 31, 2004; decided May 4, 2004

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered July 21, 2003. The Appellate Division affirmed an order of the Supreme Court, Suffolk County (Elizabeth H. Emerson, J.), entered in a proceeding pursuant to CPLR article 78, which had denied respondent Town Board's motion to dismiss the petition. The following question was certified by the Appellate Division: "Was the order of this court, dated July 21, 2003, properly made?"

Matter of Headriver, LLC v Town Bd. of Town of Riverhead, 307 AD2d 314, affirmed.

HEADNOTE

Parties — Proper Parties

The Town Board, not the Planning Commission, was the proper party in a proceeding to review a determination denying petitioner's application for a special use permit. Petitioner was required to apply to the Town Board to obtain this permit (Riverhead Town Code § 108-3E). Pursuant to General Municipal Law § 239-m (2), the Board referred the matter to the Planning Commission, which recommended a denial. The Town Board failed to obtain the necessary super-majority vote to override the recommendation (General Municipal Law § 239-m [5]), and denied the permit. As a result, the Town was compelled to disapprove the project, and its action, not that of the Planning Commission, was the final agency action reviewable in a CPLR article 78 proceeding (General Municipal Law § 239-m [1] [b]).

APPEARANCES OF COUNSEL

Smith, Finkelstein, Lundberg, Isler & Yakaboski, LLP, Riverhead (*Frank Isler* and *Phil Siegel* of counsel), for appellant.

Bracken, Margolin & Gouvis, LLP, Islandia (*Linda U. Margolin* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

Headriver, LLC, is a contract vendee for a parcel of real property located in Riverhead, New York, on which it intends to build and operate a Lowes Home Center. Headriver was required to apply to the Town Board to obtain a special use permit because the property was considered a lumber yard. As required, because the property fronted on a country road, the Board referred the application to the Suffolk County Planning Commission for its recommendation. After reviewing the application, the Commission recommended that the special use permit be denied. In order to override the Commission's recommendation, General Municipal Law § 239-m requires that a super-majority vote be obtained by the Board.

After a public hearing, the Board voted 3-2 to grant the special use permit. Since the statutory super-majority requirement was not satisfied, however, the permit was denied. Headriver brought a CPLR article 78 proceeding claiming that the Board's determination was arbitrary and capricious because the record established that Headriver met every criterion of the Town Code. The Town Board moved to dismiss the petition for failure

to include the Commission as a necessary party and for failure to state facts sufficient to grant the relief requested. Supreme Court denied the motion. A divided Appellate Division affirmed, concluding that because the Commission's decision could be overridden by a super-majority vote, the Commission was not a necessary party. The Appellate Division did not reach the merits of the Board's argument that its actions could not be considered arbitrary and capricious since General Municipal Law § 239-m mandated the denial notwithstanding that a majority of the Board had voted to approve the application. The Appellate Division granted leave to appeal and certified to us the question, "Was the order of this court dated July 21, 2003, properly made?" We answer in the affirmative.

Riverhead Town Code § 108-3E requires that an application for a special use permit be made to the Town Board and that the Board refer the application "to the (Riverhead) Planning Board, which will transmit its recommendations to the Town Board within sixty (60) days of referral." General Municipal Law § 239-m (2) required the Town Board to refer the proposed action to the Suffolk County Planning Commission and General Municipal Law § 239-m (4) provides that the Commission "shall recommend approval, modification, or disapproval, of the proposed action." General Municipal Law § 239-m (5) provides:

"If such county planning agency or regional planning council recommends modification or disapproval of a proposed action, the referring body [the local zoning board] shall not act contrary to such recommendation except by a vote of a majority plus one of all members thereof."

In the case at hand, a super-majority of the Town Board could have voted to override the Planning Commission's determination and approve the proposed action, but did not do so. As a result, the Town was compelled to disapprove the project, and its action is the final agency action reviewable in an article 78 proceeding (General Municipal Law § 239-m [1] [b]). As the Appellate Division held, the determination of the Planning Commission was merely advisory. The Town Board is thus the proper party in the proceeding. The Town Board's remaining contentions are without merit.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur in memorandum.

Order affirmed, etc.

[812 NE2d 1246, 780 NYS2d 298]

In the Matter of INLET HOMES CORP., Appellant, v ZONING BOARD
OF APPEALS OF TOWN OF HEMPSTEAD, Respondent.

Decided May 4, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 21, 2003. The Appellate Division affirmed a judgment of the Supreme Court, Nassau County (Kenneth A. Davis, J.), entered in a proceeding pursuant to CPLR article 78, which had denied a petition to review a determination of the Zoning Board of Appeals of the Town of Hempstead denying petitioner's application for an area variance and dismissed the proceeding.

Matter of Inlet Homes Corp. v Zoning Bd. of Appeals of Town of Hempstead, 304 AD2d 758, affirmed.

HEADNOTE**Municipal Corporations — Zoning — Variance**

Respondent Zoning Board of Appeals' denial of petitioner's application for an area variance to build a single-family dwelling upon an illegally nonconforming substandard parcel had a rational basis and was supported by substantial evidence. The record supports the Board's finding that the character of the neighborhood was overwhelmingly conforming to the zoning requirements and that a grant of the area variance would have an adverse effect on the surrounding community.

APPEARANCES OF COUNSEL

Forchelli, Curto, Schwartz, Mineo, Carlino & Cohn, LLP, Mineola (*Joseph F. Buzzell* and *James A. Boglioli* of counsel), for appellant.

Joseph J. Ra, Town Attorney, Hempstead (*Charles S. Kovit* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed with costs.

Giving due deference to the broad discretion of zoning boards considering applications for area variances (*see Ifrah v Utschig*, 98 NY2d 304, 308 [2002]), the denial by respondent Zoning Board of Appeals of petitioner's application for an area variance to build a single-family dwelling upon an illegally nonconform-

ing substandard parcel had a rational basis and was supported by substantial evidence. The record supports the Board's finding that the character of the neighborhood is overwhelmingly conforming to the zoning requirements and that a grant of the area variance would have an adverse effect on the surrounding community. As the court below further recognized, the alleged difficulty here was self-created in that when purchasing the property, petitioner was aware that the Board had previously denied to the contract vendor an area variance for the same lot and under the same circumstances.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed, with costs, in a memorandum.

BLUE CROSS AND BLUE SHIELD OF NEW JERSEY, INC., et al.,
Plaintiffs-Respondents, v PHILIP MORRIS USA INCORPORATED et al., Defendants-Appellants, et al., Defendants.

Submitted April 12, 2004; decided May 4, 2004

Motion by Eliot Spitzer, Attorney General of the State of New York, for leave to file a brief amicus curiae on consideration of certified question herein granted and the proposed brief is accepted as filed.

CARVEL CORPORATION, Appellant, v ELIZABETH A. NOONAN et al.,
Respondents, et al., Defendants, et al., Special Masters.

Submitted April 12, 2004; decided May 4, 2004

Motion by Caesars Entertainment, Inc. for leave to appear amicus curiae on consideration of certified question herein granted to the extent that the proposed brief is accepted as filed.

Chief Judge KAYE taking no part.

LOCAL GOVERNMENT ASSISTANCE CORPORATION et al., Appellants-
Respondents, v SALES TAX ASSET RECEIVABLE CORPORATION
et al., Respondents-Appellants.

Submitted April 12, 2004; decided May 4, 2004

Reported below, 5 AD3d 829.

Motion by New York State Conference of Mayors and Municipal Officials for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

Judge R.S. SMITH taking no part.

LOCAL GOVERNMENT ASSISTANCE CORPORATION et al., Appellants-
Respondents, v SALES TAX ASSET RECEIVABLE CORPORATION
et al., Respondents-Appellants.

Submitted April 12, 2004; decided May 4, 2004

Reported below, 5 AD3d 829.

Motion by Speaker of the Assembly, Sheldon Silver, for leave to file a brief amicus curiae on the appeal herein denied.

Judge R.S. SMITH taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DON-
NELL HOFER, Appellant.

Submitted April 12, 2004; decided May 4, 2004

Reported below, 2 AD3d 176.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 45 West 45th Street, 7th Floor, New York, NY 10036 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PETER
PARRIS, Appellant.

Submitted April 26, 2004; decided May 4, 2004

Reported below, 1 AD3d 134.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 45 West 45th

Street, 7th Floor, New York, NY 10036 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM RIVERA, Appellant.

Submitted April 26, 2004; decided May 4, 2004

Reported below, 2 AD3d 543.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FRANKLIN RODRIGUEZ, Appellant.

Submitted April 12, 2004; decided May 4, 2004

Reported below, 2 AD3d 296.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CLAYTON STULTZ, Appellant.

Submitted April 12, 2004; decided May 4, 2004

Reported below, 304 AD2d 593.

Motion by New York State Association of Criminal Defense Lawyers et al. for leave to appear amici curiae on the appeal herein denied as untimely.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN WAVER, Also Known as JOHN WEAVER, Appellant.

Submitted April 26, 2004; decided May 4, 2004

Reported below, 3 AD3d 360.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

SARAH WOLINSKY et al., Appellants, et al., Plaintiff, v KEE YIP REALTY CORP., Respondent.

Submitted April 19, 2004; decided May 4, 2004

Reported below, 302 AD2d 327.

Motion by Lower Manhattan Loft Tenants for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed.

[812 NE2d 1250, 780 NYS2d 301]

CHRISTOPHER COLAROSSO, Appellant, v UNIVERSITY OF ROCHESTER, Respondent.

Decided May 6, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 31, 2003. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Monroe County (Eugene W. Bergin, J.), which had denied defendant's motion for summary judgment dismissing the complaint, (2) granted the motion, and (3) dismissed the complaint.

Colarossi v University of Rochester, 2 AD3d 1272, affirmed.

HEADNOTE

Negligence — Proximate Cause

The Appellate Division properly granted defendant university summary judgment dismissing a complaint by plaintiff undergraduate student who was shot without provocation by a nonstudent while standing outside a fraternity house located in a residential area of defendant's campus known as the fraternity quad. In opposition to defendant's prima facie showing of entitlement to summary judgment, plaintiff presented no evidence other than mere conclusions, expressions of hope or unsubstantiated allegations that alleged insufficient security and lighting in the fraternity quad were a proximate cause of the shooting or that the criminal attack was foreseeable or preventable in the normal course of events.

APPEARANCES OF COUNSEL

Petrone & Petrone, P.C., Rochester (*Elizabeth C. Clarke* and *Janet F. Neumann* of counsel), for appellant.

Ward Norris Heller & Reidy LLP, Rochester (*Harold A. Kurland* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Plaintiff, an undergraduate student, was shot without provocation by a nonstudent while standing outside a fraternity house located in a residential area of defendant's campus known as the "fraternity quad." Plaintiff alleged that inadequate security and lighting were a proximate cause of his injuries. Supreme Court denied defendant's motion for summary judgment dismissing the complaint, and by a divided Court the Appellate Division reversed and granted defendant summary judgment.

In opposition to defendant's prima facie showing of entitlement to summary judgment, plaintiff presented no evidence other than "[m]ere conclusions, expressions of hope or unsubstantiated allegations" that the alleged insufficient security and lighting in the fraternity quad were a proximate cause of the shooting (*Rodriguez v New York City Hous. Auth.*, 87 NY2d 887, 888 [1995] [internal quotation marks and citations omitted]), or that the criminal attack was foreseeable or preventable in the normal course of events (see *Maheshwari v City of New York*, 2 NY3d 288, 294-295 [decided today]). Accordingly, the Appellate Division properly granted defendant summary judgment dismissing the complaint.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed, with costs, in a memorandum.

[812 NE2d 1250, 780 NYS2d 302]

In the Matter of RICHARD KREISLER, Appellant, v NEW YORK
CITY TRANSIT AUTHORITY, Respondent.

Decided May 6, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered December 29, 2003. The Appellate Division, with two Justices dissenting, affirmed a judgment of the Supreme Court, Kings County (Lawrence Knipel, J.), entered in a proceeding pursuant to CPLR article 78, which had denied a petition to review a determination of respondent New York City Transit Authority demoting petitioner and dismissed the proceeding.

Petitioner manager was charged with violating the respondent's rules for failing to take immediate action regarding an alleged incident of sexual harassment committed by a subordinate and for filing a false and misleading report regarding the incident. The hearing officer upheld the charges and imposed a penalty of demotion. The Supreme Court denied petitioner's CPLR article 78 petition to review the determination and dismissed the proceeding.

The Appellate Division majority concluded that Supreme Court correctly found that the hearing officer's determination was not arbitrary and capricious; that the penalty imposed was not so disproportionate to the offense as to shock one's sense of fairness; that, as a manager, petitioner was held to the highest standards in terms of abiding by and implementing respondent's rules, policies, and procedures; and that in light of petitioner's failure to take immediate action in response to the allegation of sexual harassment, his lack of candor, and his misrepresentation on the report, the penalty of demotion did not shock the judicial conscience.

Matter of Kreisler v New York City Tr. Auth., 2 AD3d 856, affirmed.

HEADNOTE**Civil Service — Disciplinary Punishment**

An administrative penalty must be upheld unless it is so disproportionate to the offense as to be shocking to one's sense of fairness, thus constituting an abuse of discretion as a matter of law. Under the circumstances of this case, wherein petitioner manager failed to take immediate action in response to an

allegation of sexual harassment and filed a false and misleading report regarding the incident, it cannot be concluded, as a matter of law, that the penalty of demotion shocks the judicial conscience.

APPEARANCES OF COUNSEL

Robert Ligansky, New York City, for appellant.

Martin B. Schabel, Brooklyn, and *Victor M. Levy* for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

An administrative penalty must be upheld unless it “is so disproportionate to the offense . . . as to be shocking to one’s sense of fairness,” thus constituting an abuse of discretion as a matter of law (*Matter of Pell v Board of Educ.*, 34 NY2d 222, 237 [1974] [internal quotation marks omitted]). Under the circumstances of this case, it cannot be concluded, as a matter of law, that the penalty of demotion shocks the judicial conscience. Petitioner’s remaining contentions lack merit.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed, with costs, in a memorandum.

[812 NE2d 1251, 780 NYS2d 302]

In the Matter of VICTOR RODRIGUEZ-RIVERA, Respondent, v RAYMOND KELLY, as Police Commissioner of the City of New York, et al., Appellants.

Decided May 6, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered January 15, 2004, in a proceeding pursuant to CPLR article 78 (transferred to the Appellate Division by order of the Supreme Court, New York County). The Appellate Division, with two Justices dissenting, (1) annulled a determination of respondent

Police Commissioner, which had found petitioner police officer guilty of specifications charging him with failing to render all necessary police services and imposed a penalty of forfeiture of 15 vacation days, and (2) granted the petition.

Matter of Rodriguez-Rivera v Kelly, 3 AD3d 379, reversed.

HEADNOTE

Civil Service — Police — Discipline of Police

In a proceeding to review a determination finding petitioner police officer guilty of failing to render all necessary police services and imposing a forfeiture penalty of 15 vacation days, the Appellate Division erred in annulling the determination. The Appellate Division majority improperly substituted its credibility determinations for those of the Police Commissioner. A rational basis existed in the record to support the Police Commissioner's determination that petitioner failed to render all necessary police services. The Police Commissioner did not abuse his discretion in ordering the forfeiture of 15 days' vacation time because the penalty does not shock judicial conscience in light of the serious nature of the offense.

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Stephen J. McGrath* of counsel), for appellants.

Worth, Longworth & London, LLP, New York City (*Howard B. Sterinbach* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The judgment of the Appellate Division should be reversed, with costs, and the petition dismissed.

We agree with the dissenters below that the majority improperly substituted its credibility determinations for those of the Police Commissioner (*Matter of Berenhaus v Ward*, 70 NY2d 436, 443-444 [1987]), and that a rational basis exists in the record to support the Police Commissioner's determination that petitioner failed to render all necessary police services. The Police Commissioner did not abuse his discretion in ordering the forfeiture of 15 days' vacation time because the penalty does not shock judicial conscience in light of the serious nature of the offense (*see Matter of Kelly v Safir*, 96 NY2d 32, 39-40 [2001]; *see also Matter of Pell v Board of Educ.*, 34 NY2d 222, 233 [1974]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur in memorandum.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), judgment reversed, etc.

CARVEL CORPORATION, Appellant, v ELIZABETH A. NOONAN et al.,
Respondents, et al., Defendants, et al., Special Masters.

Submitted May 3, 2004; decided May 6, 2004

Motion by Independent Franchisees of Weight Watchers International, Inc. for leave to appear amici curiae on the consideration of certified question herein granted to the extent that the proposed brief is accepted as filed.

Chief Judge KAYE taking no part.

CHASE MANHATTAN BANK, Formerly Known as CHEMICAL BANK, Successor by Merger to CHASE MANHATTAN BANK, N.A. and CHASE LINCOLN BANK, a National Banking Association, Respondent, v JOAN HARRIS, Also Known as JOAN HARRIS RONDEAU, Defendant and Third-Party Plaintiff-Appellant, et al., Defendants. MERRIMACK MUTUAL FIRE INSURANCE COMPANY, Third-Party Defendant-Respondent.

Submitted February 17, 2004; decided May 6, 2004

Reported below, 2 AD3d 999.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that dismissed the appeal from Supreme Court's order denying reargument, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of HECTOR CHEBERE, Respondent, v ROBERT T. JOHNSON et al., Appellants.

Submitted March 15, 2004; decided May 6, 2004

Reported below, 3 AD3d 365.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine

the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

In the Matter of SAMUEL DAVIS, Appellant, v GLENN S. GOORD,
as Commissioner of the New York State Department of Cor-
rectional Services, Respondent.

Submitted April 19, 2004; decided May 6, 2004

Reported below, 1 AD3d 1064.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it is untimely (*see* CPLR 5513 [a]).

QUINTIN X. DRAKEFORD, Appellant, v STATE OF NEW YORK, DE-
PARTMENT OF CORRECTIONS, Respondent.

Submitted March 22, 2004; decided May 6, 2004

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of RONALD JACKSON, Appellant, v STATE OF NEW
YORK, Respondent.

Submitted March 8, 2004; decided May 6, 2004

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

ASHOK KASHELKAR, Appellant, v ROBERT G. CARL, as Town Court
Justice of the Town of Catskill, et al., Respondents.

Submitted March 29, 2004; decided May 6, 2004

Motion to dismiss appeal granted and appeal dismissed, with \$400 costs and \$100 costs of motion, upon the ground that no

substantial constitutional question is directly involved. Cross motion for sanctions denied.

In the Matter of LEO A. MARINO, Appellant, v ROBERT M. MORGENTHAU, as District Attorney of the County of New York, Respondent.

Submitted March 8, 2004; decided May 6, 2004

Reported below, 1 AD3d 275.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601). Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

In the Matter of NEW YORK CIVIL LIBERTIES UNION, Appellant, v CITY OF SCHENECTADY, et al., Respondents.

Submitted May 3, 2004; decided May 6, 2004

Reported below, 306 AD2d 784.

Motion by The New York Newspaper Publishers Association, Inc., et al. for leave to appear amici curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Nineteen additional copies of the brief may be filed and two copies served within 10 days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RANDOLFO CATU, Appellant.

Submitted May 3, 2004; decided May 6, 2004

Reported below, 2 AD3d 306.

Motion for assignment of counsel granted and Laura Johnson, Esq., The Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS HANLEY, Appellant.

Submitted May 3, 2004; decided May 6, 2004

Reported below, 2 AD3d 333.

Motion to waive certain requirements of the Rules of Practice of the Court of Appeals (22 NYCRR part 500) denied. The appeal may, however, be prosecuted upon the original record and 20 copies each of appellant's Court of Appeals brief and appendix pursuant to section 500.5 (a) (1) of the Rules of Practice of the Court of Appeals (22 NYCRR 500.5 [a] [1]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NICHOLAS MARQUEZ, Appellant.

Submitted May 3, 2004; decided May 6, 2004

Reported below, 2 AD3d 343.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STUART BENNETT VORPAHL, Appellant. TOWN OF MONTAUK, INC., Intervenor.

Submitted March 22, 2004; decided May 6, 2004

Motion to intervene dismissed upon the ground that Robert A. Ficalora is not an attorney authorized to represent Montauk Friends of Olmsted Parks/Montauk Trustee Corporation on behalf of the Incorporated Township of Montauk (CPLR 321 [a]).

SOUTH ROAD ASSOCIATES, LLC, Appellant, v INTERNATIONAL BUSINESS MACHINES CORPORATION, Respondent.

Submitted March 8, 2004; decided May 6, 2004

Reported below, 2 AD3d 829.

Motion by the Real Estate Board of New York, Inc. for leave to file an affidavit amicus curiae on the motion for leave to appeal herein granted and the affidavit is accepted as filed, and for leave to file a brief amicus curiae on the appeal herein granted, 20 copies of the brief to be filed and three copies served within 30 days.

Judge ROSENBLATT taking no part.

ALISON L. WELLER, Appellant, v JAMES J. MUNSON, Respondent.

Submitted March 8, 2004; decided May 6, 2004

Reported below, 309 AD2d 1098.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed Supreme Court's order denying appellant's motion to renew, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

[812 NE2d 1256, 780 NYS2d 307]

In the Matter of HENRY R. BAUER.

Decided May 11, 2004

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 (e), (g) and Judiciary Law § 44 (8) (a), (c) of whether Honorable Henry R. Bauer should be suspended from his office of Judge of the Troy City Court, Rensselaer County, pending disposition of his request for review of a determination by the State Commission on Judicial Conduct.

HEADNOTE

Judges — Suspension from Office

Upon consideration by the Court of Appeals on its own motion, pursuant to NY Constitution, article VI, § 22 (e), (g) and Judiciary Law § 44 (8) (a), (c) of whether a City Court Judge should be suspended from office, it is determined that the Judge be suspended, with pay, effective immediately.

OPINION OF THE COURT

On the Court's own motion, it is determined that Honorable Henry R. Bauer is suspended, with pay, effective immediately from his office of Judge of the Troy City Court, Rensselaer County, pending disposition of his request for review of a determination by the State Commission on Judicial Conduct.

Concur: Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH.

[812 NE2d 1257, 780 NYS2d 307]

ENISA ZANKI et al., Appellants, v GERALD K. CAHILL et al., Defendants, and CUSHMAN & WAKEFIELD, INC., Defendant and Third-Party Plaintiff-Respondent. CALIFORNIA JKC PROPERTIES, INC., Third-Party Defendant-Respondent, et al., Third-Party Defendants.

Decided May 11, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered December 11, 2003. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Edward Lehner, J.), which had granted a motion and cross motion for summary judgment dismissing the complaint, all cross claims and the third-party complaint.

Plaintiff allegedly slipped while walking down a stairwell and fell down five or six steps.

The Appellate Division majority concluded that even if plaintiff had sufficiently alleged that defendant had notice of a recurring, and routinely unaddressed, dangerous condition of spillage on the stairwell, she has not alleged any facts from which it may be inferred that the alleged recurring condition existed at the time she fell, much less that the condition proximately caused her mishap; that there was no evidence that spilled substances were present at the time of the incident anywhere on the stairwell; that evidence of her wet sleeve does not, in isolation, suffice to support a reasonable inference that the injury was sustained wholly or in part by a cause for which the defendant was responsible; and that the defendant's motion for summary judgment was properly granted.

Zanki v Cahill, 2 AD3d 197, affirmed.

HEADNOTE

Negligence — Maintenance of Premises

In a negligence action arising from plaintiff's slip and fall down a stairwell, the Appellate Division properly determined that plaintiffs failed to raise a triable issue of fact whether the alleged injuries resulted from a dangerous recurring condition of which defendant Cushman & Wakefield had actual or constructive notice.

APPEARANCES OF COUNSEL

Robert A. Skoblar, New York City, for appellants.

Wilson, Bave, Conboy, Cozza & Couzens, P.C., White Plains (*James A. Rogers* of counsel), for defendant, third-party plaintiff-respondent and third-party defendant-respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs.

The Appellate Division properly determined that plaintiffs failed to raise a triable issue of fact whether the alleged injuries resulted from a dangerous recurring condition of which defendant Cushman & Wakefield had actual or constructive notice.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed, with costs, in a memorandum.

[813 NE2d 586, 780 NYS2d 506]

MARIA V. ANGLERO, Individually and as Administratrix of the Estate of JULIAN A. BALBUENA, Deceased, Appellant, v NEW YORK CITY BOARD OF EDUCATION, Respondent.

Decided May 11, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 14, 2003. The Appellate Division affirmed an order of the Supreme Court, Kings County (Joseph F. Bruno, J.), which had, among other things, granted defendant's motion for summary judgment dismissing the complaint.

Anglero v New York City Bd. of Educ., 304 AD2d 596, modified.

HEADNOTE

Schools — Students — Injury to Student

In a wrongful death action arising from an assault upon decedent by fellow students during dismissal from school, the plaintiff's submission raised a question of fact as to whether defendant received notice of a first attack sufficient to withstand summary judgment. Defendant could not have anticipated

the first attack. However, plaintiff submitted an affidavit of an eyewitness alleging that she observed the victim being assaulted on school premises, and that several teachers and a safety officer were present but did nothing to intervene, even after the witness yelled at the safety officer to do something to protect the victim and the victim screamed for help. A jury may find that the safety officer or the teachers heard the call for help by the witness but stood by and did nothing to stop the first assault on decedent and that their intervention might have averted the second assault, which occurred off the school grounds a short time later.

APPEARANCES OF COUNSEL

Profeta & Eisenstein, New York City (*Fred R. Profeta, Jr.*, of counsel), for appellant.

Michael A. Cardozo, *Corporation Counsel*, New York City (*Grace Goodman* and *Larry A. Sonnenshein* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by denying defendant's motion for summary judgment and, as so modified, affirmed.

Although the Appellate Division correctly determined that defendant could not have anticipated the first attack on decedent, we conclude that plaintiff raised a triable issue of fact as to whether defendant received notice of that attack when it allegedly occurred in the presence of school employees and on school grounds. In support of her cross motion for summary judgment, plaintiff submitted the affidavit of an eyewitness who alleges that she observed the victim being assaulted on school premises by a group of approximately 10 fellow students, one with a baseball bat. The witness stated that several teachers and a safety officer, who were supervising the dismissal of students, were present at the assault but did nothing to intervene, even after the witness yelled at the safety officer to do something to protect the victim and the victim screamed for help.

In light of these allegations by an eyewitness, a jury may find that the safety officer or the teachers heard the call for help by the witness but stood by and did nothing to stop the first assault on decedent and that their intervention might have averted the second assault, which occurred off the school grounds a short time later. Plaintiff's submission therefore raises a question of fact sufficient to withstand summary judgment. As such, the motion and cross motion for summary judgment should be denied.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur in memorandum.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order modified, etc.

In the Matter of the Arbitration between AYCO COMPANY, L.P., et al., Respondents, and KIRK A. WALTON, Appellant.

Submitted March 1, 2004; decided May 11, 2004

Reported below, 3 AD3d 635.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

Judge READ taking no part.

In the Matter of DAWN N., a Child Alleged to be Permanently Neglected. ST. LAWRENCE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; ROBERT N., Appellant. (And Three Other Related Proceedings.)

Submitted March 22, 2004; decided May 11, 2004

Reported below, 4 AD3d 634.

Motion for leave to appeal dismissed upon the ground that movant is not a party aggrieved (*see* CPLR 5511).

Judge READ taking no part.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ANGEL MATEO, Respondent.

Submitted April 19, 2004; decided May 11, 2004

Motion dismissed upon the ground that no action or proceeding is presently pending before the Court of Appeals (*see People v Smith*, 63 NY2d 896). An application to enforce this Court's remittitur, if such application properly lies, is by appeal, not motion (*see* Karger, Powers of the New York Court of Appeals § 122 [3d ed]).

Judge READ taking no part.

QUANTUM CORPORATE FUNDING, LTD., Respondent, v WESTWAY INDUSTRIES, INC., Defendant, and UNITED STATES FIDELITY AND GUARANTY COMPANY, Appellant.

Submitted March 22, 2004; decided May 11, 2004

Reported below, 303 AD2d 483.

Motion by the Subcontractors Trade Association, Inc. for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affirmation is accepted as filed.

Judge READ taking no part.

U.S. UNDERWRITERS INSURANCE COMPANY, Respondent-Appellant, v CITY CLUB HOTEL, LLC, et al., Appellants-Respondents, et al., Respondents.

Submitted February 2, 2004; decided May 11, 2004

Certification of questions by the United States Court of Appeals for the Second Circuit, pursuant to section 500.17 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.17), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH.

[814 NE2d 409, 781 NYS2d 239]

In the Matter of KOREAN JOONG BU PRESBYTERIAN CHURCH OF NEW YORK, Appellant, v INCORPORATED VILLAGE OF OLD WESTBURY et al., Respondents.

Decided May 13, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered March 31, 2003. The Appellate

Division affirmed a judgment of the Supreme Court, Nassau County (Roy S. Mahon, J.), entered in a proceeding pursuant to CPLR article 78, which had denied a petition to review respondent Board of Assessors' denial of petitioner's application for a real property tax exemption for the 2002-2003 tax year.

Matter of Korean Joong Bu Presbyt. Church of N.Y. v Incorporated Vil. of Old Westbury, 303 AD2d 755, reversed.

HEADNOTE

Taxation — Exemptions

The courts below and the board of assessors erred as a matter of law in concluding that petitioner church was not entitled to a tax exemption pursuant to RPTL 420-a because the church's proposed use of the property was unauthorized due to its lack of a special use permit. The board did not examine whether the development of the property was "in good faith contemplated" by the church. Thus, the matter is remitted for that purpose.

APPEARANCES OF COUNSEL

Meyer, Suozzi, English & Klein, P.C., Mineola (A. Thomas Levin of counsel), for appellant.

Farrell Fritz, P.C., Uniondale (John M. Armentano of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the matter remitted for further proceedings in accordance with this memorandum.

Here, the courts below and the board of assessors erred as a matter of law in concluding that petitioner church was not entitled to a tax exemption pursuant to RPTL 420-a simply because the church's proposed use of the property was unauthorized due to its lack of a special use permit (*see Matter of Legion of Christ v Town of Mount Pleasant*, 1 NY3d 406 [2004]). Because the board of assessors did not examine whether the development of the property was "in good faith contemplated" by the church, we remit for that purpose.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order reversed, with costs, and matter remitted to Supreme Court, Nassau County, with directions to remand to respondent Board of As-

sessors of the Incorporated Village of Old Westbury for further proceedings in accordance with the memorandum herein.

[814 NE2d 425, 781 NYS2d 255]

STAR CITY SPORTSWEAR, INC., Appellant, v YASUDA FIRE & MARINE INSURANCE COMPANY OF AMERICA, Respondent.

Decided May 13, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered October 28, 2003. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Harold Tompkins, J.), which had granted defendant's motion for summary judgment dismissing the complaint.

Plaintiff arranged for shipment of goods from Mexico to New York City. Armed robbers hijacked the goods from trucks on a Mexico City street. Plaintiff filed a claim against defendant insurer under its marine open cargo policy. Defendant denied coverage, and plaintiff commenced a breach of contract action. Defendant moved for summary judgment alleging that plaintiff did not comply with a warranty in the policy that each truck be accompanied by an armed escort.

The Appellate Division majority concluded that, as a matter of law, plaintiff breached the warranty that the truck be accompanied by two equipped escort vehicles; that the breach of the four-guard warranty was also fatal; that in nonmarine cases, a breach of warranty that materially increases the insurer's risk of loss precludes coverage as a matter of law; that plaintiff was not entitled to a partial recovery despite its complete breach of the warranty by limiting its default to the absence of armed guards, when it never provided any guard; and that the complaint was properly dismissed.

Star City Sportswear v Yasuda Fire & Mar. Ins. Co. of Am., 1 AD3d 58, affirmed.

HEADNOTE

Insurance — Ocean Open Cargo Insurance — Breach of Warranty by Insured

Defendant insurer was not liable under a marine open cargo policy for the theft by armed robbers of plaintiff's insured goods. The policy's warranty

clause required that each escort contain a minimum of two guards. Plaintiff's proof was insufficient to raise a triable issue of fact as to whether it fulfilled that requirement. Defendant offered sufficient proof establishing plaintiff's material breach of the warranty clause as a matter of law. Accordingly, defendant's motion for summary judgment was properly granted.

APPEARANCES OF COUNSEL

Weg & Myers, P.C., New York City (*Joshua L. Mallin* of counsel), for appellant.

Maloof Browne & Eagan LLC, Rye (*Thomas M. Eagan* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs. We agree with the Appellate Division majority that the contract's warranty clause clearly requires that each escort contain a minimum of two guards. Plaintiff's proof was insufficient to raise a triable issue of fact as to whether it fulfilled that requirement (*see* CPLR 3212 [b]; *Zuckerman v City of New York*, 49 NY2d 557, 562-563 [1980]). Defendant, on the other hand, offered sufficient proof establishing plaintiff's material breach of the warranty clause as a matter of law. Accordingly, defendant's motion for summary judgment was properly granted.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed, with costs, in a memorandum.

RHONDA COVINGTON, Appellant, v CARLTON WALKER, Respondent.

Submitted April 5, 2004; decided May 13, 2004

Reported below, 307 AD2d 908.

Motion for assignment of counsel granted and Alan J. Pierce, Esq., care of Hancock & Estabrook, LLP, 1500 MONY Tower I, P.O. Box 4976, Syracuse, NY 13221-4976 is assigned without fee to represent respondent on the appeal herein. Counsel may, however, apply for reimbursement of necessary disbursements incurred in connection with the assignment.

GEORGE HEATH, Appellant, v JOHN S. WOJTOWICZ et al.,
Respondents.

Submitted April 19, 2004; decided May 13, 2004

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain the motion (*see* NY Const, art VI, § [3] [b]; CPLR 5602).

In the Matter of JONATHAN B., a Child Alleged to be Permanently
Neglected. CATHOLIC HOME BUREAU FOR DEPENDENT CHILDREN,
Respondent; LILLIANA B., Appellant.

Submitted April 5, 2004; decided May 13, 2004

Reported below, 5 AD3d 477.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic. Motion for poor person relief dismissed as academic.

BRIAN LUSTENRING et al., Appellants, v 98-100 REALTY, LLC, et al.,
Defendants and Third-Party Plaintiffs-Respondents, et al.,
Defendants. RECTOR STREET PARKING, INC., et al., Third-Party
Defendants-Respondents. (And Another Title.)

Submitted March 22, 2004; decided May 13, 2004

Reported below, 1 AD3d 574.

Motion, insofar as it seeks leave to appeal as against third-party defendants Rector Street Parking, Inc. and the City of New York, dismissed upon the ground that, as to these third-party defendants, appellants are not parties aggrieved (CPLR 5511); motion, insofar as it seeks leave to appeal as against defendant fourth third-party plaintiff 98-100 Realty, LLC, dismissed upon the ground that as to this party the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL HENRIQUEZ, Appellant.

Submitted April 5, 2004; decided May 13, 2004

Reported below, 307 AD2d 863.

Motion for leave to file a supplemental pro se brief granted.

ADA RODRIGUEZ, Appellant, v TRUSTEES OF COLUMBIA UNIVERSITY IN THE CITY OF NEW YORK et al., Respondents.

Submitted March 8, 2004; decided May 13, 2004

Motion, insofar as it seeks leave to appeal from that portion of the February 6, 2003 Appellate Division order that dismissed the appeal from Supreme Court's order dismissing the complaint, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portion of the February 6, 2003 Appellate Division order as well as the January 6, 2004 Appellate Division order sought to be appealed from do not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

ADA RODRIGUEZ, Appellant, v TRUSTEES OF COLUMBIA UNIVERSITY IN THE CITY OF NEW YORK et al., Respondents.

Submitted March 29, 2004; decided May 13, 2004

Motion, insofar as it seeks disqualification of Chief Judge KAYE and Judge R.S. SMITH dismissed upon the ground that the Court of Appeals has no authority to entertain the motion made on nonstatutory grounds. The application seeking recusal is referred to the Chief Judge and to Judge R.S. SMITH for their individual consideration and determination. Chief Judge KAYE and Judge R.S. SMITH each respectively denies the referred motion for recusal. Motion for a stay dismissed as academic.

ADA RODRIGUEZ, Appellant, v TRUSTEES OF COLUMBIA UNIVERSITY IN THE CITY OF NEW YORK et al., Respondents.

Submitted April 12, 2004; decided May 13, 2004

Motion for the imposition of sanctions denied.

In the Matter of PAUL SMITH et al., Appellants, v TOWN OF MENDON et al., Respondents.

Submitted April 5, 2004; decided May 13, 2004

Reported below, 4 AD3d 859.

Motion by Pacific Legal Foundation for leave to file a brief amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed.

APPEALS DISMISSED ON CONSTITUTIONAL GROUNDS

Decided May 4, 2004

Delese, Matter of, v Tax Appeals Trib. of State of N.Y. 3d Dept: 3 AD3d 612

Decided May 6, 2004

People ex rel. Higgins v McGinnis App Div, 3d Dept,
Dec. 23, 2003

Decided May 11, 2004

Kelly, Matter of, v Bruhn 3d Dept: 3 AD3d 783

Decided May 13, 2004

Schulz, Matter of, v New York State Legislature 3d Dept: 5 AD3d 885

**MOTIONS FOR EXTENSION OF TIME TO APPLY
FOR PERMISSION TO APPEAL PURSUANT TO CPL 460.20**

Decided May 4, 2004

People v Alvarez 1st Dept: 308 AD2d 184 granted

**MOTIONS FOR LEAVE TO APPEAL/APPEALS
DISMISSED ON FINALITY GROUNDS**

Decided May 4, 2004

Bonded Concrete, Inc. v Town of Saugerties	3d Dept: 3 AD3d 729
Chez Josephine v Columbia Univ.	1st Dept: 4 AD3d 49
DOF Holdings, LLC v Bove	2d Dept: 4 AD3d 323
Golovach v Bellmont L.M., Inc.	3d Dept: 4 AD3d 730
Malcolm v Mount Vernon Hosp.	1st Dept: 309 AD2d 704

Decided May 11, 2004

Commercial Risk Re-Insurance Co. v Superintendent of Ins. of State of N.Y.	1st Dept: 2 AD3d 264
Frontier Ins. Co., Matter of	1st Dept: 2 AD3d 264
Humphrey v Onondaga County Sheriff's Dept.	App Div, 4th Dept, Mar. 4, 2004
Marino, Matter of, v Hynes	App Div, 2d Dept, Apr. 1, 2003, June 24, 2003
Sun Plaza Enters. Corp. v Crown Theatres, L.P.	2d Dept: 307 AD2d 351, 352

Decided May 13, 2004

Excel Graphics Tech., Inc. v CFG/AGSCB 75 Ninth Ave., L.L.C.	1st Dept: 1 AD3d 65
Knauer v Anderson	4th Dept: 2 AD3d 1314

MOTIONS FOR REARGUMENT OR RECONSIDERATION

Decided May 4, 2004

Bynog v Cipriani Group, Inc.	1 NY3d 193	denied
Carney v Philippone	1 NY3d 333	denied
NYCTL 1996-1 Trust v LFJ Realty Corp.	1 NY3d 622	denied
Waldon v Little Flower Children's Serv.	1 NY3d 612	denied

Decided May 6, 2004

People v Vorpahl	1 NY3d 592	denied
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**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(May 1, 2004 through May 31, 2004)

Freemonde v City of New York	2d Dept: 1 AD3d 560	5/25/04
Valassis Communications, Inc. v Weimer	1st Dept: 304 AD2d 448	5/25/04

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(May 1, 2004 through May 31, 2004)

People v Afflic	App Term, 1st Dept, 2 Misc 3d 132(A) (NY)	denied 5/19/04 (Rosenblatt, J.)
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People v Agostini	App Div, 2d Dept, 4/12/04 (Kings)	dismissed 5/10/04 (Kaye, Ch.J.)
People v Alexander (Paul)	App Div, 2d Dept, 3/31/04 (Westchester)	dismissed 5/10/04 (Kaye, Ch.J.)
People v Alexander (Vincent)	2d Dept: 309 AD2d 813 (Kings)	denied 5/14/04 (R.S. Smith, J.)
People v Allen (David)	2d Dept: 5 AD3d 390 (Kings)	denied 5/26/04 (Kaye, Ch.J.)
People v Allen (Frank)	2d Dept: 4 AD3d 479 (Queens)	denied 5/10/04 (Read, J.)
People v Al-Matin	App Div, 1st Dept, 10/17/02 (NY)	dismissed 5/10/04 (Kaye, Ch.J.)
People v Anderson	1st Dept: 4 AD3d 302 (NY)	denied 5/17/04 (Grafteo, J.)
People v Andrades (Derek)	1st Dept: 4 AD3d 180 (Bronx)	granted 5/27/04 (Read, J.)
People v Andrades (Francisco)	2d Dept: 5 AD3d 1133 (Dutchess)	denied 5/28/04 (R.S. Smith, J.)
People v Andrickson	App Div, 2d Dept, 2/23/04 (Queens)	dismissed 5/28/04 (Kaye, Ch.J.)
People v Anonymous	1st Dept: 5 AD3d 112 (NY)	denied 5/14/04 (Grafteo, J.) (Indictment No. 737/02)
People v Antinuche	2d Dept: 5 AD3d 390 (Queens)	denied 5/7/04 (R.S. Smith, J.)
People v Atkins	1st Dept: 4 AD3d 252 (NY)	denied 5/10/04 (Read, J.)
People v Audi	County Ct, 2/22/04 (Albany)	denied 5/25/04 (Kaye, Ch.J.)
People v Austin	2d Dept: 304 AD2d 835 (Queens)	denied 5/20/04 (Kaye, Ch.J.)
People v Ayala	2d Dept: 4 AD3d 480 (Suffolk)	denied 5/26/04 (Kaye, Ch.J.)
People v Bailey	App Div, 2d Dept, 10/28/03 (Kings)	denied 5/26/04 (Kaye, Ch.J.)
People v Baker (Eunice)	3d Dept: 4 AD3d 606 (Tioga)	denied 5/26/04 (Read, J.)
People v Baker (Eunice M.)	3d Dept: 4 AD3d 606 (Tioga)	denied 5/26/04 (Read, J.)
People v Barber	County Ct, 1/9/04 (Erie)	denied 5/28/04 (Kaye, Ch.J.)
People v Barrett (Cory)	4th Dept: 5 AD3d 1023 (Ontario)	denied 5/14/04 (Grafteo, J.) (Appeal No. 1)
People v Barrett (Cory)	4th Dept: 5 AD3d 1130 (Ontario)	denied 5/14/04 (Grafteo, J.) (Appeal No. 2)

People v Bens	2d Dept: 5 AD3d 391 (Queens)	denied 5/28/04 (Grafteo, J.)
People v Berino	1st Dept: 2 AD3d 1490 (NY)	denied 5/11/04 (Kaye, Ch.J.)
People v Betsch	4th Dept: 4 AD3d 818 (Erie)	denied 5/7/04 (R.S. Smith, J.)
People v Beverly	3d Dept: 5 AD3d 862 (Schenectady)	denied 5/28/04 (Grafteo, J.)
People v Bianchi	2d Dept: 5 AD3d 392 (Suffolk)	denied 5/25/04 (Kaye, Ch.J.)
People v Bo	3d Dept: 5 AD3d 807 (Columbia)	denied 5/28/04 (Grafteo, J.)
People v Bolden (Darrell)	1st Dept: 1 AD3d 132 (NY)	denied 5/14/04 (Grafteo, J.) (upon reconsideration)
People v Bolden (Donald)	2d Dept: 5 AD3d 393 (Kings)	denied 5/19/04 (Rosenblatt, J.)
People v Bowers	3d Dept: 4 AD3d 558 (Chemung)	denied 5/28/04 (R.S. Smith, J.)
People v Boyce (Philip)	App Div, 3d Dept, 4/19/04 (Washington)	dismissed 5/28/04 (Kaye, Ch.J.)
People v Boyce (Tyler)	3d Dept: 2 AD3d 984 (St. Lawrence)	denied 5/14/04 (Grafteo, J.)
People v Boyd	1st Dept: 4 AD3d 898 (NY)	denied 5/19/04 (Ciparick, J.)
People v Bradley	1st Dept: 4 AD3d 155 (NY)	denied 5/11/04 (Ciparick, J.)
People v Breland	2d Dept: 5 AD3d 604 (Queens)	denied 5/20/04 (Ciparick, J.)
People v Briggs	4th Dept: 4 AD3d 899 (Monroe)	denied 5/12/04 (Ciparick, J.)
People v Brown (Anthony)	2d Dept: 307 AD2d 933 (Queens)	denied 5/21/04 (Kaye, Ch.J.)
People v Brown (Jamel)	1st Dept: 4 AD3d 156 (NY)	denied 5/14/04 (Grafteo, J.)
People v Browne	1st Dept: 3 AD3d 448 (Bronx)	denied 5/12/04 (Kaye, Ch.J.)
People v Burris	2d Dept: 309 AD2d 872 (Orange)	denied 5/10/04 (Read, J.) (upon reconsideration)
People v Canela	1st Dept: 3 AD3d 455 (Bronx)	denied 5/14/04 (R.S. Smith, J.)
People v Cardenas	2d Dept: 4 AD3d 480 (Queens)	denied 5/27/04 (Kaye, Ch.J.)
People v Cardwell	4th Dept: 4 AD3d 850 (Erie)	denied 5/12/04 (Ciparick, J.)
People v Carpenter (Duane)	4th Dept: 4 AD3d 899 (Cayuga)	denied 5/12/04 (Ciparick, J.)

MEMORANDA

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People v Carpenter (Terrell)	2d Dept: 4 AD3d 900 (Suffolk)	denied 5/4/04 (R.S. Smith, J.)
People v Carpenter (Tyrone)	2d Dept: 4 AD3d 900 (Suffolk)	denied 5/4/04 (R.S. Smith, J.)
People v Carrillo	1st Dept: 2 AD3d 260 (NY)	denied 5/21/04 (Kaye, Ch.J.)
People v Carson	4th Dept: 4 AD3d 805 (Niagara)	denied 5/11/04 (Ciparick, J.)
People v Carter (Danny)	3d Dept: 4 AD3d 682 (Schenectady)	denied 5/14/04 (Grafteo, J.)
People v Carter (Lorenzo)	4th Dept: 4 AD3d 899 (Monroe)	denied 5/4/04 (R.S. Smith, J.)
People v Cato	2d Dept: 5 AD3d 394 (Kings)	denied 5/17/04 (Grafteo, J.)
People v Cepeda	2d Dept: 309 AD2d 1314 (Kings)	denied 5/20/04 (Kaye, Ch.J.)
People v Chambliss	4th Dept: 4 AD3d 795 (Onondaga)	denied 5/5/04 (R.S. Smith, J.)
People v Chasey	3d Dept: 5 AD3d 815 (St. Lawrence)	denied 5/10/04 (Read, J.)
People v Chaverra	2d Dept: 5 AD3d 395 (Queens)	denied 5/4/04 (R.S. Smith, J.)
People v Cherry	App Term, 2d Dept: 4 Misc 3d 40(A) (Kings)	denied 5/14/04 (Grafteo, J.)
People v Clarke	3d Dept: 5 AD3d 807 (Columbia)	denied 5/28/04 (Grafteo, J.)
People v Clendinen	1st Dept: 4 AD3d 116 (Bronx)	denied 5/26/04 (Kaye, Ch.J.)
People v Clinton	2d Dept: 5 AD3d 501 (Queens)	denied 5/25/04 (Rosenblatt, J.)
People v Cohen (Adam)	1st Dept: 9 AD3d 71 (NY)	denied 5/19/04 (Rosenblatt, J.)
People v Cohen (Stanley)	1st Dept: 9 AD3d 71 (NY)	denied 5/19/04 (Rosenblatt, J.)
People v Cole	1st Dept: 5 AD3d 177 (NY)	denied 5/17/04 (Grafteo, J.)
People v Coleman (Earl)	3d Dept: 4 AD3d 677 (Sullivan)	denied 5/10/04 (Read, J.)
People v Coleman (Michael)	4th Dept: 5 AD3d 980 (Monroe)	denied 5/20/04 (Ciparick, J.)
People v Cordilione	4th Dept: 5 AD3d 1130 (Monroe)	denied 5/25/04 (Rosenblatt, J.)
People v Costa	3d Dept: 4 AD3d 675 (Sullivan)	denied 5/14/04 (Ciparick, J.)
People v Cox (Curtis)	2d Dept: 4 AD3d 481 (Kings)	denied 5/11/04 (Read, J.)
People v Cox (Ingram)	2d Dept: 4 AD3d 481 (Kings)	denied 5/11/04 (Read, J.)
People v Crawford	4th Dept: 4 AD3d 748 (Erie)	denied 5/14/04 (Ciparick, J.)

People v Cruz (Juan)	4th Dept: 4 AD3d 808 (Monroe)	denied 5/28/04 (Kaye, Ch.J.)
People v Cruz (Medina)	1st Dept: 5 AD3d 190 (NY)	denied 5/10/04 (Read, J.)
People v Dacosta	3d Dept: 4 AD3d 675 (Sullivan)	denied 5/14/04 (Ciparick, J.)
People v Davis (Anthony)	2d Dept: 4 AD3d 533 (Nassau)	denied 5/14/04 (Grafteo, J.)
People v Davis (Phonecia)	3d Dept: 4 AD3d 567 (Schenectady)	denied 5/22/04 (Kaye, Ch.J.)
People v DeAngelis	1st Dept: 5 AD3d 274 (Bronx)	denied 5/26/04 (Read, J.)
People v Dearstyne	App Div, 3d Dept, 1/16/04 (Rensselaer)	denied 5/10/04 (Read, J.)
People v Degondea	1st Dept: 3 AD3d 148 (NY)	denied 5/14/04 (Grafteo, J.)
People v Delgado (Robert)	1st Dept: 4 AD3d 120 (Bronx)	denied 5/12/04 (Kaye, Ch.J.)
People v Delgado (Umar)	1st Dept: 4 AD3d 310 (NY)	denied 5/28/04 (R.S. Smith, J.)
People v Diaz (Dorian)	1st Dept: 4 AD3d 134 (Bronx)	denied 5/14/04 (Grafteo, J.)
People v Diaz (John)	2d Dept: 4 AD3d 480 (Suffolk)	denied 5/26/04 (Kaye, Ch.J.)
People v Diaz (Marcus)	1st Dept: 5 AD3d 1130 (Bronx)	denied 5/14/04 (Ciparick, J.)
People v Diggs	2d Dept: 5 AD3d 395 (Westchester)	denied 5/19/04 (Ciparick, J.)
People v Dill	County Ct, 2/4/04 (Erie)	denied 5/12/04 (Ciparick, J.)
People v Dockery	1st Dept: 5 AD3d 1129 (NY)	denied 5/25/04 (Rosenblatt, J.)
People v Dolan (Rory)	2d Dept: 2 AD3d 744 (Suffolk)	denied 5/11/04 (Ciparick, J.)
People v Dolan (Rory)	2d Dept: 2 AD3d 745 (Suffolk)	denied 5/11/04 (Ciparick, J.)
People v Dorman	4th Dept: 5 AD3d 1094 (Erie)	denied 5/25/04 (Kaye, Ch.J.)
People v Durden	1st Dept: 5 AD3d 333 (NY)	denied 5/19/04 (Rosenblatt, J.)
People v Edmonds	1st Dept: 5 AD3d 203 (NY)	denied 5/20/04 (Ciparick, J.)
People v Edmonson	2d Dept: 4 AD3d 482 (Kings)	denied 5/14/04 (Ciparick, J.)
People v Elbert	2d Dept: 309 AD2d 763 (Westchester)	denied 5/20/04 (Kaye, Ch.J.)
People v Elder	4th Dept: 5 AD3d 1130 (Erie)	denied 5/26/04 (Read, J.)
People v Eldridge	1st Dept: 5 AD3d 282 (NY)	denied 5/19/04 (Rosenblatt, J.)

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People v Elliott	4th Dept: 5 AD3d 1132 (Erie)	denied 5/19/04 (Rosenblatt, J.)
People v Espaillat	1st Dept: 2 AD3d 1490 (NY)	denied 5/11/04 (Read, J.)
People v Espiritusanto	4th Dept: 4 AD3d 826 (Monroe)	denied 5/25/04 (Kaye, Ch.J.)
People v Fayton	1st Dept: 4 AD3d 143 (NY)	denied 5/19/04 (Rosenblatt, J.)
People v Felder	1st Dept: 2 AD3d 365 (NY)	denied 5/4/04 (R.S. Smith, J.)
People v Fernandez	1st Dept: 2 AD3d 1490 (NY)	denied 5/20/04 (Kaye, Ch.J.)
People v Figueroa	1st Dept: 4 AD3d 118 (Bronx)	denied 5/19/04 (Rosenblatt, J.)
People v Flemming	App Div, 1st Dept, 4/13/04 (NY)	dismissed 5/18/04 (R.S. Smith, J.)
People v Flores (Joaquin)	3d Dept: 3 AD3d 788 (Rensselaer)	denied 5/20/04 (Kaye, Ch.J.)
People v Flores (Nelson)	2d Dept: 5 AD3d 502 (Kings)	denied 5/28/04 (R.S. Smith, J.)
People v Francisco	County Ct, 12/23/03 (Allegany)	denied 5/20/04 (Kaye, Ch.J.)
People v Franklin	1st Dept: 3 AD3d 836 (NY)	denied 5/20/04 (Kaye, Ch.J.)
People v Fredette	4th Dept: 2 AD3d 1451 (Cayuga)	denied 5/17/04 (Grafteo, J.)
People v Fuzia	2d Dept: 4 AD3d 373 (Suffolk)	denied 5/11/04 (Ciparick, J.)
People v Gaddy	3d Dept: 2 AD3d 891 (Sullivan)	denied 5/20/04 (Kaye, Ch.J.)
People v Gainey	4th Dept: 4 AD3d 851 (Monroe)	denied 5/11/04 (Ciparick, J.)
People v Garcia	1st Dept: 5 AD3d 150 (NY)	denied 5/7/04 (R.S. Smith, J.)
People v Gardella	2d Dept: 5 AD3d 695 (Suffolk)	denied 5/28/04 (R.S. Smith, J.)
People v Gardner	2d Dept: 2 AD3d 875 (Queens)	denied 5/21/04 (Kaye, Ch.J.)
People v George	1st Dept: 4 AD3d 142 (NY)	denied 5/10/04 (Read, J.)
People v Gibson	1st Dept: 308 AD2d 375 (NY)	denied 5/19/04 (Rosenblatt, J.)
People v Giles	App Term, 2d Dept: 3 Misc 3d 135(A) (Suffolk)	denied 5/19/04 (Ciparick, J.)
People v Gilley	1st Dept: 4 AD3d 127 (Bronx)	denied 5/10/04 (Read, J.)
People v Godineaux	2d Dept: 2 AD3d 875 (Queens)	denied 5/14/04 (R.S. Smith, J.)
People v Gonzalez (Alex)	2d Dept: 6 AD3d 457 (Westchester)	denied 5/28/04 (Grafteo, J.)

People v Gonzalez (Luis)	1st Dept: 5 AD3d 168 (NY)	denied 5/18/04 (R.S. Smith, J.)
People v Gracius	1st Dept: 6 AD3d 222 (NY)	denied 5/28/04 (Grafteo, J.)
People v Graham	1st Dept: 4 AD3d 225 (NY)	denied 5/10/04 (Read, J.)
People v Green	1st Dept: 3 AD3d 428 (NY)	denied 5/7/04 (R.S. Smith, J.)
People v Guillo	4th Dept: 4 AD3d 826 (Monroe)	denied 5/25/04 (Kaye, Ch.J.)
People v Guisto	1st Dept: 4 AD3d 133 (NY)	denied 5/4/04 (R.S. Smith, J.)
People v Hall	App Div, 1st Dept, 3/18/04 (NY)	denied 5/19/04 (Rosenblatt, J.)
People v Hallums	2d Dept: 5 AD3d 397 (Kings)	denied 5/14/04 (Ciparick, J.)
People v Hardison	1st Dept: 5 AD3d 312 (NY)	denied 5/28/04 (Grafteo, J.)
People v Hardy	2d Dept: 1 AD3d 456 (Suffolk)	granted 5/17/04 (Ciparick, J.) (upon reconsideration)
People v Harnett	1st Dept: 3 AD3d 338 (Bronx)	denied 5/20/04 (Kaye, Ch.J.)
People v Hayes	App Div, 3d Dept, 2/25/04 (Washington)	denied 5/19/04 (Rosenblatt, J.)
People v Henderson	3d Dept: 4 AD3d 616 (Chemung)	denied 5/28/04 (Rosenblatt, J.)
People v Hendricks (Robert)	4th Dept: 4 AD3d 798 (Oneida)	denied 5/10/04 (Read, J.) (Appeal No. 1)
People v Hendricks (Robert)	4th Dept: 4 AD3d 798 (Oneida)	denied 5/10/04 (Read, J.) (Appeal No. 2)
People v Hercules	App Div, 1st Dept, 12/2/03 (NY)	denied 5/19/04 (Ciparick, J.) (upon reconsideration)
People v Herring	App Div, 3d Dept, 3/18/04 (Broome)	denied 5/28/04 (Grafteo, J.)
People v Hodge	3d Dept: 4 AD3d 676 (Schenectady)	denied 5/12/04 (Ciparick, J.)
People v Holland	App Div, 2d Dept, 3/19/04 (Suffolk)	dismissed 5/3/04 (Ciparick, J.)
People v Holmquist	4th Dept: 5 AD3d 1041 (Cayuga)	denied 5/20/04 (Kaye, Ch.J.)
People v Howard	4th Dept: 2 AD3d 1323 (Cayuga)	denied 5/19/04 (Kaye, Ch.J.)
People v Howell	1st Dept: 2 AD3d 258 (Bronx)	denied 5/21/04 (Kaye, Ch.J.)

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People v Hudson (Darrell)	4th Dept: 4 AD3d 899 (Wayne)	denied 5/20/04 (Kaye, Ch.J.)
People v Hudson (John)	4th Dept: 4 AD3d 899 (Wayne)	denied 5/20/04 (Kaye, Ch.J.)
People v Hunter	2d Dept: 5 AD3d 607 (Queens)	denied 5/20/04 (Ciparick, J.)
People v Ingram	1st Dept: 3 AD3d 437 (NY)	denied 5/5/04 (R.S. Smith, J.)
People v Isles	2d Dept: 5 AD3d 504 (Queens)	denied 5/28/04 (Grafteo, J.)
People v Jackson (Demaine)	4th Dept: 4 AD3d 773 (Genesee)	denied 5/19/04 (Ciparick, J.)
People v Jackson (Gregory)	App Div, 3d Dept, 12/22/03 (Tompkins)	denied 5/20/04 (Kaye, Ch.J.)
People v Jackson (Shawn)	4th Dept: 4 AD3d 848 (Monroe)	denied 5/20/04 (Kaye, Ch.J.)
People v Jamison	1st Dept: 3 AD3d 835 (Bronx)	denied 5/20/04 (Ciparick, J.)
People v Jelliff	4th Dept: 5 AD3d 1130 (Steuben)	denied 5/19/04 (Ciparick, J.)
People v Jenkins	1st Dept: 4 AD3d 308 (Bronx)	denied 5/19/04 (Ciparick, J.)
People v John	2d Dept: 2 AD3d 537 (Kings)	denied 5/20/04 (Grafteo, J.)
People v Johnson (Charles)	2d Dept: 4 AD3d 462 (Suffolk)	denied 5/25/04 (Kaye, Ch.J.)
People v Johnson (Larry)	2d Dept: 4 AD3d 535 (Suffolk)	denied 5/19/04 (Rosenblatt, J.)
People v Johnson (Wellington)	App Div, 3d Dept, 2/25/04 (Madison)	denied 5/25/04 (Kaye, Ch.J.)
People v Jones (Anthony)	1st Dept: 4 AD3d 209 (NY)	denied 5/12/04 (Ciparick, J.)
People v Jones (Prather)	3d Dept: 4 AD3d 622 (Rensselaer)	denied 5/4/04 (R.S. Smith, J.)
People v Jones (Robert)	4th Dept: 300 AD2d 1119 (Orleans)	denied 5/26/04 (Read, J.)
People v Jones (Tremayne)	4th Dept: 4 AD3d 796 (Onondaga)	denied 5/14/04 (Grafteo, J.)
People v Josey	2d Dept: 5 AD3d 398 (Queens)	denied 5/14/04 (Ciparick, J.)
People v Kairis	4th Dept: 4 AD3d 838 (Monroe)	denied 5/10/04 (Read, J.)
People v Karim	App Term, 1st Dept: 2 Misc 3d 133(A) (NY)	denied 5/26/04 (Read, J.)
People v Karlefski	App Term, 2d Dept: 2 Misc 3d 130(A) (Kings)	denied 5/4/04 (R.S. Smith, J.)
People v Kelly	3d Dept: 3 AD3d 789 (Saratoga)	denied 5/12/04 (Ciparick, J.)
People v Kollar	1st Dept: 4 AD3d 898 (NY)	denied 5/19/04 (Rosenblatt, J.)

People v Lane	4th Dept: 307 AD2d 783 (Orleans)	denied 5/5/04 (R.S. Smith, J.)
People v Laraby (Edward)	4th Dept: 4 AD3d 749 (Cayuga)	denied 5/17/04 (Grafteo, J.) (Appeal No. 1)
People v Laraby (Edward)	4th Dept: 4 AD3d 751 (Cayuga)	denied 5/17/04 (Grafteo, J.) (Appeal No. 2)
People v Larkin	4th Dept: 5 AD3d 1130 (Steuben)	denied 5/10/04 (Read, J.)
People v Lattimore	2d Dept: 5 AD3d 399 (Kings)	denied 5/20/04 (Ciparick, J.)
People v Lawrence (Edwin)	App Div, 2d Dept, 4/16/04 (Queens)	dismissed 5/14/04 (Kaye, Ch.J.)
People v Lawrence (Herbert)	2d Dept: 4 AD3d 436 (Kings)	denied 5/4/04 (R.S. Smith, J.)
People v Leon	App Term, 1st Dept: 2 Misc 3d 133(A) (NY)	denied 5/28/04 (Grafteo, J.)
People v Lewis	App Div, 3d Dept, 12/8/03 (Broome)	denied 5/17/04 (Grafteo, J.) (upon reconsideration)
People v Lian Jian Hua	2d Dept: 4 AD3d 896 (Kings)	denied 5/12/04 (Kaye, Ch.J.)
People v Logan	1st Dept: 4 AD3d 252 (NY)	denied 5/10/04 (Read, J.)
People v Lovullo	4th Dept: 5 AD3d 1013 (Monroe)	denied 5/19/04 (Rosenblatt, J.)
People v Lynch (Anthony)	County Ct, 4/8/04 (Erie)	withdrawn 5/17/04 (Grafteo, J.)
People v Lynch (Ronald)	2d Dept: 5 AD3d 608 (Queens)	denied 5/28/04 (Rosenblatt, J.)
People v Macias	App Div, 2d Dept, 1/21/04 (Nassau)	dismissed 5/10/04 (Read, J.)
People v Mack	1st Dept: 4 AD3d 126 (NY)	denied 5/19/04 (Rosenblatt, J.)
People v Marsalis	2d Dept: 3 AD2d 509 (Kings)	denied 5/20/04 (Kaye, Ch.J.)
People v Marshall (Robert)	1st Dept: 6 AD3d 237 (NY)	denied 5/28/04 (Rosenblatt, J.)
People v Marshall (William)	3d Dept: 5 AD3d 42 (Tompkins)	denied 5/19/04 (Rosenblatt, J.)
People v Martinez	1st Dept: 3 AD3d 352 (Bronx)	denied 5/10/04 (Read, J.)
People v Mateo	2d Dept: 5 AD3d 507 (Kings)	denied 5/14/04 (Grafteo, J.)
People v Matthews	1st Dept: 3 AD3d 448 (NY)	denied 5/12/04 (Kaye, Ch.J.)

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People v McDuffie	1st Dept: 4 AD3d 898 (NY)	denied 5/6/04 (R.S. Smith, J.)
People v McGhee	2d Dept: 4 AD3d 485 (Suffolk)	denied 5/17/04 (Grafteo, J.)
People v McKay	4th Dept: 5 AD3d 1040 (Onondaga)	denied 5/17/04 (Grafteo, J.)
People v McKinnon	4th Dept: 5 AD3d 1076 (Cayuga)	denied 5/5/04 (R.S. Smith, J.)
People v McLean	2d Dept: 5 AD3d 608 (Queens)	denied 5/10/04 (Read, J.)
People v McMillan	App Div, 1st Dept, 10/17/02 (NY)	dismissed 5/10/04 (Kaye, Ch.J.)
People v McNamara	4th Dept: 2 AD3d 1453 (Niagara)	denied 5/20/04 (Kaye, Ch.J.)
People v Melendez	1st Dept: 6 AD3d 1250 (NY)	denied 5/17/04 (Grafteo, J.)
People v Merchant	2d Dept: 4 AD3d 487 (Queens)	denied 5/14/04 (Ciparick, J.)
People v Miah	1st Dept: 3 AD3d 457 (NY)	denied 5/11/04 (Ciparick, J.)
People v Miller	2d Dept: 4 AD3d 538 (Kings)	denied 5/27/04 (Kaye, Ch.J.)
People v Mims	1st Dept: 3 AD3d 835 (Bronx)	denied 5/14/04 (R.S. Smith, J.)
People v Minson	2d Dept: 3 AD3d 540 (Queens)	denied 5/12/04 (Kaye, Ch.J.)
People v Monreal	County Ct, 2/4/04 (Sullivan)	denied 5/17/04 (Grafteo, J.)
People v Montes	2d Dept: 5 AD3d 609 (Kings)	denied 5/28/04 (Kaye, Ch.J.)
People v Moye	2d Dept: 4 AD3d 488 (Suffolk)	denied 5/12/04 (Ciparick, J.)
People v Munck	3d Dept: 4 AD3d 627 (Broome)	denied 5/19/04 (Rosenblatt, J.)
People v Munoz	1st Dept: 5 AD3d 1130 (NY)	denied 5/18/04 (R.S. Smith, J.)
People v Nelson (Darrell)	App Term, 1st Dept: 2 Misc 3d 133(A) (NY)	denied 5/19/04 (Rosenblatt, J.)
People v Nelson (Latik)	1st Dept: 5 AD3d 134 (NY)	denied 5/17/04 (Grafteo, J.)
People v Nelson (Prince)	1st Dept: 5 AD3d 1130 (NY)	denied 5/20/04 (Ciparick, J.)
People v Nunez	2d Dept: 5 AD3d 1133 (Kings)	denied 5/17/04 (Grafteo, J.)
People v Nurse	2d Dept: 5 AD3d 401 (Dutchess)	denied 5/26/04 (Read, J.)
People v O'Connor	App Div, 1st Dept, 3/18/04 (NY)	denied 5/28/04 (Grafteo, J.)
People v Osario	4th Dept: 5 AD3d 1041 (Erie)	denied 5/20/04 (Ciparick, J.)

People v Palmer	1st Dept: 4 AD3d 898 (NY)	denied 5/10/04 (Read, J.)
People v Panlall	2d Dept: 4 AD3d 540 (Queens)	denied 5/19/04 (Ciparick, J.)
People v Parker (Charles)	3d Dept: 305 AD2d 858 (Schenectady)	denied 5/28/04 (Kaye, Ch.J.)
People v Parker (Torry)	2d Dept: 5 AD3d 507 (Kings)	denied 5/25/04 (Kaye, Ch.J.)
People v Parnell	4th Dept: 2 AD3d 1363 (Monroe)	denied 5/20/04 (Kaye, Ch.J.)
People v Parrella	1st Dept: 4 AD3d 132 (Bronx)	denied 5/19/04 (Rosenblatt, J.)
People v Perez (Esteban)	1st Dept: 4 AD3d 899 (NY)	denied 5/12/04 (Ciparick, J.)
People v Perez (Robert)	1st Dept: 4 AD3d 212 (Bronx)	denied 5/10/04 (Read, J.)
People v Perry (Charles)	1st Dept: 5 AD3d 237 (NY)	denied 5/19/04 (Rosenblatt, J.)
People v Perry (Marianne)	3d Dept: 4 AD3d 618 (Warren)	denied 5/21/04 (Kaye, Ch.J.)
People v Persad	2d Dept: 306 AD2d 359 (Queens)	denied 5/11/04 (Ciparick, J.) (upon reconsideration)
People v Phelps	4th Dept: 4 AD3d 863 (Erie)	denied 5/25/04 (Kaye, Ch.J.)
People v Piniero	1st Dept: 4 AD3d 132 (Bronx)	denied 5/19/04 (Rosenblatt, J.)
People v Pitsley	4th Dept: 4 AD3d 841 (Oswego)	denied 5/27/04 (Kaye, Ch.J.)
People v Platten (John)	App Div, 4th Dept, 10/27/03 (Genesee)	denied 5/20/04 (Kaye, Ch.J.)
People v Platten (John)	App Div, 4th Dept, 12/18/03 (Genesee)	dismissed 5/21/04 (Kaye, Ch.J.)
People v Plowden	2d Dept: 5 AD3d 609 (Suffolk)	denied 5/19/04 (Ciparick, J.)
People v Powell	2d Dept: 4 AD3d 489 (Kings)	denied 5/26/04 (Kaye, Ch.J.)
People v Prenatt	4th Dept: 5 AD3d 1130 (Ontario)	denied 5/5/04 (R.S. Smith, J.) (Appeal No. 1)
People v Price (Darnell)	1st Dept: 4 AD3d 254 (NY)	denied 5/10/04 (Read, J.)
People v Price (John)	1st Dept: 5 AD3d 117 (Bronx)	denied 5/17/04 (Grafteo, J.)
People v Pridgen	1st Dept: 3 AD3d 393 (NY)	denied 5/19/04 (Ciparick, J.)
People v Priest	3d Dept: 5 AD3d 862 (Schenectady)	denied 5/28/04 (Grafteo, J.)
People v Prince	4th Dept: 5 AD3d 1098 (Livingston)	denied 5/20/04 (Kaye, Ch.J.)

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People v Quani	2d Dept: 5 AD3d 609 (Suffolk)	denied 5/19/04 (Ciparick, J.)
People v Quinones	2d Dept: 2 AD3d 541 (Kings)	denied 5/21/04 (Kaye, Ch.J.)
People v Ramirez (Wilkins)	1st Dept: 5 AD3d 102 (NY)	denied 5/14/04 (Grafteo, J.) (Indictment No. 2433/00)
People v Ramirez (Wilkins)	1st Dept: 5 AD3d 102 (NY)	denied 5/14/04 (Grafteo, J.) (Indictment No. 710/00)
People v Ramos	1st Dept: 5 AD3d 1131 (NY)	denied 5/17/04 (Grafteo, J.)
People v Rapp	App Term, 1st Dept: 2 Misc 3d 130(A) (NY)	denied 5/27/04 (Kaye, Ch.J.)
People v Reed	1st Dept: 4 AD3d 120 (NY)	denied 5/14/04 (Ciparick, J.)
People v Reid	1st Dept: 3 AD3d 836 (NY)	denied 5/28/04 (Kaye, Ch.J.)
People v Reome	3d Dept: 309 AD2d 1067 (Clinton)	denied 5/25/04 (Rosenblatt, J.)
People v Rice	4th Dept: 5 AD3d 1074 (Ontario)	denied 5/18/04 (R.S. Smith, J.)
People v Rivera (Eveth)	1st Dept: 4 AD3d 131 (Bronx)	denied 5/14/04 (Grafteo, J.)
People v Rivera (Luis)	2d Dept: 5 AD3d 699 (Nassau)	denied 5/28/04 (Grafteo, J.)
People v Robinson (Marvin)	4th Dept: 5 AD3d 1096 (Monroe)	denied 5/17/04 (Grafteo, J.)
People v Robinson (Patrice)	4th Dept: 1 AD3d 985 (Monroe)	denied 5/28/04 (Grafteo, J.) (upon reconsideration)
People v Robinson (Ramone)	4th Dept: 5 AD3d 1077 (Erie)	denied 5/26/04 (Read, J.)
People v Robles	1st Dept: 5 AD3d 180 (NY)	denied 5/26/04 (Read, J.)
People v Rodgers	2d Dept: 6 AD3d 464 (Suffolk)	denied 5/28/04 (Grafteo, J.)
People v Rodriguez	1st Dept: 4 AD3d 300 (NY)	denied 5/26/04 (Read, J.)
People v Rogers	4th Dept: 5 AD3d 1096 (Onondaga)	denied 5/19/04 (Rosenblatt, J.)
People v Romain (Calvin)	2d Dept: 5 AD3d 611 (Kings)	denied 5/14/04 (Grafteo, J.)
People v Romain (Kenroy)	2d Dept: 5 AD3d 611 (Kings)	denied 5/14/04 (Grafteo, J.)
People v Rosario	1st Dept: 4 AD3d 116 (NY)	denied 5/10/04 (Read, J.)
People v Rouse	3d Dept: 4 AD3d 553 (Essex)	denied 5/19/04 (Rosenblatt, J.)

People v Rowell	4th Dept: 5 AD3d 1073 (Erie)	denied 5/10/04 (Read, J.)
People v Russo (Carmen)	4th Dept: 4 AD3d 777 (Chautauqua)	denied 5/14/04 (Grafteo, J.)
People v Russo (John)	1st Dept: 4 AD3d 133 (NY)	denied 5/4/04 (R.S. Smith, J.)
People v Rutigliano	2d Dept: 5 AD3d 403 (Queens)	denied 5/11/04 (Read, J.)
People v Santalis	2d Dept: 302 AD2d 614 (Suffolk)	denied 5/21/04 (Kaye, Ch.J.)
People v Santiago	2d Dept: 4 AD3d 545 (Kings)	denied 5/5/04 (R.S. Smith, J.)
People v Savery (Jason)	4th Dept: 2 AD3d 1426 (Oswego)	denied 5/22/04 (Kaye, Ch.J.) (Appeal No. 1)
People v Savery (Jason)	4th Dept: 2 AD3d 1426 (Oswego)	denied 5/22/04 (Kaye, Ch.J.) (Appeal No. 2)
People v Savery (Jason)	4th Dept: 2 AD3d 1427 (Oswego)	denied 5/22/04 (Kaye, Ch.J.) (Appeal No. 3)
People v Scher	1st Dept: 9 AD3d 71 (NY)	denied 5/19/04 (Grafteo, J.)
People v Schuh	4th Dept: 4 AD3d 751 (Erie)	denied 5/17/04 (Grafteo, J.)
People v Scott	1st Dept: 309 AD2d 573 (NY)	denied 5/26/04 (Read, J.)
People v Seberino	1st Dept: 2 AD3d 1491 (NY)	denied 5/11/04 (Kaye, Ch.J.)
People v Shahumyan (Arthur)	2d Dept: 5 AD3d 612 (Kings)	denied 5/28/04 (Grafteo, J.)
People v Shahumyan (Artur)	2d Dept: 5 AD3d 612 (Kings)	denied 5/28/04 (Grafteo, J.)
People v Shepard	1st Dept: 3 AD3d 393 (NY)	denied 5/19/04 (Ciparick, J.)
People v Silva	1st Dept: 5 AD3d 1131 (Bronx)	denied 5/28/04 (R.S. Smith, J.)
People v Simpson	2d Dept: 5 AD3d 613 (Kings)	denied 5/28/04 (Grafteo, J.)
People v Singh	2d Dept: 5 AD3d 403 (Kings)	denied 5/10/04 (Read, J.)
People v Singleton	App Term, 1st Dept: 2 Misc 3d 129(A) (NY)	denied 5/26/04 (Kaye, Ch.J.)
People v Smith (Damion)	4th Dept: 2 AD3d 1431 (Erie)	denied 5/28/04 (Rosenblatt, J.) (Appeal No. 1) (upon reconsideration)

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People v Smith (Damion)	4th Dept: 2 AD3d 1434 (Erie)	denied 5/28/04 (Rosenblatt, J.) (Appeal No. 2) (upon reconsideration)
People v Smith (Darnell)	4th Dept: 4 AD3d 899 (Monroe)	denied 5/10/04 (Read, J.)
People v Smith (Darren)	App Div, 1st Dept, 3/18/04 (NY)	denied 5/19/04 (Rosenblatt, J.)
People v Smith (Debra)	1st Dept: 6 AD3d 338 (NY)	denied 5/28/04 (Grafteo, J.)
People v Smith (Harold)	County Ct, 3/11/04 (Monroe)	denied 5/28/04 (Grafteo, J.)
People v Smith (James)	3d Dept: 4 AD3d 676 (Schenectady)	denied 5/12/04 (Ciparick, J.)
People v Smith (James E.)	4th Dept: 5 AD3d 1095 (Onondaga)	denied 5/28/04 (Grafteo, J.)
People v Smith (John)	4th Dept: 5 AD3d 991 (Monroe)	denied 5/28/04 (Rosenblatt, J.)
People v Smith (Juan)	1st Dept: 6 AD3d 303 (NY)	denied 5/25/04 (Rosenblatt, J.)
People v Smith (Shaun)	2d Dept: 5 AD3d 1133 (Queens)	denied 5/28/04 (R.S. Smith, J.)
People v Smith (Sindy)	1st Dept: 2 AD3d 175 (NY)	denied 5/21/04 (Kaye, Ch.J.)
People v Smythe	2d Dept: 1 AD3d 619 (Westchester)	denied 5/28/04 (Rosenblatt, J.)
People v Spagnualo	4th Dept: 5 AD3d 995 (Onondaga)	denied 5/28/04 (Rosenblatt, J.)
People v Sparling	App Div, 2d Dept, 2/10/04 (Suffolk)	dismissed 5/19/04 (Rosenblatt, J.)
People v Spehler	1st Dept: 9 AD3d 71 (NY)	denied 5/19/04 (Rosenblatt, J.)
People v Spragis	3d Dept: 5 AD3d 814 (Columbia)	denied 5/13/04 (Ciparick, J.)
People v Stoby	4th Dept: 4 AD3d 766 (Jefferson)	denied 5/4/04 (R.S. Smith, J.)
People v Stokes	App Div, 4th Dept, 4/5/04 (Cayuga)	dismissed 5/19/04 (Grafteo, J.)
People v Sweeney	4th Dept: 4 AD3d 769 (Erie)	denied 5/10/04 (Read, J.)
People v Swift	4th Dept: 5 AD3d 1131 (Cayuga)	denied 5/10/04 (Read, J.)
People v Tanasijevic	1st Dept: 5 AD3d 1131 (NY)	denied 5/28/04 (Kaye, Ch.J.)
People v Thomas (Andre)	1st Dept: 5 AD3d 305 (Bronx)	denied 5/28/04 (Grafteo, J.)
People v Thomas (Bernard)	App Div, 1st Dept, 2/24/04 (NY)	dismissed 5/10/04 (Read, J.)

People v Thomas (Kareem)	1st Dept: 5 AD3d 1131 (NY)	denied 5/10/04 (Read, J.)
People v Thompson	4th Dept: 4 AD3d 785 (Ontario)	denied 5/10/04 (Read, J.)
People v Thornton	3d Dept: 4 AD3d 561 (Albany)	denied 5/10/04 (Read, J.)
People v Toland	3d Dept: 2 AD3d 1053 (Montgomery)	denied 5/21/04 (Kaye, Ch.J.)
People v Torres	1st Dept: 4 AD3d 153 (Bronx)	denied 5/17/04 (Grafteo, J.)
People v Trinidad	1st Dept: 5 AD3d 231 (NY)	denied 5/26/04 (Read, J.)
People v Turner	3d Dept: 2 AD3d 891 (Sullivan)	denied 5/20/04 (Kaye, Ch.J.)
People v Tyler	1st Dept: 4 AD3d 183 (NY)	denied 5/17/04 (Grafteo, J.)
People v Valdez	3d Dept: 4 AD3d 679 (Albany)	denied 5/18/04 (R.S. Smith, J.)
People v Valez	1st Dept: 4 AD3d 899 (NY)	denied 5/5/04 (R.S. Smith, J.)
People v Valladi	1st Dept: 4 AD3d 195 (Bronx)	denied 5/25/04 (Kaye, Ch.J.)
People v Vargas	2d Dept: 4 AD3d 492 (Orange)	denied 5/20/04 (Kaye, Ch.J.)
People v Vatansever	2d Dept: 5 AD3d 406 (Kings)	denied 5/10/04 (Read, J.)
People v Velez	2d Dept: 5 AD3d 615 (Queens)	denied 5/19/04 (Rosenblatt, J.)
People v Vellake	3d Dept: 3 AD3d 787 (Tompkins)	denied 5/10/04 (Read, J.)
People v Verges	1st Dept: 5 AD3d 114 (NY)	denied 5/20/04 (Ciparick, J.)
People v Vernon	4th Dept: 5 AD3d 1094 (Erie)	denied 5/19/04 (Rosenblatt, J.)
People v Walker	4th Dept: 2 AD3d 1454 (Cayuga)	denied 5/20/04 (Kaye, Ch.J.)
People v Wallcott	2d Dept: 4 AD3d 493 (Kings)	denied 5/27/04 (Kaye, Ch.J.)
People v Walrond	1st Dept: 5 AD3d 145 (Bronx)	denied 5/17/04 (Grafteo, J.)
People v Walters	1st Dept: 4 AD3d 253 (NY)	denied 5/27/04 (Kaye, Ch.J.)
People v Ward	3d Dept: 2 AD3d 1219 (Rensselaer)	denied 5/12/04 (Kaye, Ch.J.)
People v Washington	2d Dept: 5 AD3d 510 (Kings)	denied 5/19/04 (Rosenblatt, J.)
People v Watson	1st Dept: 4 AD3d 174 (Bronx)	denied 5/27/04 (Kaye, Ch.J.)
People v Weay	2d Dept: 2 AD3d 468 (Queens)	denied 5/28/04 (Grafteo, J.)

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People v Webb	1st Dept: 5 AD3d 115 (NY)	denied 5/26/04 (Read, J.)
People v Westergreen	App Div, 1st Dept, 2/5/04 (NY)	dismissed 5/10/04 (Read, J.)
People v White	4th Dept: 4 AD3d 839 (Erie)	denied 5/5/04 (R.S. Smith, J.)
People v Whyte	1st Dept: 3 AD3d 458 (NY)	denied 5/11/04 (Kaye, Ch.J.)
People v Wilkinson	2d Dept: 5 AD3d 512 (Queens)	denied 5/7/04 (R.S. Smith, J.)
People v Willette	App Div, 3d Dept, 2/13/04 (Clinton)	denied 5/17/04 (Grafteo, J.)
People v Williams (Albert)	1st Dept: 303 AD2d 1059 (NY)	denied 5/12/04 (Kaye, Ch.J.)
People v Williams (Eddie)	4th Dept: 4 AD3d 852 (Monroe)	denied 5/28/04 (Kaye, Ch.J.)
People v Williams (Jason)	4th Dept: 4 AD3d 848 (Erie)	granted 5/17/04 (Rosenblatt, J.)
People v Williams (Kirk)	2d Dept: 4 AD3d 441 (Queens)	denied 5/7/04 (R.S. Smith, J.)
People v Williams (Omar)	2d Dept: 5 AD3d 514 (Suffolk)	denied 5/26/04 (Read, J.)
People v Williams (Sean)	2d Dept: 5 AD3d 705 (Kings)	denied 5/20/04 (Ciparick, J.)
People v Williams (Shawn)	4th Dept: 5 AD3d 1043 (Monroe)	denied 5/20/04 (Ciparick, J.)
People v Wilson	2d Dept: 5 AD3d 408 (Kings)	denied 5/7/04 (R.S. Smith, J.)
People v Winston	2d Dept: 4 AD3d 493 (Kings)	denied 5/27/04 (Kaye, Ch.J.)
People v Woodall	4th Dept: 5 AD3d 1132 (Onondaga)	denied 5/26/04 (Read, J.)
People v Young	2d Dept: 4 AD3d 441 (Kings)	denied 5/10/04 (Read, J.)
People v Yousef	4th Dept: 2 AD3d 1491 (Monroe)	denied 5/10/04 (Read, J.)
People v Zaker	4th Dept: 305 AD2d 978 (Genesee)	denied 5/20/04 (Kaye, Ch.J.) (upon reconsideration)
People v Zaso	4th Dept: 5 AD3d 1023 (Ontario)	denied 5/26/04 (Read, J.)
People v Zawadzki	4th Dept: 4 AD3d 862 (Erie)	denied 5/14/04 (Grafteo, J.)
People v Zito	County Ct, 10/2/03 (Columbia)	denied 5/19/04 (Rosenblatt, J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL**Decisions of Appellate Division Justices***

(May 1, 2004 through May 31, 2004)

People v Caban

1st Dept: 4 AD3d 274 (Bronx)

granted 5/11/04
(Andrias, J.)

[814 NE2d 429, 781 NYS2d 259]

SIGNATURE REALTY, INC., Appellant, v TIM TALLMAN, Doing Business as TALLMAN'S TIRE AND AUTO SERVICE, Respondent.

Argued April 28, 2004; decided June 3, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered March 21, 2003. The Appellate Division order, insofar as appealed from, with two Justices dissenting, affirmed an order of the Supreme Court, Oneida County (John S. Parker, J.), which had granted plaintiff summary judgment on its first cause of action related to the first term under the agreement and granted in part and denied in part defendant's motion to dismiss the complaint.

Signature Realty v Tallman, 303 AD2d 925, reversed.

HEADNOTE**Brokers — Real Estate Brokers — Commission**

In an action for brokerage commissions, an option to renew a lease for three five-year periods, as provided for in the subject lease, would fall within the broad category of "a lease, rental arrangement or other occupancy," unambiguously requiring payment of 10% of the rent in commission to plaintiff over the period of occupancy. Nothing in the parties' agreement limited the commission to the initial lease period. When parties set down their agreement in a clear, complete document, their writing should as a rule be enforced according to its terms. However, given that plaintiff did not cross-move for summary judgment, and the Court of Appeals is not empowered to grant it summary relief, the case is remitted for further proceedings.

APPEARANCES OF COUNSEL

Law Office of Richard L. Wolfe, Utica (*Richard L. Wolfe* of counsel), for appellant.

Kowalczyk, Tolles & Deery, LLP, Utica (*Robert K. Hilton, III*, of counsel), for respondent.

* Includes only applications that were granted.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division, insofar as appealed from, should be reversed, with costs, and the case remitted to Supreme Court for further proceedings in accordance with this memorandum.

As we recently stated in *R/S Assoc. v New York Job Dev. Auth.* (98 NY2d 29, 32 [2002]), “when parties set down their agreement in a clear, complete document, their writing should as a rule be enforced according to its terms” (*see also Reiss v Financial Performance Corp.*, 97 NY2d 195, 198 [2001], quoting *W.W.W. Assoc. v Giancontieri*, 77 NY2d 157, 162 [1990]). Nothing in the parties’ agreement limits the commission to the initial lease period. On the contrary, an option to renew a lease for three five-year periods, as provided for in the subject lease, would fall within the broad category of “a lease, rental arrangement or other occupancy,” unambiguously requiring payment of 10% of the rent over the period of occupancy.

Given that plaintiff did not cross-move for summary judgment, this Court is not empowered to grant it summary relief (*see Merritt Hill Vineyards v Windy Hgts. Vineyard*, 61 NY2d 106, 110-111 [1984]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur in memorandum.

Order, insofar as appealed from, reversed, etc.

[815 NE2d 657, 782 NYS2d 50]

AMNON GOLDSTEIN, Respondent, v ACCUSCAN, INC., et al., Appellants.

Argued April 28, 2004; decided June 3, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered August 4, 2003. The Appellate Division order, insofar as appealed from, with two Justices dissenting, affirmed a judgment of the Supreme Court, Westchester County (Orazio R. Bellantoni, J.), which had awarded plaintiff judgment against AccuScan in the sum of \$191,166.25.

Goldstein v AccuScan, Inc., 307 AD2d 913, affirmed.

HEADNOTE

Contracts — Construction

When parties set down their agreement in a clear, complete document, their writing should as a rule be enforced according to its terms. In this contract dispute, the agreement stated that defendant shall pay plaintiff consultant “10% of all amounts received” by it in excess of \$4 million in settlements obtained or license fees awarded for patents. The contract language “all amounts received” did not mean all amounts received net of attorneys’ fees. The existence of an attorney’s charging lien did not alter defendant’s contractual obligation.

APPEARANCES OF COUNSEL

Hofheimer Gartlir & Gross, LLP, New York City (*David L. Birch* of counsel), for appellants.

Muldoon, Horgan & Loughman, LLP, New Rochelle (*Edward D. Loughman, III*, of counsel) for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

“[W]hen parties set down their agreement in a clear, complete document, their writing should as a rule be enforced according to its terms” (*Signature Realty, Inc. v Tallman* (2 NY3d 810 [decided today], quoting *R/S Assoc. v New York Job Dev. Auth.*, 98 NY2d 29, 32 [2002]). The parties’ agreement states that AccuScan, Inc. shall pay its consultant, Amnon Goldstein, “10% of all amounts received” by AccuScan in excess of \$4 million in settlements obtained or license fees awarded regarding certain patents. AccuScan argues that “all amounts received,” in fact, means all amounts received net of attorneys’ fees. As the Appellate Division correctly observed, however, the contract’s clear language does not admit of this qualification (307 AD2d 913, 914 [2d Dept 2003]). Finally, the existence of an attorney’s charging lien does not alter AccuScan’s contractual obligation to Goldstein.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

Order affirmed, with costs, in a memorandum.

CARVEL CORPORATION, Appellant, v ELIZABETH A. NOONAN et al.,
Respondents, et al., Defendants, et al., Special Masters.

Submitted June 1, 2004; decided June 3, 2004

Motion by The Inverraz Group for leave to appear amicus curiae on consideration of the certified question herein granted to the extent that the proposed brief is accepted as filed.

Chief Judge KAYE taking no part.

In the Matter of MADISON-ONEIDA BOARD OF COOPERATIVE EDUCATIONAL SERVICES, Appellant, v RICHARD P. MILLS, as Commissioner of Education of the State of New York, et al., Respondents.

Submitted May 17, 2004; decided June 3, 2004

Reported below, 2 AD3d 1240.

Motion by New York State School Boards Association, Inc. for leave to file a brief amicus curiae on the appeal herein granted. Twenty copies of a brief may be filed and three copies served within 30 days.

ROGER MASON, Appellant, v CENTRAL SUFFOLK HOSPITAL et al., Respondents.

Submitted June 1, 2004; decided June 3, 2004

Reported below, 305 AD2d 556.

Motion by Healthcare Association of New York State for leave to appear amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed. Twenty copies of the brief may be filed and three copies served within 10 days.

JANET McCABE, as Administrator of the Estate of THADDEUS BOYCE, Deceased, and as Guardian of ALYSSA BOYCE, and Another, Appellant, v COMPETITION IMPORTS, INC., Doing Business as BMW OF SMITHTOWN, Respondent, et al., Defendant.

Submitted January 26, 2004; decided June 3, 2004

Reported below, 307 AD2d 576.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

SHARWLINE NICHOLSON et al., Respondents, v NICHOLAS SCOP-
PETTA et al., Appellants, et al., Defendants.

Submitted May 17, 2004; decided June 3, 2004

Motion by National Network to End Domestic Violence, Inc., et al. for leave to appear amici curiae on consideration of the certified question herein granted to the extent that the proposed brief is accepted as filed. Nineteen additional copies may be filed and two additional copies served within 10 days.

SHARWLINE NICHOLSON et al., Respondents, v NICHOLAS SCOP-
PETTA et al., Appellants, et al., Defendants.

Submitted May 17, 2004; decided June 3, 2004

Motion by Pennsylvania Coalition Against Domestic Violence et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed.

SHARWLINE NICHOLSON et al., Respondents, v NICHOLAS SCOP-
PETTA et al., Appellants, et al., Defendants.

Submitted May 17, 2004; decided June 3, 2004

Motion by National Coalition Against Domestic Violence et al. for leave to appear amici curiae on consideration of the certified question herein granted to the extent that the proposed brief is accepted as filed.

SHARWLINE NICHOLSON et al., Respondents, v NICHOLAS SCOP-
PETTA et al., Appellants, et al., Defendants.

Submitted May 24, 2004; decided June 3, 2004

Motion by New York State Coalition Against Domestic Violence et al. for leave to appear amici curiae on consideration of the certified question herein granted to the extent that the proposed brief is accepted as filed.

SHARWLINE NICHOLSON et al., Respondents, v NICHOLAS SCOP-
PETTA et al., Appellants, et al., Defendants.

Submitted May 24, 2004; decided June 3, 2004

Motion by The Appellate Advocacy Network et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed.

SHARWLINE NICHOLSON et al., Respondents, v NICHOLAS SCOP-
PETTA et al., Appellants, et al., Defendants.

Submitted May 24, 2004; decided June 3, 2004

Motion by Legal Momentum et al. for leave to file a brief amici curiae on consideration of the certified question herein granted and the proposed brief is accepted as filed. Nineteen additional copies of the brief may be filed and two additional copies served within 10 days.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TRACEY
DOUGLAS, Appellant.

Submitted May 17, 2004; decided June 3, 2004

Reported below, 309 AD2d 597.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 45 West 45th Street, 7th Floor, New York, NY 10036 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MARK
P. JONES, Appellant.

Submitted May 17, 2004; decided June 3, 2004

Reported below, 4 AD3d 853.

Motion for assignment of counsel granted and Edward J. Nowak, Esq., Monroe County Public Defender, 10 N. Fitzhugh Street, Rochester, New York 14614 assigned as counsel to the appellant on the appeal herein.

In the Matter of CHARLENE POLAN, Appellant, v STATE OF NEW
YORK INSURANCE DEPARTMENT, Respondent.

Submitted May 24, 2004; decided June 3, 2004

Reported below, 3 AD3d 30.

Motion by Association of the Bar of the City of New York for leave to file a brief amicus curiae on the appeal herein granted to the extent that the proposed brief is accepted as filed.

[— NE2d —, — NYS2d —]

HAROLD DAVIS, Appellant, v BRANFORD ESTATES, LTD., et al.,
Respondents.

Decided June 8, 2004

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 27, 2003. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Kings County (Martin Schneier, J.), which had granted plaintiff's motion to enter judgment against defendants, and (2) denied the motion.

Davis v Branford Estates, 305 AD2d 627, modified.

HEADNOTE

Judgments — Entry

An Appellate Division order, which reversed an order granting plaintiff's motion to enter judgment against defendants, is modified, by remitting to Supreme Court for entry of a judgment solely against defendants Leonard of Delaware Limited Partnership and 117-13 Union Turnpike Corp., individually and doing business as Leonard Worth Associates, LLC, and, as so modified, affirmed. The verdict sheet named Leonard Worth Associates instead of Leonard Worth Associates, LLC (LLC), as the defendant. The entire trial on liability was defended by Leonard Worth Associates, LLC, which made no motion or attempt to distinguish itself from Leonard Worth Associates, and the jury deliberations undisputedly concerned Leonard Worth Associates, LLC. Accordingly, defendant LLC's attempts to disavow liability after the verdict are unavailing.

APPEARANCES OF COUNSEL

Pollack, Pollack, Isaac & DeCicco, New York City (Brian J. Isaac of counsel), for appellant.

Thomas M. Bona, P.C., White Plains (*Stephanie K. Cervoni* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be modified, without costs, by remitting to Supreme Court for entry of a judgment solely against defendants Leonard of Delaware Limited Partnership and 117-13 Union Turnpike Corp. individually and doing business as Leonard Worth Associates, LLC, and, as so modified, affirmed.

The verdict sheet named Leonard Worth Associates instead of Leonard Worth Associates, LLC, as the defendant. The entire trial on liability was defended by Leonard Worth Associates, LLC (LLC), which made no motion or attempt to distinguish itself from Leonard Worth Associates, and the jury deliberations undisputedly concerned Leonard Worth Associates, LLC (*see Cullen v Naples*, 31 NY2d 818, 820 [1972]; *Dalrymple v Williams*, 63 NY 361, 364 [1875]). Accordingly, defendant LLC's attempts to disavow liability after the verdict are unavailing. Plaintiff's remaining arguments as to defendant Branford Estates, Ltd. lack merit.

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order modified, without costs, by remitting to Supreme Court, Kings County, for further proceedings in accordance with the memorandum herein and, as so modified, affirmed.

[814 NE2d 430, 781 NYS2d 260]

In the Matter of JOHN J. EMMETT, JR., et al., Appellants, v TOWN OF EDMESTON, Respondent, and DARRYL BARTON et al., Respondents.

Decided June 8, 2004

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered January 29, 2004. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, a judgment of the Supreme Court, Otsego County (Kevin M. Dowd, J.), entered in a proceeding pursuant to CPLR article 78, which had denied respondents'

motion to dismiss a petition challenging a land use variance, (2) granted the motion, and (3) dismissed the petition.

Matter of Emmett v Town of Edmeston, 3 AD3d 816, affirmed.

HEADNOTE

Parties — Necessary Parties

In a proceeding commenced against the Town and property owners challenging a zoning variance issued by the Zoning Board of Appeals (ZBA), petitioner's claims were directed at the ZBA determination granting the variance. Thus, they could not invoke the "relation back" doctrine (*see* CPLR 203 [b]) to avoid dismissal for failure to join the ZBA, a necessary party (*see* CPLR 1001, 1003). Use of the relation back doctrine requires "unity of interest" between the party in the proceeding and the nonparty. Petitioners' claim that the Town and the ZBA were united in interest must fail because a town and a zoning board of appeals are independent of each other where, as here, the ZBA was acting in its administrative capacity independent from the Town Board.

APPEARANCES OF COUNSEL

Vitanza, DiStefano & Dean, LLP, Norwich (Aaron A. Dean of counsel), for appellants.

Lester A. Sittler, Fly Creek, for Darryl Barton and another, respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Petitioners' claims are directed at a Zoning Board of Appeals (ZBA) determination granting a variance. Petitioners cannot invoke the "relation back" doctrine (*see* CPLR 203 [b]) to avoid dismissal for failure to join the ZBA, a necessary party (*see* CPLR 1001, 1003). Use of the "relation back" doctrine requires "unity of interest" between the party in the proceeding and the nonparty (*see Mondello v New York Blood Ctr.—Greater N.Y. Blood Program*, 80 NY2d 219, 226 [1992]). Petitioners' claim that the Town and the ZBA are united in interest must fail because a town and a zoning board of appeals are independent of each other where, as here, the ZBA is acting in its "administrative capacity independent from the Town Board" (*Matter of Commco, Inc. v Amelkin*, 62 NY2d 260, 266 [1984]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed, with costs, in a memorandum.

ALLEN HYMAN et al., Appellants, v QUEENS COUNTY BANCORP, INC., Doing Business as QUEENS COUNTY SAVINGS BANK, Respondent.

Submitted April 5, 2004; decided June 8, 2004

Reported below, 307 AD2d 984.

Motion, insofar as it seeks to dismiss the appeal from that portion of the Appellate Division order that dismissed the appeal to that Court from Supreme Court's order denying appellants' motion for "leave to renew and reargue," granted, without costs, upon the ground that such part of the order does not finally determine the action within the meaning of the Constitution; motion to dismiss the appeal otherwise denied. Motion to strike material from the record on appeal and references thereto in appellants' brief granted to the extent that the two additional photographs and the Edelson affidavit submitted on the motion for "leave to renew and reargue" and references thereto in appellants' brief are deemed stricken. Motion for an enlargement of the time to file a respondent's brief to 30 days after disposition of this motion granted.

JAMAICA PUBLIC SERVICE Co., LTD., Appellant, v LA INTERAMERICANA COMPANIA DE SEGUROS GENERALES S.A. et al., Respondents, et al., Defendants.

Submitted April 26, 2004; decided June 8, 2004

Reported below, 1 AD3d 130.

Motion, insofar as it seeks leave to appeal as against Seneca Insurance Company, dismissed as untimely (*see* CPLR 5513 [b]); motion, insofar as it seeks leave to appeal as against La Interamericana Compania de Seguros Generales S.A., denied.

LEONARD J. LEVENSON et al., Respondents, v JONATHAN LIPPMAN, as Chief Administrator of the Courts, et al., Appellants.

Submitted April 12, 2004; decided June 8, 2004

Reported below, 5 AD3d 86.

Motion for leave to appeal denied as unnecessary.

Chief Judge KAYE taking no part.

ZACHARY D. RUFFING et al., Plaintiffs, and ALYSSA PFLEGING et al., Appellants, v UNION CARBIDE CORPORATION et al., Defendants, and INTERNATIONAL BUSINESS MACHINES CORPORATION, Respondent.

Submitted May 3, 2004; decided June 8, 2004

Reported below, 1 AD3d 339.

Motion by the American Public Health Association for leave to appear amicus curiae on the motion for leave to appeal herein denied.

Judge ROSENBLATT taking no part.

ZACHARY D. RUFFING et al., Plaintiffs, and ALYSSA PFLEGING et al., Appellants, v UNION CARBIDE CORPORATION et al., Defendants, and INTERNATIONAL BUSINESS MACHINES CORPORATION, Respondent.

Submitted April 19, 2004; decided June 8, 2004

Reported below, 1 AD3d 339.

On the Court's own motion, appeal dismissed, without costs, upon the ground that the orders appealed from do not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

Judge ROSENBLATT taking no part.

[814 NE2d 456, 781 NYS2d 284]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GUSTAVO REYNOSO, Appellant.

Decided June 10, 2004

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Second Judicial Department, from an order of that Court, entered October 6, 2003. The Appellate Division affirmed a judgment of the Supreme Court, Queens County (Vincent Naro, J.), which had convicted defendant, upon

a jury verdict, of robbery in the first degree (two counts) and robbery in the second degree (two counts).

People v Reynoso, 309 AD2d 769, affirmed.

HEADNOTES

Crimes — Arrest

1. Defendant's claim that his warrantless arrest violated *Payton v New York* (445 US 573 [1980]) must be rejected where the arrest occurred either after defendant exited his home voluntarily or while he stood in his doorway.

Crimes — Right of Confrontation

2. There is no merit to defendant's claim that his constitutional right to confront witnesses was violated when the trial court allowed the People to elicit a statement that a nontestifying codefendant had made to a detective. The statement was admitted to show the detective's state of mind. The Confrontation Clause does not bar the use of testimonial statements for purposes other than establishing the truth of the matter asserted.

APPEARANCES OF COUNSEL

Lynn W.L. Fahey, New York City, and *Steven R. Bernhard* for appellant.

Richard A. Brown, District Attorney, Kew Gardens (*Traci R. Wilkerson* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

[1] We reject defendant's claim that his warrantless arrest violated *Payton v New York* (445 US 573 [1980]). The record reveals that the arrest occurred either after defendant exited his home voluntarily or while he stood in his doorway.

[2] Further, there is no merit to defendant's claim that his constitutional right to confront witnesses was violated when the trial court allowed the People to elicit a statement that a nontestifying codefendant had made to a detective. The statement was admitted not to establish the truth of the matter asserted, but rather to show the detective's state of mind. As the United States Supreme Court recently observed, "[t]he [Confrontation] Clause . . . does not bar the use of testimonial statements for purposes other than establishing the truth of the matter asserted" (*Crawford v Washington*, 541 US —, — n 9, 124 S Ct 1354, 1369 n 9 [2004], citing *Tennessee v Street*, 471 US 409, 414 [1985]).

Chief Judge KAYE and Judges G.B. SMITH, CIPARICK, ROSENBLATT, GRAFFEO, READ and R.S. SMITH concur.

On review of submissions pursuant to section 500.4 of the Rules of the Court of Appeals (22 NYCRR 500.4), order affirmed, in a memorandum.

In the Matter of ALFRED C. BLANCHE, Appellant, v GLENN S. GOORD, as Commissioner of the New York State Department of Correctional Services, Respondent.

Submitted May 3, 2004; decided June 10, 2004

Reported below, 4 AD3d 898.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

In the Matter of ANTHONY BOTTOM, Appellant, v BRION TRAVIS, as Chairman of the New York State Board of Parole, Respondent.

Submitted May 3, 2004; decided June 10, 2004

Reported below, 5 AD3d 1027.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

In the Matter of DIAMOND WATERPROOFING SYSTEMS, INC., Appellant, v 55 LIBERTY OWNERS CORP., Respondent.

Submitted May 21, 2004; decided June 10, 2004

Reported below, 6 AD3d 101.

Motion for leave to appeal granted. Motion for a stay pending disposition of the appeal granted.

JMD HOLDING CORP., Respondent, v CONGRESS FINANCIAL CORPORATION, Appellant, et al., Defendant.

Submitted April 19, 2004; decided June 10, 2004

Reported below, 5 AD3d 334.

Motion by Commercial Finance Association for leave to appear amicus curiae on the motion for leave to appeal herein granted and the affirmation and brief are accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. THURMAN
BROWN, Appellant, v THOMAS M. POOLE, Respondent.

Submitted May 3, 2004; decided June 10, 2004

Motion for leave to appeal dismissed upon the ground that the document from which leave to appeal is sought does not constitute an order or judgment appealable to this Court (*see* NY Const, art VI, § 3; CPLR 5602).

**MOTIONS FOR EXTENSION OF TIME TO APPLY
FOR PERMISSION TO APPEAL PURSUANT TO CPL 460.20**

Decided June 3, 2004

People v Figueroa	1st Dept: 308 AD2d 681	granted
People v Murchison	2d Dept: 4 AD3d 376	granted

**MOTIONS FOR LEAVE TO APPEAL/APPEALS
DISMISSED ON FINALITY GROUNDS**

Decided June 3, 2004

Chauvin v Keniry	3d Dept: 4 AD3d 700
Pietrantonio v Pietrantonio	4th Dept: 4 AD3d 742
Trentini v Metropolitan Prop. & Cas. Ins. Co.	3d Dept: 2 AD3d 957
Uzo v Uzo	2d Dept: 307 AD2d 1032

Decided June 8, 2004

Evans, Matter of, v Jewish Home & Hosp.	3d Dept: 1 AD3d 736
Garner v Sans	4th Dept: 5 AD3d 1121
Melnitzky v City of New York	1st Dept: 1 AD3d 222

Decided June 10, 2004

Cooper v Hempstead Gen. Hosp.	2d Dept: 2 AD3d 566
Lewittes v Lewittes	1st Dept: 2 AD3d 295
Port Chester, Vil. of, Matter of, v Martinez	2d Dept: 5 AD3d 692
Saccone v Elm Hill Plaza, LLC	4th Dept: 5 AD3d 1028

Summer v Marine Midland Bank, N.A. 4th Dept: 5 AD3d 1131

MOTIONS FOR REARGUMENT OR RECONSIDERATION

Decided June 8, 2004

People v Hemmings	2 NY3d 1	denied
People ex rel. Roache v Connell	1 NY3d 621	denied
Siagha v National Fire Ins. Co. of Pittsburgh, Pa.	2 NY3d 703	denied

Decided June 10, 2004

Jevtic v Liberty Mut. Ins. Co.	2 NY3d 730	denied
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DIGEST-INDEX

ABUSE OF PROCESS.

See PROCESS; TORTS.

ACCOUNTS AND ACCOUNTING.

See, also, BROKERS; EXECUTORS AND ADMINISTRATORS; GUARDIAN AND WARD; INCAPACITATED AND MENTALLY DISABLED PERSONS; JOINT VENTURES; LIMITATION OF ACTIONS; PARTNERSHIP; TRUSTS, and other specific titles.

ACTIONS.

See, also, ABATEMENT AND REVIVAL; DISMISSAL AND NONSUIT, and other specific titles.

ADMINISTRATORS.

See EXECUTORS AND ADMINISTRATORS.

AGENCY.

See BROKERS; INSURANCE; PRINCIPAL AND AGENT.

ALIMONY.

See HUSBAND AND WIFE.

ANNULMENT OF MARRIAGE.

See MARRIAGE.

APPEAL.

See, also, COSTS; COURTS; CRIMES; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

ACADEMIC AND MOOT QUESTIONS.

1. Challenge to Certificate Approving Construction in Historic District — Substantial Completion of Construction.—In a proceeding to review a certificate of appropriateness approving a proposal to construct a new building in a historic district, the appeal is dismissed as moot. Typically, the doctrine of mootness is invoked where a change in circumstances prevents a court from rendering a decision that would effectively determine an actual controversy. Where the change in circumstances involves a construction project, work progress must be considered. This construction project was substantially complete, and the property owner and developer had spent millions of dollars. Further, it cannot be said that the building's top several stories may readily be demolished without undue hardship. Petitioners were required, at a minimum, to seek an injunction to enjoin construction during this litigation's pendency. The exception to the mootness doctrine does not apply because there is a realistic likelihood that the issues presented here will recur with an adequately developed record and with a timely opportunity for review. *Matter of Citineighbors Coalition of Historic Carnegie Hill v New York City Landmarks Preserv. Commn.*, 2 NY3d 727.

ARBITRATION.

See, also, INSURANCE.

ARTICLE 78 PROCEEDING.

See PROCEEDING AGAINST BODY OR OFFICER.

BANKS AND BANKING.

See, also, Bills, Notes and Checks.

BILLS, NOTES AND CHECKS.

See, also, Banks and Banking.

BROKERS.**REAL ESTATE BROKERS.**

1. Commission.—In an action for brokerage commissions, an option to renew a lease for three five-year periods, as provided for in the subject lease, would fall within the broad category of “a lease, rental arrangement or other occupancy,” unambiguously requiring payment of 10% of the rent in commission to plaintiff over the period of occupancy. Nothing in the parties’ agreement limited the commission to the initial lease period. When parties set down their agreement in a clear, complete document, their writing should as a rule be enforced according to its terms. However, given that plaintiff did not cross-move for summary judgment, and the Court of Appeals is not empowered to grant it summary relief, the case is remitted for further proceedings. *Signature Realty, Inc. v Tallman*, 2 NY3d 810.

CERTIORARI.

See PROCEEDING AGAINST BODY OR OFFICER.

CHIROPRACTORS.

See LICENSES; PHYSICIANS AND SURGEONS.

CHURCHES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

CITIES.

See MUNICIPAL CORPORATIONS.

CIVIL RIGHTS.**DISCRIMINATION IN EMPLOYMENT.**

1. New York City Human Rights Law — Municipality Not Liable for Punitive Damages.—A person claiming gender-based employment discrimination under New York City Human Rights Law (Administrative Code of City of NY) § 8-502 (a) may not recover punitive damages from the City of New York. A municipality is not liable for punitive damages flowing from its employees’ misconduct in the absence of express legislative authorization to the contrary. The code provision at issue does not clearly, expressly and specifically waive the City’s sovereign immunity. Although the provision does expressly reference punitive damages, the reference is insufficient to constitute a waiver. There is no specific reference to the municipality in the provision itself, and the provision begins with the phrase, “[e]xcept as otherwise provided by law.” Nor is there any indication that the City Council discussed, debated, or even contemplated exposing the City to punitive damages or the potential fiscal impact of punitive damages on the City. *Krohn v New York City Police Dept.*, 2 NY3d 329.

FEDERAL CIVIL RIGHTS CLAIM.

2. Improper Denial of Land-Use Permit Application — Equal Protection.—In a civil rights action to recover damages pursuant to 42 USC § 1983 for delays occasioned by the municipal defendants’ wrongful refusal to consent to plaintiff’s land-use permit application, plaintiff failed to establish an equal protection violation in support of its claims. In order to prove an equal protection claim sounding in selective enforcement, a claimant must demonstrate that he or she, compared with others similarly situated, is selectively treated, and that such treatment is based on impermissible considerations, or malicious or bad faith intent to injure the claimant. Plaintiff home improvement retailer did not allege selective treatment based on

CIVIL RIGHTS—Cont'd

impermissible reasons, and it failed to demonstrate that defendants singled out its request for consent to a road-widening permit with malevolent intent. *Bower Assoc. v Town of Pleasant Val.*, 2 NY3d 617.

3. Improper Denial of Land-Use Permit Applications — Substantive Due Process.—In two civil rights actions to recover damages pursuant to 42 USC § 1983 for delays occasioned by the municipal defendants' wrongful refusal to consent to plaintiffs' land-use permit applications, plaintiffs failed to establish any substantive due process violations in support of their claims. In order to prove a substantive due process violation, a claimant must establish a cognizable property interest, meaning a vested property interest, and must show that the governmental action was wholly without legal justification. The municipal defendants had discretion in determining plaintiffs' applications, and their discretion was not so narrowly circumscribed that approval was virtually assured. Although both plaintiffs prevailed in their respective CPLR article 78 proceedings, their victories did not establish a constitutionally protected property interest. Moreover, the municipalities' actions, while arbitrary in an article 78 sense, were not so egregious as to be constitutionally arbitrary. *Bower Assoc. v Town of Pleasant Val.*, 2 NY3d 617.

CIVIL SERVICE.

See, also, ARBITRATION; LABOR UNIONS; MUNICIPAL CORPORATIONS; PUBLIC OFFICERS; SCHOOLS, and other specific titles.

DISCIPLINARY PUNISHMENT.

1. Respondent School District did not abuse its discretion in terminating petitioners, two long-time employees, as the penalty does not shock judicial conscience. The terminations were based on petitioners' misconduct in selling at least 14,000 untaxed cigarettes on school property and using a school vehicle to store the cigarettes. This misconduct, which occurred over several months, involved the misappropriation of work time and a violation of the District's trust and policy. *Matter of Scahill v Greece Cent. School Dist.*, 2 NY3d 754.

2. An administrative penalty must be upheld unless it is so disproportionate to the offense as to be shocking to one's sense of fairness, thus constituting an abuse of discretion as a matter of law. Under the circumstances of this case, wherein petitioner manager failed to take immediate action in response to an allegation of sexual harassment and filed a false and misleading report regarding the incident, it cannot be concluded, as a matter of law, that the penalty of demotion shocks the judicial conscience. *Matter of Kreisler v New York City Tr. Auth.*, 2 NY3d 774.

POLICE.

3. Discipline of Police.—In a proceeding to review a determination finding petitioner police officer guilty of failing to render all necessary police services and imposing a forfeiture penalty of 15 vacation days, the Appellate Division erred in annulling the determination. The Appellate Division majority improperly substituted its credibility determinations for those of the Police Commissioner. A rational basis existed in the record to support the Police Commissioner's determination that petitioner failed to render all necessary police services. The Police Commissioner did not abuse his discretion in ordering the forfeiture of 15 days' vacation time because the penalty does not shock judicial conscience in light of the serious nature of the offense. *Matter of Rodriguez-Rivera v Kelly*, 2 NY3d 776.

PUBLIC EMPLOYEES' FAIR EMPLOYMENT ACT.

4. Jurisdiction of Public Employment Relations Board.—Respondent Public Employment Relations Board (PERB) had jurisdiction over the improper practice charge alleging that petitioner town failed to maintain the status quo during negotiations for a successor collective bargaining agreement by refusing to calculate holiday pay in accordance with an expired interest arbitration award. The charge involved petitioner's conduct after the expiration of both the collective bargaining agreement and the interest arbitration award, and during the time when the parties were under a duty to negotiate a successor agreement. It did not involve enforce-

CIVIL SERVICE—Cont'd

ment of an agreement, and did not invoke the limitation on PERB's jurisdiction found in Civil Service Law § 205 (5) (d). *Matter of Town of Southampton v New York State Pub. Empl. Relations Bd.*, 2 NY3d 513.

5. Negotiations in Good Faith — Definition of Status Quo.—In finding that petitioner town had violated Civil Service Law § 209-a (1) (d) by failing to continue the status quo during negotiations with the town's police benevolent association (PBA) for a successor collective bargaining agreement, respondent Public Employment Relations Board (PERB) reasonably defined the status quo to include an overtime provision in an expired interest arbitration award. The award effectively redefined the parties' agreement on that mandatory term and condition of employment, and if petitioner had wanted to alter the change wrought by the award, it was obligated to obtain PBA's consent through collective bargaining. *Matter of Town of Southampton v New York State Pub. Empl. Relations Bd.*, 2 NY3d 513.

RETIREMENT AND PENSION BENEFITS.

6. Three-Quarters Disability Retirement — Right to Medical Review.—Tier IV emergency medical technicians (EMTs) and advanced EMTs whose applications pursuant to Retirement and Social Security Law § 607-b for performance-of-duty three-quarters disability retirement benefits were denied, were not entitled to medical review of their adverse determinations pursuant to Retirement and Social Security Law § 605 (e). Section 607-b was enacted to provide Tier IV EMTs with the enhanced disability retirement benefits available to their firefighter counterparts. Firefighters are not entitled to a medical review under section 605 (e), and affording the EMTs the additional level of review would create a new disparity between EMTs and firefighters. Moreover, section 607-b does not reference section 605 (e), and section 605 (e) states that it applies only to those who seek benefits "pursuant to this section." *Matter of Roberts v Murphy*, 2 NY3d 641.

CLUBS.

See ASSOCIATIONS.

CONDEMNATION.

See EMINENT DOMAIN.

CONSTITUTIONAL LAW.

DUE PROCESS OF LAW. *See* CIVIL RIGHTS, 3.

EQUAL PROTECTION OF LAWS. *See* CIVIL RIGHTS, 2.

VALIDITY OF STATUTE.

1. Municipal Assistance Corporation Refinancing Act.—The Municipal Assistance Corporation Refinancing Act (L 2003, ch 62, part A4; ch 63, part V), enacted to provide for an annual appropriation of funds to defendant New York City in order to assist the City in retiring certain long-term debt, does not violate the constitutional prohibition in NY Constitution article VII, § 11, against imposing upon the State a multiyear payment obligation without subjecting the payments to either a referendum or a legislative appropriation. The 30 annual payments that plaintiff Local Government Assistance Corporation (LGAC) is required to make on behalf of the State to the City under the Act, which was passed without a public referendum, are subject to annual appropriations in satisfaction of that constitutional provision. The Act's amendment to Public Authorities Law § 3240 (5) does not obligate the State to provide the funds for LGAC's payments even without an appropriation. The amendment was intended to prevent the State from changing the specific timing of the payments mandated under the Act. The Act otherwise continues explicitly to require that the payments be subject to annual legislative appropriation. *Local Govt. Assistance Corp. v Sales Tax Asset Receivable Corp.*, 2 NY3d 524.

2. Municipal Assistance Corporation Refinancing Act.—The Municipal Assistance Corporation Refinancing Act (L 2003, ch 62, part A4; ch 63, part V), enacted to provide for an annual appropriation of funds to defendant New York City in order

CONSTITUTIONAL LAW—Cont'd

to assist the City in retiring certain long-term debt, does not violate the constitutional prohibition in NY Constitution, article VIII, § 2, against municipalities contracting debt without pledging their faith and credit for the payment of the principal and interest on the debt. The Act permits the City to assign to defendant Sales Tax Asset Receivable Corporation (STARC) the City's right to receive the annual payments plaintiff Local Government Assistance Corporation (LGAC) is required to make to the City on behalf of the State. The City did not incur any enforceable debt with respect to the assignment because it has no legal obligation either to STARC or to its bondholders should LGAC fail to make its payments to STARC. Moreover, even if the City would otherwise have an interest in the LGAC payments, the diversion of municipal funds to a public benefit corporation does not necessarily run afoul of the State Constitution. *Local Govt. Assistance Corp. v Sales Tax Asset Receivable Corp.*, 2 NY3d 524.

3. Municipal Assistance Corporation Refinancing Act.—The Municipal Assistance Corporation Refinancing Act (L 2003, ch 62, part A4; ch 63, part V), enacted to provide for an annual appropriation of funds to defendant New York City in order to assist the City in retiring certain long-term debt, does not violate the constitutional prohibition in US Constitution, article I, § 10 against states passing laws impairing the obligation of contracts. While Public Authorities Law § 3238-a, as added by the Act, requires Local Government Assistance Corporation (LGAC) to make annual payments to the City on behalf of the State, it does not modify or repeal the State's pledge to honor the contractual rights and remedies of LGAC's bondholders pursuant to Public Authorities Law § 3241 (1). Pursuant to their contract with LGAC, and as confirmed in section 3241 (1), the bondholders have first priority on LGAC's appropriated funds. Section 3238-a does not expressly undermine section 3241 (1) or otherwise establish a new order of priority on the payments LGAC must make from its appropriated funds. *Local Govt. Assistance Corp. v Sales Tax Asset Receivable Corp.*, 2 NY3d 524.

CONTRACTS.

See, also, ARBITRATION; BILLS, NOTES AND CHECKS; BROKERS; FRAUDS, STATUTE OF; INFANTS; INSURANCE; LANDLORD AND TENANT; MORTGAGES; MUNICIPAL CORPORATIONS; SALES; SPECIFIC PERFORMANCE; STATE; VENDOR AND PURCHASER, and other specific titles.

CONSTRUCTION.

1. When parties set down their agreement in a clear, complete document, their writing should as a rule be enforced according to its terms. In this contract dispute, the agreement stated that defendant shall pay plaintiff consultant "10% of all amounts received" by it in excess of \$4 million in settlements obtained or license fees awarded for patents. The contract language "all amounts received" did not mean all amounts received net of attorneys' fees. The existence of an attorney's charging lien did not alter defendant's contractual obligation. *Goldstein v AccuScan, Inc.*, 2 NY3d 811.

CORPORATIONS.**NOT-FOR-PROFIT CORPORATION.**

1. Sale of Assets.—Supreme Court, having disapproved the sale by defendant not-for-profit hospital of its assets to plaintiff, should have addressed the reimbursement provision in the parties' contract calling for defendant to reimburse plaintiff for out-of-pocket expenses in an amount up to \$800,000 should the defendant fail to obtain judicial approval of the proposed sale. A court reviewing the proposed sale by certain not-for-profit corporations of all or substantially all of their assets must assess whether "the consideration and the terms of the transaction are fair and reasonable to the corporation and that the purposes of the corporation or the interests of the members will be promoted" (N-PCL 511 [d]). These review requirements applied to the parties' contract as a whole, including the reimbursement provision. Accordingly, the case was remitted to Supreme Court to determine whether the reimbursement provision was fair, reasonable, and in furtherance of defendant's purpose. *64th Assoc., L.L.C. v Manhattan Eye, Ear & Throat Hosp.*, 2 NY3d 585.

COUNTIES.

See, also, MUNICIPAL CORPORATIONS.

COURT OF CLAIMS.

See STATE.

CRIMES.

See, also, BAIL; CONSTITUTIONAL LAW; CONTEMPT; COURTS; DISTRICT AND PROSECUTING ATTORNEYS; EXTRADITION; GRAND JURY; HABEAS CORPUS; INFANTS (JUVENILE DELINQUENTS, YOUTHFUL OFFENDERS); MOTOR VEHICLES; PAROLE; PRISONS AND PRISONERS, and other specific titles.

APPEAL.

1. Challenge to Duration of Order of Protection.—Permanent orders of protection entered “[u]pon conviction” under CPL 530.13 (4) may be challenged by a defendant in an appeal from the judgment of conviction. Although the CPL article generally addressing criminal appeals does not explicitly reference orders of protection, CPL 450.10 authorizes a defendant to appeal from a judgment in a criminal case, which brings up for review many of the orders and rulings that precede or are part of it. Permanent orders of protection are part of the final adjudication of a criminal action. The better practice, however, would be for a defendant seeking adjustment of such an order to request relief from the issuing court in the first instance, resorting to the appellate courts only if necessary. *People v Nieves*, 2 NY3d 310.

2. Preservation of Issue for Review — Duration of Order of Protection.—Defendant’s challenges to the duration and scope of the permanent orders of protection issued against him at his sentencing, raised for the first time on appeal, did not fall within the illegal sentence exception to the preservation requirement. Although the orders were issued at the sentencing proceeding, they were not a part of defendant’s sentence. Even if they were defective in duration and scope, those defects did not render defendant’s sentence of incarceration invalid, and the orders were not reviewable by the Court of Appeals. *People v Nieves*, 2 NY3d 310.

ARREST.

3. Defendant’s claim that his warrantless arrest violated *Payton v New York* (445 US 573 [1980]) must be rejected where the arrest occurred either after defendant exited his home voluntarily or while he stood in his doorway. *People v Reynoso*, 2 NY3d 820.

CAPITAL MURDER.

4. Defendant Not Entitled to Bench Trial.—Defendant was not entitled to the option of a bench trial to alleviate the alleged prejudicial effects of pretrial publicity and consolidation of his indictments for assault and capital murder. There was no prejudicial impact from the pretrial publicity or the consolidation of the indictments. Moreover, state constitutional and statutory law prohibited defendant from waiving his right to a jury trial (NY Const, art I, § 2; CPL 320.10), and he did not have a federal constitutional right to a bench trial. *People v Cahill*, 2 NY3d 14.

5. Murder in Furtherance of Second Degree Burglary — Separate Intent Required.—Defendant’s conviction under Penal Law § 125.27 (1) (a) (vii) for committing first degree murder in the course and in furtherance of second degree burglary by sneaking into his wife’s hospital room and poisoning her while she was recovering from serious injuries he had previously inflicted upon her must be vacated, as defendant did not have a felonious intent independent of the murder itself. Defendant’s trespass on the hospital premises was merely a prerequisite to his committing the murder—an enabling measure that had no purpose or substance other than to serve his only goal, to kill his victim. Burglary requires an intent to commit a crime in the burglarized premises, and here the prosecutor used defendant’s intent to kill his wife to both satisfy the burglary definition and elevate defendant’s intentional murder to first degree murder. In order to be eligible for the death penalty, a burglar must have entered the building with the intent to commit a separate crime, such as steal, rob, or rape, and in addition have killed someone

CRIMES—Cont'd

intentionally, in the course and in furtherance of the burglary. *People v Cahill*, 2 NY3d 14.

6. Witness Elimination — Applicable Standard.—In a prosecution for first degree murder based on witness elimination under Penal Law § 125.27 (1) (a) (v), the statute is satisfied if the defendant's motivation to eliminate the victim as a witness is a substantial factor in murdering the victim, even though the defendant may have had mixed motives. *People v Cahill*, 2 NY3d 14.

7. Witness Elimination — Legal Sufficiency of Evidence.—Defendant's first degree murder conviction based on witness elimination under Penal Law § 125.27 (1) (a) (v) for poisoning his wife with cyanide while she was in the hospital recovering from serious injuries he had inflicted upon her six months earlier was based on legally sufficient evidence. The prosecution established a timeline linking Family Court appearances concerning the parties' children with defendant's search for cyanide, developments in defendant's assault case with his procurement of cyanide, defendant's conversation with his mother about her visit to his wife in the hospital with defendant's first disguised entrance into the hospital, and defendant's upcoming *Huntley* hearing in the assault case with his having committed the murder. Viewed in the light most favorable to the People, the timeline theory established a legally sufficient case. *People v Cahill*, 2 NY3d 14.

8. Witness Elimination — Verdict against Weight of Evidence.—Defendant's first degree murder conviction based on witness elimination under Penal Law § 125.27 (1) (a) (v) for poisoning his wife while she was in the hospital recovering from serious injuries he had inflicted upon her six months earlier was against the weight of the evidence and must be vacated. Although the prosecution established a legally sufficient case with a timeline theory linking certain developments in defendant's assault prosecution with his having committed the murder, the weight of the evidence at trial did not support witness elimination as a substantial motive for the murder. Rather, it led to the conclusion that defendant wanted to kill his wife for reasons that had virtually nothing to do with her ability to testify against him. *People v Cahill*, 2 NY3d 14.

9. Felony Murder — Conflicting Versions of Murder.—In a prosecution for first degree murder under Penal Law § 125.27 (1) (a) (vii) in which it was alleged that defendant kidnapped the victim and either fatally shot the victim himself, or commanded his wife to do so, the prosecutor did not violate due process by positing a different murder theory from that argued at the previous trial of defendant's wife. The prosecutor argued at both trials that defendant's wife shot the victim, and at both trials defendant was portrayed as the driving force behind the crime. An additional theory was offered at defendant's trial, based on his own written statement, that defendant pulled the trigger. The prosecutor never discredited the evidence he previously offered to convict defendant's wife, but instead used it to prove that defendant commanded her to shoot the victim. Under the circumstances, the People did not have to choose one defendant over the other to prosecute as the shooter. *People v Mateo*, 2 NY3d 383.

10. Felony Murder — Conflicting Versions of Murder.—In a prosecution for first degree felony murder under Penal Law § 125.27 (1) (a) (vii), due process did not require that the prosecution's theory that defendant commanded his wife to shoot the victim be considered by the jury apart from the prosecution's other theory that defendant himself shot the victim. Nor did due process require that the jury be unanimous on one theory or another. The trial court properly instructed the jury that it could convict defendant of first degree murder either as a commander or as a shooter. "Command" is not set forth as a separate element of the first degree felony murder offense. Moreover, there is no moral disparity between actual killers and commanders which would prohibit treating them as alternative means to satisfy an element of first degree felony murder. *People v Mateo*, 2 NY3d 383.

11. Murder in Furtherance of First Degree Kidnapping — Verdict Not against Weight of Evidence.—Defendant's conviction under Penal Law § 125.27 (1) (a) (vii) for committing first degree murder in the course of and in furtherance of first degree kidnapping was not against the weight of the evidence. It was undisputed

CRIMES—Cont'd

that defendant engineered and carried out the armed kidnapping of the victim, decided to kill him, handcuffed him, and led him down to the basement, and that the victim died of an intentional gunshot wound to the head. Whether the jury believed that defendant ordered his wife to shoot the victim, as supported by the circumstantial evidence, or that defendant shot the victim himself, as he acknowledged in his written statement, it was justified in finding that defendant was squarely in charge of the kidnapping and shooting of the victim. *People v Mateo*, 2 NY3d 383.

12. Unconstitutional Plea Provisions.—Defendant, having been prosecuted for capital murder under an unconstitutional two-tiered penalty scheme procedure in which only those defendants who exercised their Fifth Amendment right against self-incrimination and Sixth Amendment right to a jury trial put themselves at risk of death, was entitled to have his death sentence stricken. The plea provisions had initially been declared unconstitutional by the trial court, but the subsequent declaration by the Appellate Division, Fourth Department, prior to defendant's trial that the plea provisions were constitutional (*see Matter of Relin v Connell*, 251 AD2d 1041) rendered those provisions operational in defendant's prosecution. After defendant was convicted, the Fourth Department was reversed and the provisions were struck as unconstitutional (*see* 92 NY2d 613). Based on the binding precedent in effect at the time of defendant's trial, defendant could have sought to avoid exposure to a death sentence only by waiving his right to a jury trial and pleading guilty. Accordingly, the appropriate remedy was to vacate the sentence and remit the case to County Court for resentencing in accordance with CPL 470.30 (5) (c) and Penal Law §§ 60.06 and 70.00 (5). *People v Mateo*, 2 NY3d 383.

CONFESSION.

13. Admissibility of Confession to Unrelated Murders.—Defendant was not deprived of a fair trial through the admission, following re-cross-examination of an investigator who had questioned defendant, of defendant's statements regarding murders other than the one for which he was prosecuted. The main issue for the jury was whether defendant was guilty of second degree murder as an accomplice, or intentional first degree murder as either the shooter or the person who commanded the shooter. The interrogation of defendant, as a whole, was probative of a material issue—defendant's motive for confessing to the murder for which he was prosecuted—and could have aided the jury in assessing the truthfulness of that portion of defendant's confession. Defendant himself made his motive for confessing an issue in his trial, and sought to exploit the trial court's pretrial ruling prohibiting the prosecution from eliciting testimony on direct examination regarding the portions of defendant's confession in which he admitted to the other murders, thereby opening the door to admission of his full confession. The trial court acted within the boundaries of discretion in ultimately concluding that the probative value of the full confession was not substantially outweighed by its potential for prejudice to defendant. *People v Mateo*, 2 NY3d 383.

14. Voluntariness of Confession.—The confession defendant made while in custody was voluntary and admissible against him in his capital murder prosecution. Although one of the investigators questioning defendant told him that he would check on the status of the family members who were in the car with defendant at the time of his arrest, the investigator did not lead defendant to believe that he was receiving lenient treatment for family members in exchange for his confession. Defendant confessed without any prompting other than for more information. The investigators who questioned defendant were not required to dissuade him from making incriminating statements, or disabuse him of his fantasy that he could control the circumstances of the interrogation and win the release of his family. Moreover, defendant was given his *Miranda* warnings, offered food, drink, cigarettes, and medical treatment for his injured leg, allowed two meetings with his brother and one with his wife, and permitted to call his mother. *People v Mateo*, 2 NY3d 383.

CONSOLIDATION AND SEVERANCE.

15. Consolidation of Assault and Capital Murder Indictments.—The trial court did not abuse its discretion in allowing consolidation of defendant's assault and capital murder indictments for trial. CPL 200.20 (2) (b) permits joinder of offenses

CRIMES—Cont'd

based on different criminal transactions if proof of one offense would be material and admissible in a trial for the other offense. Here, defendant was accused of assaulting his wife and then murdering her six months later while she was in the hospital recovering from her injuries. The prosecution based one of its murder charges on the victim's potential testimony in the assault trial, making proof of the assault relevant to the murder case. *People v Cahill*, 2 NY3d 14.

16. Right to Plead Guilty to Part of Consolidated Indictment.—Defendant, charged initially with assault, and then charged in a consolidated indictment almost seven months later with assault and capital murder, did not have a right to plead guilty to only the assault portion of the indictment. He could have pleaded guilty to assault before the indictments were consolidated. After consolidation, he could have pleaded guilty to the entire indictment, had the prosecution determined not to seek the death penalty, but not to only a portion of it without the consent of the prosecution and the court (CPL 220.10 [2], [4]). *People v Cahill*, 2 NY3d 14.

CONTROLLED SUBSTANCES.

17. Criminal Sale.—In a prosecution for sale of heroin, the trial court did not abuse its discretion in allowing the arresting officer to testify that the packaging of 14 glassine envelopes of heroin recovered from defendant was inconsistent with personal use and consistent with the packaging that the officer had encountered in previous drug sale arrests. The arresting officer was properly qualified as a narcotics expert. The officer's testimony regarding quantity and packaging was helpful to the jury in understanding the evidence and reaching a verdict, where the defense was that defendant possessed the heroin for his personal use. Based on day-to-day experience, common observation and knowledge, the average juror might not be aware of the quantity and packaging of heroin carried by someone selling drugs, as opposed to someone who merely used them. Since the expert testimony was beyond the ken of the average juror, it matters not whether the testimony related to the ultimate issue in the case. *People v Hicks*, 2 NY3d 750.

CRIMINAL CONTEMPT.

18. Guilty Plea Forfeits Objection to Validity of Order of Protection.—In a prosecution for criminal contempt in the second degree based on allegations that defendant violated an order of protection issued incident to a bad check prosecution, defendant, having pleaded guilty to attempted criminal contempt in the second degree, forfeited his right to argue that his conviction should be reversed and the accusatory instrument dismissed on the ground that the order of protection was invalid under CPL 530.13 (4). A guilty plea generally results in a forfeiture of the right to appellate review of any nonjurisdictional defects in the criminal proceeding. Here, defendant's claim that City Court erred in issuing the order of protection because the party protected was not a victim or witness in the bad check proceeding did not implicate the jurisdiction of the courts and was not of constitutional dimension. Although the order of protection did not indicate whether the person to be protected was a victim or a witness, that was not a defect because the issuing court was not required to designate the protected party's status on the face of the order. As a facially valid judicial mandate, the order of protection was entitled to the presumption of regularity for purposes of fulfilling the pleading requirements. *People v Konieczny*, 2 NY3d 569.

FAIR TRIAL. See **CRIMES**, 22.

FORGERY.

19. Defendant Signing Own Name to Check in Excess of Authority.—Defendant's conduct in signing his own name to a corporate check in excess of his authority did not constitute forgery under Penal Law § 170.10. Where, as here, the ostensible maker and the actual maker of the written instrument alleged to be falsely made are one and the same, there can be no forgery. A person who signs a name to an instrument and acknowledges it as his own is the ostensible maker as contemplated by the statute. The check signed by defendant was an authentic creation of its ostensible maker, defendant, despite his lack of authority to sign it. Authority and

CRIMES—Cont'd

authenticity are not the same thing. Signing a check with one's own name but beyond one's authority would, however, ordinarily fall within the larceny statutes. *People v Cunningham*, 2 NY3d 593.

IDENTIFICATION OF DEFENDANT.

20. Admissibility of Precluded Evidence upon Opening of Door by Defense.—In a robbery prosecution where evidence of a witness's photographic identification and subsequent lineup identification of defendant was inadmissible, Supreme Court was within its discretion in ruling that, if defendant chose to cross-examine the witness about the first identification, the door would be open to evidence of the second. A trial court should decide "door-opening" issues by considering whether, and to what extent, the evidence or argument said to open the door is incomplete and misleading, and what if any otherwise inadmissible evidence is reasonably necessary to correct the misleading impression. Here, defendant wanted to bring out before the jury the suggestive nature of the photographic identification and the witness's initial uncertainty in order to attack the witness's in-court identification of defendant. This tactic would, however, mislead the jury, which would not know that the witness had made a second pretrial identification that was not suggestive. *People v Massie*, 2 NY3d 179.

21. Lineup Conducted after Arrest of Defendant in Violation of *Payton* — State Constitution.—In a robbery prosecution where a lineup was conducted after police arrested defendant at his residence without a warrant or consent to enter, in violation of *Payton v New York* (445 US 573 [1980]), but with probable cause for the arrest, evidence of the eyewitness lineup identifications was not required to be suppressed under the New York Constitution. Although the Search and Seizure Clause of the New York Constitution (art I, § 12) generally requires the suppression of incriminating statements elicited during a custodial interrogation conducted without counsel following a *Payton* violation, that rule is premised on the principle that an arrestee has an absolute right to remain silent during custodial interrogation. By contrast, a person lawfully in custody does not have a concomitant right to refuse to participate in a lineup. Here, allowing evidence of the lineup identifications to be admitted did not put the People in a better position than they would have been if the *Payton* violation had not occurred. In the absence of a causal relationship between the *Payton* violation and the lineup identifications, the identifications did not have to be suppressed. *People v Jones*, 2 NY3d 235.

INSTRUCTIONS.

22. Supplemental Instruction to Deadlocked Jury.—Supreme Court's supplemental instruction to the deadlocked jury at defendant's trial was unbalanced and coercive so as to deprive defendant of a fair trial. The instruction overemphasized the need to get a result, suggested that the jurors were failing in their duty, stressed that "something happened" in the case, presented jurors with the prospect of prolonged deliberations, and failed to caution jurors not to surrender their conscientiously held beliefs. The combined effect of these flaws required reversal of defendant's conviction. Moreover, the swiftness of the guilty verdict, returned only five minutes after the supplemental instruction was given, suggested that the jury was coerced. *People v Aponte*, 2 NY3d 304.

JURORS.

23. Selection of Jury — Capital Murder Trial—Ability to Serve Impartially.—In a capital murder prosecution, the trial court erred in allowing a prospective juror to remain on the panel where he initially indicated that he would be able to serve impartially, but later acknowledged that his views on domestic violence, an issue highly relevant to the case, would impede his ability to consider life without parole instead of death as an appropriate penalty. The test for determining whether a juror in a capital murder prosecution is life and death qualified, prescribed in CPL 270.20 (1) (f), is whether the juror expresses an inability to set aside his or her personal views on the death penalty in deference to the court's instructions. Here, the juror's initial expressions of open-mindedness were undermined by his later responses. The trial court should have granted defendant's challenge for cause, or at least

CRIMES—Cont'd

questioned the juror as to whether these deeply held views would preclude him from serving impartially in a penalty phase before allowing him to remain on the panel. *People v Cahill*, 2 NY3d 14.

24. Selection of Jury — Capital Murder Trial—Death Qualified.—In a capital murder prosecution, the trial court erred in granting the prosecution's challenge for cause of a prospective juror who stated during voir dire that "in most instances" the death penalty was wrong, but who repeatedly indicated during questioning that she could consider both death and life without parole as possible punishments for defendant. The test for determining whether a juror in a capital murder prosecution is life and death qualified, prescribed in CPL 270.20 (1) (f), is whether the juror expresses an inability to set aside his or her personal views on the death penalty in deference to the court's instructions. Here, the prospective juror was death qualified. Although she initially may have expressed reservations about the death penalty, after doing so she made it clear that she could follow her oath, act impartially and consider both the death penalty and life without parole. *People v Cahill*, 2 NY3d 14.

25. Selection of Jury — Capital Murder Trial—Remedy for Penalty-Related Juror Selection Errors.—In a capital murder prosecution, the trial court's erroneous rulings pertaining to two prospective jurors based on challenges that went only to their ability to deliberate fairly and impartially at the penalty phase did not justify a new guilt-phase trial. The appropriate remedy for an error made in the selection of an unqualified penalty phase juror in a capital murder prosecution is reversal of the sentence, as opposed to the entire trial. *People v Cahill*, 2 NY3d 14.

26. Selection of Jury.—CPL 270.15 (3), which provides that "[t]he court may . . . , in its discretion, direct that all sworn jurors be removed from the jury box and that the jury box be occupied by such additional number of persons from the panel as the court shall direct," gives a trial court discretion to remove sworn jurors and fill the box with any number of jurors that it chooses. In this case, out of 18 prospective jurors called for the initial round of jury selection, seven were chosen to serve. The court then ordered one prospective juror at a time put into the box for questioning and challenges. Jury selection continued in this manner until the jury was completed. While the trial court's procedure was not unlawful, it may have needlessly prolonged jury selection, and should not be followed. *People v Williams*, 2 NY3d 725.

ORDER OF PROTECTION. *See* CRIMES, 1, 2.

PLEA OF GUILTY. *See* CRIMES, 18.

RIGHT OF CONFRONTATION.

27. There is no merit to defendant's claim that his constitutional right to confront witnesses was violated when the trial court allowed the People to elicit a statement that a nontestifying codefendant had made to a detective. The statement was admitted to show the detective's state of mind. The Confrontation Clause does not bar the use of testimonial statements for purposes other than establishing the truth of the matter asserted. *People v Reynoso*, 2 NY3d 820.

RIGHT TO BE PRESENT AT TRIAL.

28. Waiver — Sidebar Conferences.—Defendant's statutory right to be present at trial was not violated by his absence at two sidebar conferences during the group voir dire (*see* CPL 260.20). Although a defendant's right to be present at trial extends to sidebar and robing room conferences with prospective jurors regarding possible bias, the right may be waived. Here, defendant waived his right to be present at the sidebar conferences, twice asserting on the record that he accepted and understood the waiver. *People v Cahill*, 2 NY3d 14.

RIGHT TO COUNSEL.

29. Effective Representation — Counsel's Testimony against Defendant at *Sirois* Hearing.—Defendant was denied effective assistance of counsel when his counsel testified against him at a *Sirois* hearing. When the prosecution expressed its intention to call defendant's counsel as a witness, he should have objected and raised the

CRIMES—Cont'd

potential conflict. By giving testimony against his client without protest, defense counsel crossed the line, and a new trial was required. *People v Lewis*, 2 NY3d 224.

30. Right of Parent to Invoke on Child's Behalf.—The mother of a 15-year-old defendant arrested for armed robbery did not invoke the right to counsel at a lineup on her son's behalf by informing the police that he had a lawyer and asking whether the police wanted the lawyer's phone number. Although the parent or legal guardian of a juvenile delinquent or juvenile offender may invoke the right to counsel on the child's behalf, the invocation must be unequivocal. The remarks made by defendant's mother were consistent with a variety of interpretations and did not alert the police that the presence of counsel at the lineup was specifically requested. *People v Mitchell*, 2 NY3d 272.

31. Effective Representation — Appellate Counsel.—Defendant's appellate counsel was not ineffective for having failed to assail trial counsel's performance. Although trial counsel did not try to get into evidence sworn statements given by an unavailable witness that were exculpatory and material, the statements were not reliable enough to be admitted. Appellate counsel had no basis to castigate trial counsel for what would have been a losing argument. *People v Stultz*, 2 NY3d 277.

32. Effective Representation — Standard for Appellate Counsel.—The appropriate standard for measuring effective assistance of appellate counsel is the same "meaningful representation" standard set forth for trial counsel in *People v Baldi* (54 NY2d 137 [1981]). Under that standard the focus is on the fairness of the proceedings as a whole, and a defendant's showing of prejudice is a significant but not indispensable element in assessing meaningful representation. Appellate counsel, like trial counsel, enjoy a wide latitude in defending their clients. In general, however, their representation must reflect a competent grasp of the facts, the law and appellate procedure, supported by appropriate authority and argument. *People v Stultz*, 2 NY3d 277.

33. Substitution of Counsel.—Supreme Court properly exercised its discretion in denying defendant's motion, made on the eve of trial, for a substitution of his assigned counsel. In determining whether good cause for substitution exists, a trial court must consider the timing of the defendant's request, its effect on the progress of the case, and whether present counsel will likely provide the defendant with meaningful assistance. Here, Supreme Court made a diligent and thorough inquiry into defendant's request and reasonably concluded that defendant's vague and generic objections had no merit or substance. Defense counsel, although threatened by defendant, did not have a genuine conflict of interest with defendant, and was not deficient in his representation of defendant. *People v Linares*, 2 NY3d 507.

RIGHT TO REPRESENTATION PRO SE.

34. Sufficiency of "Searching Inquiry".—The trial court undertook a sufficient "searching inquiry" to insure that defendant's request to proceed pro se was accompanied by a knowing, voluntary, and intelligent waiver of the right to counsel even though the court did not question defendant on the record about the factors set forth in *People v Arroyo* (98 NY2d 101 [2002]): his age, education, occupation, previous exposure to legal procedures and other relevant factors bearing on a competent, intelligent, voluntary waiver. A searching inquiry may occur in a nonformalistic, flexible manner, and the asking of questions designed to elicit each of the specific items of information recited in *Arroyo* is not mandatory, although it is the better practice. Here, there was record evidence, beyond the waiver colloquy, to provide a reliable basis to conclude that defendant, a 38-year-old full-time student who had earned his GED and had an extensive criminal history, effectively waived the right to counsel. *People v Providence*, 2 NY3d 579.

SEARCH WARRANT.

35. Incorporation by Reference in Warrant Application of Material Previously Submitted to Judge.—The search of a shed on defendant's property was authorized by a search warrant, notwithstanding that it referred only to defendant's house. The warrant explicitly noted that it was an addendum to a warrant issued three days before, which included searches for certain materials in defendant's home or

CRIMES—Cont'd

“within any unattached garage or storage shed.” The warrant properly incorporated previously submitted materials known to the issuing judge, who signed five search warrants over four consecutive days related to defendant’s prosecution. *People v Cahill*, 2 NY3d 14.

SENTENCE.

36. Victim Impact Statement at Sentencing — Multiple Statements Permitted.—Sentencing courts have discretion to allow more than one person to make a victim impact statement at sentencing, beyond the single statement from the victim or victim’s surrogate mandated in CPL 380.50 (2). The statute elevated what had previously been a privilege left entirely to the discretion of the sentencing court to a right that a victim or a victim’s surrogate could exercise at their discretion. It was not intended to otherwise restrict a sentencing court’s discretionary authority to allow others close to the victim to address the court at sentencing. *People v Hemmings*, 2 NY3d 1.

37. Victim Impact Statement at Sentencing — Multiple Statements Not Prejudicial.—At the sentencing proceeding for defendant, who was convicted of criminal possession of a weapon but acquitted of murder and manslaughter in connection with the shooting death of the victim, the sentencing court did not abuse its discretion in allowing five people to make statements at defendant’s sentencing. It had no reason to believe that the statements offered by the victim’s family members and friend would be inflammatory or inappropriate. The relatively brief statements consisted largely of descriptions of the incident and requests for a maximum sentence that were cumulative of one another and did not unduly prejudice defendant. It is significant that the court did not impose the maximum sentence but chose a term well within the permissible range. *People v Hemmings*, 2 NY3d 1.

UNLAWFUL SEARCH AND SEIZURE.

38. Reasonableness of Governmental Invasion of Defendant’s Privacy.—In a prosecution for criminal possession of a weapon arising out of the discovery of a handgun in defendant’s possession by officers seeking to execute arrest warrants for someone staying in the same apartment as defendant, there was record support for the denial of defendant’s motion to suppress the handgun found under his thigh after he was asked by an officer to shift his position and show his hands. As the circumstances presented here did not arise during the course of a protective sweep for persons who, in hiding, posed a danger to the officers at the scene of the arrest, the proper test to be employed is the reasonableness of the governmental invasion of defendant’s privacy under the Fourth Amendment. The officers, having discovered two loaded handguns near defendant’s companions as they executed the warrants, had reason to believe that defendant could also be armed and dangerous and legitimately turned their attention to defendant, who was sitting on his hands, fidgeting, and mumbling. The limited police action was reasonable, and the intrusion on defendant’s privacy was minimal. *People v Wheeler*, 2 NY3d 370.

VENUE.

39. Motion to Change Venue after Voir Dire.—Defendant’s post-voir dire motion pursuant to CPL 230.20 for a change of venue in his capital murder prosecution was properly denied. Although 86% of the prospective jurors had heard of the case from media accounts, the test for removal is not based on the number of prospective jurors who have heard of the case, but whether media or other accounts have been so inflammatory as to thwart the selection of a fair-minded jury. Here, most of the media coverage tended to be objective, and the publicity was not so sensational or prejudicial as to have tainted the jury pool. The voir dire successfully culled out jurors who may have been biased by pretrial publicity. *People v Cahill*, 2 NY3d 14.

40. Motion to Change Venue before Voir Dire.—Defendant’s pre-voir dire motion pursuant to CPL 230.20 for a change of venue in his capital murder prosecution was properly denied. The county in which the case was venued was not deluged by a tidal wave of prejudicial publicity to such an extent that even an attempt to select an unbiased jury would be fruitless. *People v Cahill*, 2 NY3d 14.

WITNESSES.

41. Expert Witness — Explanation of Money Handling Aspects of Street-Level Multi-Member Narcotics Operations.—In the prosecution of defendant for criminal sale and criminal possession of a controlled substance arising out of his alleged sale

CRIMES—Cont'd

of cocaine to an undercover officer in a single transaction, the trial court abused its discretion in permitting the introduction of the officer's expert testimony as to the money handling aspects of street-level, multi-member narcotics operations. There was no evidence that the transaction involved anyone other than defendant. The fact that the prerecorded buy money the officer gave to defendant was not found on defendant when he was arrested could not by itself serve as a basis to offer expert testimony explaining why police do not always recover buy money following buy-and-bust operations. The error in admitting the expert testimony, however, was harmless, in view of the overwhelming evidence of defendant's guilt. *People v Smith*, 2 NY3d 8.

DAMAGES.

PUNITIVE DAMAGES. *See* CIVIL RIGHTS, 1.

DEBTOR AND CREDITOR.

See ASSIGNMENTS FOR BENEFIT OF CREDITORS; ATTACHMENT; CREDITORS' SUITS; EXECUTION; FRAUDULENT CONVEYANCES; LIENS; LIS PENDENS; MORTGAGES, and other specific titles.

DECEDENTS' ESTATES.

See ALIENS; COURTS (SURROGATE'S COURT); DEAD BODIES; DEATH; DESCENT AND DISTRIBUTION; DOMICILE; EXECUTORS AND ADMINISTRATORS; GIFTS; INSURANCE; POWERS; TAXATION; TRUSTS; WILLS, and other specific titles.

DENTISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

DEPOSITIONS.

See DISCLOSURE.

DISCONTINUANCE.

See DISMISSAL AND NONSUIT.

DISCOVERY AND INSPECTION.

See DISCLOSURE.

DIVORCE.

See HUSBAND AND WIFE.

DOUBLE JEOPARDY.

See CRIMES.

ELDER LAW.

See HEALTH; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; SOCIAL SERVICES; TRUSTS.

EMPLOYMENT RELATIONSHIPS.

See, also, CIVIL SERVICE; LABOR; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

EVIDENCE.

See, also, AFFIDAVITS; CRIMES; DISCLOSURE; SEARCHES AND SEIZURES; STIPULATIONS; WITNESSES, and other specific titles.

EXAMINATION BEFORE TRIAL.

See DISCLOSURE.

FILIATION PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

FORMER ADJUDICATION.

See JUDGMENTS.

FORMER JEOPARDY.

See CRIMES (DOUBLE JEOPARDY).

FRATERNAL ORDERS.

See ASSOCIATIONS.

GAS AND OIL.

See, also, PUBLIC UTILITIES.

GRAND JURY.**DEFECTIVE PROCEEDING.**

1. Formal Vote by 12 Jurors Required to Dismiss Charges.—In a grand jury proceeding where the prosecutor asked the grand jury to cease deliberations on a Friday and return the following week to hear from another witness after having been advised by the foreperson that the grand jury was having difficulty reaching a decision, the initial failure of the grand jury to garner 12 votes for an indictment did not constitute a dismissal of the charges which would have required the prosecutor to obtain leave of court before presenting additional evidence to the grand jury. A dismissal of pending charges constitutes an affirmative official action or decision of the grand jury under CPL 190.25 (1), and as such it requires a formal vote and the concurrence of at least 12 grand jury members. Dismissal of a charge cannot be inferred from the grand jury's failure to indict a suspect, given that it also has the power to direct the filing of an information, to remove the case to Family Court, or to submit a grand jury report. *People v Aarons*, 2 NY3d 547.

GUARANTEE.

See SURETYSHIP AND GUARANTEE.

HOTELS.

See INNKEEPERS.

HUSBAND AND WIFE.

See, also, ADOPTION; COURTS (FAMILY COURT); INFANTS; MARRIAGE; PARENT AND CHILD; SOCIAL SERVICES; TENANTS BY THE ENTIRETY, and other specific titles.

COUNSEL FEES.

1. Standing of Discharged Attorney to Seek Fees.—Domestic Relations Law § 237 (a) authorized the attorney who was discharged without cause by defendant, the nonmonied spouse, to petition the court for a fee award from plaintiff, the monied spouse, in the parties' divorce action. Although the statute is silent as to whether an attorney who has been discharged without cause has the right to seek counsel fees, it was designed to redress the economic disparity between the monied spouse and the nonmonied spouse. Interpreting the statute to preclude fee applications by discharged attorneys would discourage attorneys from representing nonmonied litigants, thereby thwarting the statutory intent. *Frankel v Frankel*, 2 NY3d 601.

IMMIGRATION.

See ALIENS.

INFANTS.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); GUARDIAN AND WARD; HUSBAND AND WIFE; PARENT AND CHILD; SCHOOLS; SOCIAL SERVICES, and other specific titles.

JUVENILE DELINQUENTS.

1. Family Court Authorized to Order Placement for Juvenile over 18.—Family Court may order the placement of a juvenile delinquent with the Office of Children and Family Services (OCFS) for a period that extends beyond the juvenile's 18th birthday. Here, both respondents were placed with OCFS in accordance with Family Court Act § 353.3 after violating the conditions of their probation. Although an extension of placement under Family Court Act § 355.3 may not be made beyond the respondent's 18th birthday without his or her consent, the initial placement statute, Family Court Act § 353.3, does not contain such age-restricting language. The Legislature, having adopted two placement statutes with distinct titles and terms, intended to distinguish between initial placement and extension of placement in juvenile delinquency cases. By doing so it strengthened probation as a viable option for juveniles approaching the age of 18, in that those juveniles, knowing that placement remains an alternative available to Family Court, have a greater incentive to adhere to the conditions of their probation. *Matter of Robert J.*, 2 NY3d 339.

INSURANCE.

See, also, ARBITRATION; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

DUTY TO DEFEND AND INDEMNIFY.

1. Exclusions — Sexual Assault by Insured's Employee as "Accident".—The alleged sexual assault of a massage client of plaintiff beauty salon/health spa by a masseur employed by plaintiff was an "accident" within the meaning of the insurance policy issued to plaintiff by defendant insurer. The policy exclusion for injuries "expected or intended" from the insured's standpoint did not apply, rendering defendant obligated to defend and indemnify plaintiff in the underlying action brought by the assault victim. Although the assault was expected and intended by the masseur, his expectation and intention were not attributable to plaintiff. The masseur departed from his duties for solely personal motives unrelated to the furtherance of plaintiff's business. *RJC Realty Holding Corp. v Republic Franklin Ins. Co.*, 2 NY3d 158.

2. Exclusions — Sexual Assault by Insured's Employee as "Accident".—The exclusion in the insurance policy issued to plaintiff beauty salon/health spa for bodily injuries "arising out of . . . [b]ody massage" did not apply to relieve defendant insurer from its obligation to defend and indemnify plaintiff in the underlying action brought by a client of plaintiff's who was allegedly sexually assaulted by her masseur during a body massage. The policy did not exclude coverage for all alleged conduct during a body massage, but only for injuries "arising out of" a body massage. The exclusion was reasonably read to refer to a bruise or similar injury inflicted by a massage itself, and not the emotional or physical injury resulting from a sexual assault by a masseur. *RJC Realty Holding Corp. v Republic Franklin Ins. Co.*, 2 NY3d 158.

OCEAN OPEN CARGO INSURANCE.

3. Breach of Warranty by Insured.—Defendant insurer was not liable under a marine open cargo policy for the theft by armed robbers of plaintiff's insured goods. The policy's warranty clause required that each escort contain a minimum of two guards. Plaintiff's proof was insufficient to raise a triable issue of fact as to whether it fulfilled that requirement. Defendant offered sufficient proof establishing plaintiff's material breach of the warranty clause as a matter of law. Accordingly, defendant's motion for summary judgment was properly granted. *Star City Sports-wear v Yasuda Fire & Mar. Ins. Co. of Am.*, 2 NY3d 789.

PREMIUMS.

4. Health Insurers and Health Maintenance Organizations — Approval of Rate Increases.—Respondent Superintendent of Insurance was not authorized to exercise his premium rate review and approval authority to disapprove or modify rate increases submitted by petitioner health insurer and deemed approved under the

INSURANCE—Cont'd

file and use provisions of Insurance Law § 4308 (g) (1). Under subsection (g) (1), a rate filing or application accompanied by the requisite actuarial certification “shall be deemed approved” once it is received by respondent. Although respondent may act to ensure that initial contract terms and premiums are not “excessive, inadequate or unfairly discriminatory” under Insurance Law § 4308 (b), that standard of review is not set forth in subsection (g) (1). To interpolate such an exception into subsection (g) (1) would create a forced and unnatural interpretation of the phrase “shall be deemed approved” by making approval by operation of law, in fact, contingent upon respondent’s assent. Neither the statutory language nor the legislative history intimate that the Legislature expected respondent to exercise his traditional rate review powers with respect to premium rates “deemed approved.” *Matter of Excellus Health Plan v Serio*, 2 NY3d 166.

INTELLECTUAL PROPERTY LAW.

See COPYRIGHTS; PATENTS; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION.

INTERVENTION.

See PARTIES.

JUDGES.**REMOVAL FROM OFFICE.**

1. Appropriateness of Sanction.—The determined sanction of removal of petitioner Town Justice, who, in his private law practice, converted funds from an escrow account and, as a judge, engaged in conduct that was intended to retaliate against the District Attorney for making a previous complaint about petitioner, was appropriate. Removal was not too severe in light of the severity of the misconduct involved and petitioner’s extensive prior history, including five previous State Commission on Judicial Conduct proceedings. Several of the proceedings were based on more than one incident, and evidenced that petitioner seemed incapable of understanding, despite repeated warnings, that a judge performing judicial duties must both act and appear to act as an impartial arbiter serving the public interest, not someone with an axe to grind. *Matter of Cerbone*, 2 NY3d 479.

SUSPENSION FROM OFFICE.

2. Upon consideration by the Court of Appeals on its own motion, pursuant to NY Constitution, article VI, § 22 (e), (g) and Judiciary Law § 44 (8) (a), (c) of whether a City Court Judge should be suspended from office, it is determined that the Judge be suspended, with pay, effective immediately. *Matter of Bauer*, 2 NY3d 782.

JUDGMENTS.

See, also, EXECUTION, and other specific titles.

ENTRY.

1. An Appellate Division order, which reversed an order granting plaintiff’s motion to enter judgment against defendants, is modified, by remitting to Supreme Court for entry of a judgment solely against defendants Leonard of Delaware Limited Partnership and 117-13 Union Turnpike Corp., individually and doing business as Leonard Worth Associates, LLC, and, as so modified, affirmed. The verdict sheet named Leonard Worth Associates instead of Leonard Worth Associates, LLC (LLC), as the defendant. The entire trial on liability was defended by Leonard Worth Associates, LLC, which made no motion or attempt to distinguish itself from Leonard Worth Associates, and the jury deliberations undisputedly concerned Leonard Worth Associates, LLC. Accordingly, defendant LLC’s attempts to disavow liability after the verdict are unavailing. *Davis v Branford Estates, Ltd.*, 2 NY3d 816.

SUMMARY JUDGMENT.

2. Timeliness of Motion — Good Cause.—Supreme Court should not have considered the merits of the summary judgment motion filed by defendant almost one year after plaintiffs filed their note of issue. Defendant gave no explanation for

JUDGMENTS—Cont'd

filing the motion after the 120-day deadline specified in CPLR 3212 (a), which prohibits the filing of summary judgment motions more than 120 days after the note of issue is filed except with leave of court “on good cause shown.” The good cause contemplated by the statute requires a showing of good cause for the delay in making the motion, rather than simply permitting meritorious, nonprejudicial filings, however tardy. The appropriate remedy for a failure to satisfy the 120-day deadline is to return the case to the trial calendar, where a motion to dismiss after plaintiffs rest or a request for a directed verdict may dispose of the case during trial. *Brill v City of New York*, 2 NY3d 648.

JUDICIAL NOTICE.

See EVIDENCE.

LABOR.

See, also, ARBITRATION; CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; MUNICIPAL CORPORATIONS; SCHOOLS; STATE; UNEMPLOYMENT INSURANCE; WORKERS' COMPENSATION, and other specific titles.

LANDLORD AND TENANT.

See, also, NEGLIGENCE (MAINTENANCE OF PREMISES).

RENT REGULATION.

1. High-Income Deregulation.—Respondent Division of Housing and Community Renewal's decision denying petitioner landlord's high-income deregulation application upon review of the tenant's amended tax return reflecting household income below the statutory maximum for the preceding two years was arbitrary and capricious and affected by an error of law. The tenant never challenged the accuracy or validity of the original verification made by the Department of Taxation and Finance (DTF), which indicated that her household income was in excess of the statutory maximum for the applicable period. She instead filed an amended tax return after the original verification was made, and then utilized the statutory comment period to bring the amended return to respondent's attention. Respondent's blind acceptance of the amended return was irrational. The high-income deregulation procedures contemplate a single verification of a tenant's income, the result of which is binding on all parties unless it can be shown that DTF made an error. In the absence of such a showing here, deregulation was required. *Matter of Classic Realty v New York State Div. of Hous. & Community Renewal*, 2 NY3d 142.

2. Application of Five-Day Mailing Rule to Service of Notice to Cure.—Owners who elect to serve their rent-stabilized tenants with notices to cure by mail under Emergency Tenant Protection Regulations (9 NYCRR) § 2504.1 must compute the date certain by which the cure must be effected by adding 5 days to the 10-day minimum cure period (*see e.g.* CPLR 2103 [b] [2]). Although CPLR 2103 applies to pending actions and is not applicable to the commencement of summary proceedings, the addition of a definite number of days is necessary for service by mail to ensure that tenants are not disadvantaged by the owner's choice of service method. This approach best effectuates the regulatory purpose to afford tenants a 10-day cure period before they may be subject to lease termination for designated violations. Service will be deemed complete upon mailing, and a properly executed affidavit of service will raise a presumption that proper mailing occurred. *Matter of ATM One v Landaverde*, 2 NY3d 472.

3. Illegal Conversion of Loft Space.—Plaintiffs, who converted their commercially-leased loft space for personal residential use over a decade after the Loft Law's eligibility period ended and illegally occupied their units in violation of the New York City Zoning Resolution, were not entitled to the rent stabilization protections of the Emergency Tenant Protection Act of 1974 (ETPA [L 1974, ch 576, § 4, as amended]). The tenancies were not within the purview of the Loft Law, which was intended to provide benefits only to existing residential tenancies, and not to encourage new conversions of loft space. Nor do plaintiffs' illegal conversions fall under

LANDLORD AND TENANT—Cont'd

the ambit of the ETPA, which was enacted before the Loft Law and was not viewed by the Legislature as safeguarding the interests of the “loft pioneers.” *Wolinsky v Kee Yip Realty Corp.*, 2 NY3d 487.

SUMMARY PROCEEDINGS.

4. Availability to Social Services Tenant of Defense of Code Violations.—The Spiegel Law (Social Services Law § 143-b [5] [a]), which provides that it “shall be a valid defense in any action or summary proceeding against a welfare recipient for non-payment of rent to show existing violations in the building wherein such welfare recipient resides which relate to conditions which are dangerous, hazardous or detrimental to life or health as a basis for non-payment,” may not be invoked by a social services tenant unless the appropriate social services agency has first withheld rent on that basis. Section 143-b (5) is a constituent provision of a statute that primarily addresses the rights and responsibilities of the “public welfare department” and “public welfare official[s],” and is best read that way. It is for the public welfare departments to decide when their powers under the Spiegel Law to withhold rent should be used. *Matter of Notre Dame Leasing v Rosario*, 2 NY3d 459.

LIBEL AND SLANDER.

See, also, NEWSPAPERS, and other specific titles.

LICENSES.

See, also, BROKERS; DRUGS AND PHARMACISTS; INTOXICATING LIQUORS; MOTOR VEHICLES; PHYSICIANS AND SURGEONS, and other specific titles.

LITTORAL RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

MANDAMUS.

See PROCEEDING AGAINST BODY OR OFFICER.

MASTER AND SERVANT.

See EMPLOYMENT RELATIONSHIPS.

MEDICAL REPORTS.

See DISCLOSURE.

MOTELS.

See INNKEEPERS.

MOTIONS AND ORDERS.

TIMELINESS OF MOTION. *See* JUDGMENTS, 2.

MUNICIPAL CORPORATIONS.

See, also, BRIDGES; CIVIL SERVICE; COUNTIES; ELECTIONS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; HIGHWAYS; LICENSES; NEGLIGENCE; PROCEEDING AGAINST BODY OR OFFICER; PUBLIC HOUSING; PUBLIC UTILITIES; SCHOOLS; TAXATION; WORKERS' COMPENSATION, and other specific titles.

NOTICE OF STREET DEFECT.

1. Sufficiency of Written Acknowledgment.—In an action to recover damages for injuries plaintiff sustained when he stepped into a hole in the street adjacent to a defective catch basin, internal documents prepared prior to plaintiff's accident by the New York City Department of Environmental Protection (DEP) regarding the defective catch basin and the need to repair it constituted a “written acknowledgment from the city” within the meaning of the City's “Pothole Law” (Administrative Code of City of NY § 7-201 [c] [2]). The documents indicate that DEP, the

MUNICIPAL CORPORATIONS—Cont'd

agency responsible for the repair, had knowledge of the condition and the danger it presented. Although the Pothole Law was designed with New York City Department of Transportation (DOT) in mind, the “written acknowledgment” contemplated by paragraph (2) can come from an agency other than DOT if that other agency is performing the function, normally performed by DOT, of remedying an unsafe condition in the roadway. *Bruni v City of New York*, 2 NY3d 319.

TORT LIABILITY.

2. Special Relationship — Lead Paint Poisoning—Assumption of Positive Direction or Control.—In two actions to recover damages for injuries the infant plaintiffs allegedly sustained as the result of exposure to lead paint in their leased homes, plaintiffs failed to establish the existence of a special relationship between plaintiffs and the municipal defendants through assumption of positive direction or control in the face of a known, blatant, and dangerous safety violation that would render defendants liable for plaintiffs’ injuries. Although defendants had personal contact with plaintiffs, they did not take positive direction and control of either situation. The landlords were in immediate control of the abatement process, which was monitored, but never controlled, by defendants. Moreover, defendants’ provision of health and hygiene advice did not constitute positive direction and control. *Pelaez v Seide*, 2 NY3d 186.

3. Special Relationship — Lead Paint Poisoning—Violation of Statutory Duty.—In two actions to recover damages for injuries the infant plaintiffs allegedly sustained as the result of exposure to lead paint in their leased homes, plaintiffs failed to establish the existence of a special relationship between plaintiffs and the municipal defendants through breach of a statutory duty that would render defendants liable for plaintiffs’ injuries. A private right of action is not available under the Lead Poisoning Prevention Act (Public Health Law §§ 1370-1376). Although plaintiffs are members of the class to be benefitted by the act, and a private right of action might promote the ultimate legislative purpose of reducing lead paint hazards, creation of a private right of action does not comport with the legislative scheme. The legislation is designed to encourage municipalities to cooperate administratively, while placing the ultimate responsibility for compliance with owners. *Pelaez v Seide*, 2 NY3d 186.

4. Special Relationship — Lead Paint Poisoning—Voluntary Assumption of Duty.—In two actions to recover damages for injuries the infant plaintiffs allegedly sustained as the result of exposure to lead paint in their leased homes, plaintiffs failed to establish the existence of a special relationship between plaintiffs and the municipal defendants through assumption of an affirmative duty upon which plaintiffs could justifiably rely that would render defendants liable for plaintiffs’ injuries. Although municipal officials had direct contact with plaintiffs that included home visits, testing, and advice, they did not go beyond the mandates of the lead paint laws. Neither municipality took on an affirmative duty to act on plaintiffs’ behalf. *Pelaez v Seide*, 2 NY3d 186.

ZONING.

5. Special Use Permit — Authority to Grant Area Variance from Special Use Permit Requirements.—Respondent zoning board of appeals (ZBA) had the authority to grant petitioner’s request for an area variance from two distance standards for a gasoline filling station special use permit. Town Law § 274-b (3) vests a ZBA with authority to grant an area variance from any requirement in a zoning regulation, including requirements for a special use permit. This authority is clear from the plain language of the statute, and is consistent with the statutes and case law emphasizing that ZBAs are vested with the exclusive power to grant or deny a variance from zoning ordinances. *Matter of Real Holding Corp. v Lehigh*, 2 NY3d 297.

6. Variance — Area Variance—Abuse of Discretion.—Respondent Board of Appeals did not abuse its discretion, as a matter of law, in denying petitioner’s application for an area variance to reduce the lot area requirement for his unimproved parcel of land, which was rendered nonconforming as the result of an illegal subdivision, to allow a 33.3% deficiency in lot area and a 27.3% deficiency in frontage. Re-

MUNICIPAL CORPORATIONS—Cont'd

spondent reasonably considered all of the factors delineated in Town Law § 267-b (3) and weighed petitioner's interest against the interest of the neighborhood. Other parcels within the 200-foot radius of petitioner's parcel overwhelmingly conformed to or were larger than the zoning requirements, supporting respondent's conclusion that the area variance would have a negative impact on the character of the neighborhood. Moreover, respondent properly determined that the substantiality of the requested variance weighed against granting it, and that the need for the variance was self-created. *Matter of Pecoraro v Board of Appeals of Town of Hempstead*, 2 NY3d 608.

7. Variance.—Respondent Zoning Board of Appeals' denial of petitioner's application for an area variance to build a single-family dwelling upon an illegally nonconforming substandard parcel had a rational basis and was supported by substantial evidence. The record supports the Board's finding that the character of the neighborhood was overwhelmingly conforming to the zoning requirements and that a grant of the area variance would have an adverse effect on the surrounding community. *Matter of Inlet Homes Corp. v Zoning Bd. of Appeals of Town of Hempstead*, 2 NY3d 769.

NEGLIGENCE.

See, also, ANIMALS; AVIATION; CARRIERS; DEATH; DRUGS AND PHARMACISTS; EMPLOYMENT RELATIONSHIPS; HOSPITALS; INDEMNITY; INSURANCE; LABOR; LANDLORD AND TENANT; MOTOR VEHICLES; MUNICIPAL CORPORATIONS; PHYSICIANS AND SURGEONS; PUBLIC AUTHORITIES; PUBLIC UTILITIES; SCHOOLS; STATE, and other specific titles.

COMPARATIVE NEGLIGENCE.

1. Failure to Charge Jury.—In an action to recover damages for injuries plaintiff sustained when he stepped into a hole in the street adjacent to a defective catch basin, the issue of whether plaintiff was negligent, and if so to what extent his negligence contributed to causing the accident, should have been submitted to the jury. There were at least two ways in which a reasonable jury could have inferred from the evidence presented at trial that plaintiff, who was walking in darkness in an unfamiliar area and looking straight ahead at the time he stepped in the hole, failed to exercise due care. *Bruni v City of New York*, 2 NY3d 319.

FAILURE TO WARN OF DANGER.

2. Defendant property owner had no duty under the circumstances to warn decedent, who was sitting in a parked car on defendant's driveway, of the hazard posed by a leaning tree located on neighboring property. As a general matter, an owner owes no duty to warn or to protect others from a defective or dangerous condition on neighboring premises, unless the owner had created or contributed to it. Generally, it would create an unreasonably onerous burden to require a landowner to evaluate and warn others about a danger caused by a condition existing on neighboring land. While some dangers from neighboring property might be so clearly known to the landowner, though not open or obvious to others, that a duty to warn would arise, here there was no such danger. Defendant was clearly aware of the leaning tree and concerned that it might one day damage his property, but he had no reason to, and did not, anticipate that the tree would fall either where or when it did. Moreover, defendant did not consider the situation so precarious as to warrant taking precautions for himself or for his wife. Under these circumstances, there was no obvious hazard that could give rise to a duty to warn. *Galindo v Town of Clarkstown*, 2 NY3d 633.

FORESEEABILITY.

3. Proximate Cause — Failure to Provide Adequate Security in Concert Parking Lot.—Plaintiff, having sustained injuries as the result of a random and unprovoked attack by four unidentified men in the parking lot of a public park during a rock concert, could not hold the municipal owner of the park and the concert producer liable. Defendants took reasonable measures to deal with the issues of crowd control and other forms of disorderliness short of unprovoked criminal acts. The brutal attack on plaintiff was not a foreseeable result of any security breach. *Maheshwari v City of New York*, 2 NY3d 288.

NEGLIGENCE—Cont'd**INJURIES TO POLICE OFFICERS.**

4. Alleged Violation of Justification Defenses.—A claim brought pursuant to General Municipal Law § 205-e seeking damages for a police officer whose injury or death results from another's violation of certain statutes, ordinances, rules, orders, or requirements may not be premised solely on a violation of the justification defenses found in the Penal Law or the CPL. *Williams v City of New York*, 2 NY3d 352.

5. Alleged Violation of Labor Law.—In an action to recover damages pursuant to General Municipal Law § 205-e brought by the families of two detectives shot and killed by a prisoner they were transporting after the prisoner removed a gun from a locker in the detective squad's locker room, plaintiffs failed to establish a violation of Labor Law § 27-a for purposes of section 205-e liability. The Labor Law provision defendants were alleged to have violated is not a specific workplace safety standard but rather a "general duty" clause requiring employers to provide a place of employment free from recognized hazards. It does not cover the special risks faced by police officers because of the nature of police work. Nor did plaintiffs establish a violation of Administrative Code of the City of New York §§ 27-127 and 27-128, provisions requiring the safe maintenance of buildings. *Williams v City of New York*, 2 NY3d 352.

6. Alleged Violation of Penal Law.—A claim brought pursuant to General Municipal Law § 205-e seeking damages for a police officer whose injury or death results from another's violation of certain statutes, ordinances, rules, orders, or requirements may be predicated on a violation of Penal Law sections that prohibit specific acts. Although a conviction is not necessary to find a violation of the Penal Law for purposes of section 205-e liability, a defendant not charged with a crime is entitled to summary judgment where a reasonable view of the evidence supports the conclusion that either no prohibited conduct took place, or that a justification defense exists. Here, plaintiff, whose husband was fatally wounded by a bullet shot from a fellow officer's gun during a confrontation between two officers and an armed criminal suspect, failed to rebut the presumption that the officers did not violate the Penal Law. It was reasonable to conclude that it was necessary for the officers to use deadly physical force to defend themselves, and that neither officer was "reckless" or "criminally negligent" as those terms are used in the Penal Law. *Williams v City of New York*, 2 NY3d 352.

MAINTENANCE OF PREMISES.

7. In a negligence action arising from plaintiff's slip and fall down a stairwell, the Appellate Division properly determined that plaintiffs failed to raise a triable issue of fact whether the alleged injuries resulted from a dangerous recurring condition of which defendant Cushman & Wakefield had actual or constructive notice. *Zanki v Cahill*, 2 NY3d 782.

PROXIMATE CAUSE.

8. The Appellate Division properly granted defendant university summary judgment dismissing a complaint by plaintiff undergraduate student who was shot without provocation by a nonstudent while standing outside a fraternity house located in a residential area of defendant's campus known as the fraternity quad. In opposition to defendant's prima facie showing of entitlement to summary judgment, plaintiff presented no evidence other than mere conclusions, expressions of hope or unsubstantiated allegations that alleged insufficient security and lighting in the fraternity quad were a proximate cause of the shooting or that the criminal attack was foreseeable or preventable in the normal course of events. *Colarossi v University of Rochester*, 2 NY3d 773.

NEGOTIABLE INSTRUMENTS.

See **BILLS, NOTES AND CHECKS.**

NEWSPAPERS.

See, also, **LIBEL AND SLANDER**, and other specific titles.

OPTICIANS.

See **LICENSES; PHYSICIANS AND SURGEONS.**

OPTOMETRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PARENT AND CHILD.

See, also, ADOPTION; CHILDREN BORN OUT OF WEDLOCK; COURTS (FAMILY COURT); HUSBAND AND WIFE; INFANTS; SCHOOLS; SOCIAL SERVICES, and other specific titles.

VISITATION RIGHTS OF GRANDPARENTS.

1. Modification of Visitation Order Based On Change of Circumstances.—In a proceeding to modify a Family Court order that granted visitation to the subject child's grandparents, the Appellate Division properly found that terminating visitation was in the child's best interest. A grandparent visitation order (Domestic Relations Law § 72) may be modified only upon a showing that there has been a subsequent change of circumstances and modification is required (Family Ct Act § 467 [b] [ii]). The standard to be applied is the best interests of the child when all of the applicable factors are considered. Here, after the commencement of visitation, the already-strained relationship between the parents and grandparents further deteriorated. Termination of visitation was in the child's best interest because it would shield her from the animosity and dysfunction between the parents and grandparents and reduce the "paralyzing" stress experienced by the child's mother attendant to the visitation. *Matter of Wilson v McGlinchey*, 2 NY3d 375.

PAROLE.**REVOCATION.**

1. Expunging Misinformation in Parole File.—The Division of Parole reasonably denied petitioner's belated request to expunge misinformation in his parole file which had been corrected in a prior Parole Board appearance and upon which the Division did not rely in denying petitioner parole. *Matter of Moore v Travis*, 2 NY3d 748.

PARTIES.**NECESSARY PARTIES.**

1. In a proceeding commenced against the Town and property owners challenging a zoning variance issued by the Zoning Board of Appeals (ZBA), petitioner's claims were directed at the ZBA determination granting the variance. Thus, they could not invoke the "relation back" doctrine (see CPLR 203 [b]) to avoid dismissal for failure to join the ZBA, a necessary party (see CPLR 1001, 1003). Use of the relation back doctrine requires "unity of interest" between the party in the proceeding and the nonparty. Petitioners' claim that the Town and the ZBA were united in interest must fail because a town and a zoning board of appeals are independent of each other where, as here, the ZBA was acting in its administrative capacity independent from the Town Board. *Matter of Emmett v Town of Edmeston*, 2 NY3d 817.

PROPER PARTIES.

2. The Town Board, not the Planning Commission, was the proper party in a proceeding to review a determination denying petitioner's application for a special use permit. Petitioner was required to apply to the Town Board to obtain this permit (Riverhead Town Code § 108-3E). Pursuant to General Municipal Law § 239-m (2), the Board referred the matter to the Planning Commission, which recommended a denial. The Town Board failed to obtain the necessary supermajority vote to override the recommendation (General Municipal Law § 239-m [5]), and denied the permit. As a result, the Town was compelled to disapprove the project, and its action, not that of the Planning Commission, was the final agency action reviewable in a CPLR article 78 proceeding (General Municipal Law § 239-m [1] [b]). *Matter of Headriver, LLC v Town Bd. of Town of Riverhead*, 2 NY3d 766.

STANDING.

3. Organizational Standing — Challenge to Clinical Guidelines for Office-Based Surgery.—Plaintiff, a not-for-profit corporation representing more than 750 certified registered nurse anesthetists (CRNAs), lacked standing to challenge the Clini-

PARTIES—Cont'd

cal Guidelines for Office-based Surgery issued by the Department of Health. Although plaintiff alleged that the guidelines would effectively prohibit CRNAs from performing anesthesia services in an office-based setting, plaintiff failed to show injury in fact. Its argument that CRNAs would likely be injured was founded on speculation that the guidelines would be rigorously enforced as regulations and that, as such, they would effectively harm CRNAs. While the recommended procedures might affect the employment of CRNAs in physicians' offices, it is not certain that any CRNA would in fact be injured. *New York State Assn. of Nurse Anesthetists v Novello*, 2 NY3d 207.

PATERNITY PROCEEDINGS.

See CHILDREN BORN OUT OF WEDLOCK.

PHYSICAL EXAMINATIONS.

See DISCLOSURE.

PHYSICIANS AND SURGEONS.**DISCIPLINARY PROCEEDINGS.**

1. Dissemination of Unsustained Charges Together with Sustained Charge.—Respondent Department of Health abused its discretion by releasing to the public all of the charges and their disposition in a physician disciplinary proceeding against petitioner, who was exonerated of all the charges except one minor one not closely related to the others. In cases where disciplinary proceedings lead to a mixed result, respondent has discretion in deciding whether its records should be redacted to keep confidential material relating to the charges that were not sustained. Here, the dismissed charges, which related to a romantic encounter and involved alleged abuse of a patient's trust, and the charge that was sustained, which related to a telephoned prescription and involved a bit of carelessness in record-keeping, were very different in kind and gravity, and did not arise out of simultaneous or closely-connected events. There was no justification for permitting a "technical violation" to result in sensational, but discredited, charges of serious wrongdoing becoming available to the public. *Anonymous v Bureau of Professional Med. Conduct/State Bd. for Professional Med. Conduct*, 2 NY3d 663.

2. Dissemination of Unsustained Charges.—The requirement that a physician disciplinary proceeding remain confidential until finally determined, as provided for in Public Health Law § 230 (9), continues to exist after a determination in the physician's favor. The confidentiality provided for in the statute is not limited to pending proceedings. Other statutory provisions require that proceedings in which physicians were subjected to administrative warnings, consultations, or monitoring orders remain confidential. It would be inconsistent to grant the public access to records of terminated proceedings that led to a physician's complete exoneration. *Anonymous v Bureau of Professional Med. Conduct/State Bd. for Professional Med. Conduct*, 2 NY3d 663.

MALPRACTICE.

3. Emotional Distress Resulting from Miscarriage or Stillbirth of Child.—Medical malpractice resulting in miscarriage or stillbirth, even in the absence of an independent injury to the expectant mother, is a violation of a duty of care to the expectant mother entitling her to damages for emotional distress. In treating a pregnancy, medical professionals owe a duty of care to both the developing fetus and the expectant mother. *Broadnax v Gonzalez*, 2 NY3d 148.

4. Emotional Distress Resulting from Miscarriage or Stillbirth of Child.—*Tebbutt v Virostek* (65 NY2d 931 [1985]), which held that a mother could not recover for emotional injuries when medical malpractice caused a stillbirth or miscarriage, absent a showing that she suffered a physical injury that was both distinct from that suffered by the fetus and not a normal incident of childbirth, is no longer good law and should not be followed. *Broadnax v Gonzalez*, 2 NY3d 148.

PODIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

POLITICAL PARTIES.

See ELECTIONS.

PRINCIPAL AND AGENT.

See, also, BROKERS; INSURANCE, and other specific titles.

PROHIBITION.

See PROCEEDING AGAINST BODY OR OFFICER.

PSYCHIATRISTS.

See LICENSES; PHYSICIANS AND SURGEONS.

PUBLIC OFFICERS.

See, also, ATTORNEY GENERAL; CIVIL RIGHTS; CIVIL SERVICE; DISTRICT AND PROSECUTING ATTORNEYS; ELECTIONS; GOVERNOR; JUDGES; MUNICIPAL CORPORATIONS; PROCEEDING AGAINST BODY OR OFFICER; SCHOOLS; SHERIFFS AND CONSTABLES; STATE, and other specific titles.

RAILROADS.

See, also, CARRIERS.

REAL ESTATE BROKERS.

See BROKERS.

REAL PROPERTY.

See ADVERSE POSSESSION; BOUNDARIES; BROKERS; COVENANTS; DEEDS; EASEMENTS; EMINENT DOMAIN; ENVIRONMENTAL CONSERVATION; LANDLORD AND TENANT; LIENS; MORTGAGES; MUNICIPAL CORPORATIONS (ZONING); PARTITION; RECORDS; STATE; TAXATION; VENDOR AND PURCHASER, and other specific titles.

RECORDS.

FREEDOM OF INFORMATION LAW.

1. Use of Force Reports.—In a proceeding challenging respondents' denial of petitioner's Freedom of Information Law request seeking "[i]ncident reports prepared by police officers pertaining to use of force," the Appellate Division's holding that petitioner's request was properly denied could not stand in light of respondent City's admission, after the Appellate Division rendered its decision, that it did not have or utilize a "use of force" form. As respondent did have incident and arrest reports that might include references to the use of force, and was willing to disclose them subject to appropriate redaction or review, the matter was remitted to Supreme Court for its direction as to documents to be produced. *Matter of New York Civ. Liberties Union v City of Schenectady*, 2 NY3d 657.

RESCISSION.

See CONTRACTS; FRAUD; INSURANCE; SALES; VENDOR AND PURCHASER, and other specific titles.

RESIDENCE.

See DOMICILE.

RES JUDICATA.

See JUDGMENTS.

RETIREMENT AND PENSION BENEFITS.

See CIVIL SERVICE; EMPLOYMENT RELATIONSHIPS; LABOR UNIONS; SCHOOLS, and other specific titles.

RIPARIAN RIGHTS.

See ENVIRONMENTAL CONSERVATION; NAVIGABLE WATERS; WATERS AND WATERCOURSES, and other specific titles.

SALES.

See, also, CONTRACTS; DAMAGES; FRAUDS, STATUTE OF; SPECIFIC PERFORMANCE; VENDOR AND PURCHASER, and other specific titles.

SCHOOLS.

See, also, CIVIL SERVICE; COLLEGES AND UNIVERSITIES, and other specific titles.

STUDENTS.

1. Injury to Student.—In a wrongful death action arising from an assault upon decedent by fellow students during dismissal from school, the plaintiff's submission raised a question of fact as to whether defendant received notice of a first attack sufficient to withstand summary judgment. Defendant could not have anticipated the first attack. However, plaintiff submitted an affidavit of an eyewitness alleging that she observed the victim being assaulted on school premises, and that several teachers and a safety officer were present but did nothing to intervene, even after the witness yelled at the safety officer to do something to protect the victim and the victim screamed for help. A jury may find that the safety officer or the teachers heard the call for help by the witness but stood by and did nothing to stop the first assault on decedent and that their intervention might have averted the second assault, which occurred off the school grounds a short time later. *Anglero v New York City Bd. of Educ.*, 2 NY3d 784.

SEPARATION.

See HUSBAND AND WIFE.

SLANDER.

See LIBEL AND SLANDER.

SPORTING EVENTS.

See THEATRES AND SHOWS.

STATUTE OF FRAUDS.

See CONTRACTS; FRAUDS, STATUTE OF.

STATUTE OF LIMITATIONS.

See LIMITATION OF ACTIONS.

SUBPOENA.

See WITNESSES.

SUMMONS.

See PROCESS.

SURETYSHIP AND GUARANTEE.**DEFENSES OR COUNTERCLAIMS.**

1. Expiration Date in Continuing Guaranty.—The continuing guaranty issued by defendant corporation to guarantee payment by its indirect subsidiary under contracts the subsidiary had entered or would enter into with plaintiff corporation required defendant to pay obligations that were contractually binding, but not yet due and payable, at the time the guaranty expired. If a continuing guaranty contains an expiration date and does not express a contrary intention, the guarantor is liable for obligations that are triggered prior to the expiration date. Here, the consequences of expiration were not explicitly stated, and the parties' intentions were not clear on the face of the guaranty. The parties' course of dealing, however, showed

SURETYSHIP AND GUARANTEE—Cont'd

that expiration was understood to have the same effect as revocation, which was to render the guarantor liable for any obligations that became binding before, but due and payable after, the revocation date. The purpose of a continuing guaranty is to enable parties who enter into contracts to be secure in the knowledge that whatever debts become due them under the contracts will be protected by the guaranty. Accordingly, the guarantor should be held liable for such obligations, unless the guaranty expressly shields it from liability. *Louis Dreyfus Energy Corp. v MG Ref. & Mktg., Inc.*, 2 NY3d 495.

SYNAGOGUES.

See RELIGIOUS CORPORATIONS AND ASSOCIATIONS.

TAXATION.**EXEMPTIONS.**

1. The courts below and the board of assessors erred as a matter of law in concluding that petitioner church was not entitled to a tax exemption pursuant to RPTL 420-a because the church's proposed use of the property was unauthorized due to its lack of a special use permit. The board did not examine whether the development of the property was "in good faith contemplated" by the church. Thus, the matter is remitted for that purpose. *Matter of Korean Joong Bu Presbyt. Church of N.Y. v Incorporated Vil. of Old Westbury*, 2 NY3d 787.

SALES AND USE TAXES.

2. Refund of Taxes on Uncollectible Debts — Assignee of Retail Vendor Not Entitled to Refund.—The Division of Taxation's denial of the application made by petitioner financial services company for a refund of sales taxes paid by retail vendors on debts that were assigned to petitioner and proved to be uncollectible was not arbitrary or capricious. Although the vendors themselves would have been entitled to apply for a refund, petitioner, as a third-party assignee of the vendors, was precluded from applying by 20 NYCRR 534.7 (b) (3). That regulation is consistent with the enabling legislation, Tax Law § 1132 (e), which provides that the Division of Taxation "may," by regulation, provide refunds for sales taxes paid on uncollectible debts. The Commissioner articulated a rational explanation for distinguishing between who is and who is not permitted to seek sales tax refunds. *Matter of General Elec. Capital Corp. v New York State Div. of Tax Appeals, Tax Appeals Trib.*, 2 NY3d 249.

3. Refund of Taxes on Uncollectible Debts — Assignee of Retail Vendor Not Entitled to Refund.—20 NYCRR 534.7 (b) (3), which restricts the assignment of sales tax refund claims, precluding a refund for a transaction which is financed by a third party or for a debt which has been assigned to a third party, does not violate the broad assignment provisions in General Obligations Law § 13-101. Although claims lawfully transferred are generally enforceable, General Obligations Law § 13-105 provides an exception to that rule where, as here, the rights of a party to a transferred claim are regulated by special provision of law. *Matter of General Elec. Capital Corp. v New York State Div. of Tax Appeals, Tax Appeals Trib.*, 2 NY3d 249.

TOWNS.

See MUNICIPAL CORPORATIONS.

TRIAL.

INSTRUCTIONS. See NEGLIGENCE, 1.

UNEMPLOYMENT INSURANCE.**EMPLOYEE OR INDEPENDENT CONTRACTOR**

1. Substantial evidence does not exist to support the Unemployment Insurance Appeal Board's determination that claimant was appellant corporation's employee for purposes of receiving unemployment insurance benefits. An employer-employee

UNEMPLOYMENT INSURANCE—Cont'd

relationship exists when the evidence demonstrates that the employer exercises control over the results produced by a claimant or the means used to achieve the results. Such evidence was lacking where claimant visited travel agencies to promote the employer's products by distributing sales materials and making presentations, chose which agencies to visit and when to visit them, was compensated on a per-visit basis, was not required to attend meetings, had minimal supervision, was free to sell products that did not compete with the corporation and her contract with the employer identified her as an independent contractor. Incidental control over the results produced—without further evidence of control over the means employed to achieve the results—will not constitute substantial evidence of an employer-employee relationship. *Matter of Hertz Corp. (Commissioner of Labor)*, 2 NY3d 733.

UNFAIR COMPETITION.

See MONOPOLIES; TRADEMARKS, TRADE NAMES AND UNFAIR COMPETITION, and other specific titles.

VENDOR AND PURCHASER.

See, also, BROKERS; CONTRACTS; FRAUDS, STATUTE OF; SALES; SPECIFIC PERFORMANCE, and other specific titles.

VETERANS.

See CIVIL SERVICE; INCAPACITATED AND MENTALLY DISABLED PERSONS; INSURANCE; TAXATION.

VILLAGES.

See MUNICIPAL CORPORATIONS.

WELFARE.

See SOCIAL SERVICES.

WITNESSES.

See, also, CONTEMPT; CRIMES; DISCLOSURE; EVIDENCE; TRIAL; WILLS, and other specific titles.

WORKERS' COMPENSATION.**EXCLUSIVENESS OF REMEDY.**

1. Intentional Tort by Coemployee.—An action for an intentional tort is not barred by the plaintiff's receipt of workers' compensation benefits where both parties were employees of the same firm, but the defendant's alleged misconduct arose from purely personal motives and was not in furtherance of the employer's business. The same event may be "accidental" from the employer's point of view, thus justifying a workers' compensation award, and intentional from the point of view of the perpetrator. A coemployee, to have the protection of the exclusivity provision of Workers' Compensation Law § 29 (6), must himself have been acting within the scope of his employment and not have been engaged in a willful or intentional tort. *Hanford v Plaza Packaging Corp.*, 2 NY3d 348.

PENALTY FOR CARRIER'S LATE PAYMENT OF AWARD.

2. The Appellate Division properly upheld the Workers' Compensation Board's imposition of a penalty under Workers' Compensation Law § 25 (3) (f) against the carrier for failure to pay the award within 10 days, the failure resulting from the carrier's mailing a check to the wrong address. The penalty award is consistent with the purpose of the statute in favor of prompt payment of workers' compensation benefits to injured employees. *Matter of Malone v Bob Bernhardt Paving*, 2 NY3d 756.

TREATMENT AND CARE OF INJURED EMPLOYEES.

3. Requirement That Independent Examining Physicians be Board Certified — Statutory Definition.—The term "board certified," as used in Workers' Compensation Law § 137 (3) to require that physicians or surgeons performing independent

WORKERS' COMPENSATION—Cont'd

medical examinations be board certified, means certification by a medical specialty board, not certification by the Workers' Compensation Board (WCB). The phrase "board certified" is a term of art, typically understood to refer to approval by a designated group of professionals. While the word "board" on its own within the Workers' Compensation Law may refer to the WCB, there are several places in the law where it is not used to refer to the WCB. Moreover, the Legislature has also used the term "board certified" in other statutes to refer to a medical specialty board. *Matter of Belmonte v Snashall*, 2 NY3d 560.

4. Requirement That Independent Examining Physicians be Board Certified — Regulatory Definition.—The Workers' Compensation Board regulations defining a board certified independent medical examiner as a physician or surgeon certified by a specialty board recognized by either the American Board of Medical Specialties (ABMS) or the American Osteopathic Association (AOA) (*see* 12 NYCRR 300.2 [b] [2] [ii] [a]; [3]) are rational. Workers' Compensation Law § 137 (3) requires that physicians or surgeons performing independent medical examinations (IMEs) be board certified, and ABMS and AOA are organizations of approved medical and osteopathic specialty boards. Requiring such board certification provides a greater level of quality assurance, and promotes the purpose of the Injured Workers' Protection Act, which was enacted to address problems with the IME process. *Matter of Belmonte v Snashall*, 2 NY3d 560.

ZONING.

See MUNICIPAL CORPORATIONS.

TABLE OF STATUTES AND RULES CONSTRUED

CIVIL PRACTICE LAW AND RULES.

- 203 (b) (Method of computing periods of limitation generally; defendants united in interest). *Matter of Emmett v Town of Edmeston*, 2 NY3d 817.
- 321 (a) (Appearance in person or by attorney). *People v Vorpahl*, 2 NY3d 781.
- 1001 (Necessary joinder of parties). *Matter of Emmett v Town of Edmeston*, 2 NY3d 817.
- 1003 (Nonjoinder and misjoinder of parties). *Matter of Emmett v Town of Edmeston*, 2 NY3d 817.
- 2103 (b) (2) (Service of papers; upon attorney; five days added for service by mail). *Matter of ATM One v Landaverde*, 2 NY3d 472.
- 3212 (a) (Motion for summary judgment; time). *Brill v City of New York*, 2 NY3d 648.
- 5511 (Permissible appellant and respondent). *Matter of Dawn N.*, 2 NY3d 786; *Lustenring v 98-100 Realty*, 2 NY3d 791.
- 5513 (a) (Time to take appeal, cross-appeal or move for permission to appeal). *Matter of Davis v Goord*, 2 NY3d 779.
- 5513 (b) (Time to move for permission to appeal). *Matter of Winthrop v Goord*, 2 NY3d 736; *Matter of Jackson v State of New York*, 2 NY3d 779; *McCabe v Competition Imports, Inc.*, 2 NY3d 813; *Jamaica Pub. Serv. Co., Ltd. v La Interamericana Ca. de Seguros Generales S.A.*, 2 NY3d 819.
- 5601 (Appeals to Court of Appeals as of right). *People v Reed*, 2 NY3d 754; *Matter of Morgenthau v Marino*, 2 NY3d 780.
- 5601 (a) (Appeals to Court of Appeals as of right; dissent). *Kawoya v Pet Pantry Warehouse*, 2 NY3d 752.
- 5602 (Appeals to Court of Appeals by permission). *Heath v Wojtowicz*, 2 NY3d 791; *People ex rel. Brown v Poole*, 2 NY3d 823.
- 5602 (a) (2) (Appeals to Court of Appeals by permission). *Matter of Chebere v Johnson*, 2 NY3d 778.

CIVIL SERVICE LAW.

- § 205 (5) (d) (Public Employees' Fair Employment Act; Public Employment Relations Board; limitations on authority). *Matter of Town of Southampton v New York State Pub. Empl. Relations Bd.*, 2 NY3d 513.
- § 209-a (1) (d) (Public Employees' Fair Employment Act; improper employer practices; refusal to negotiate in good faith). *Matter of Town of Southampton v New York State Pub. Empl. Relations Bd.*, 2 NY3d 513.

CRIMINAL PROCEDURE LAW.

- 190.25 (1) (Grand jury; proceedings and operation in general; affirmative official action). *People v Aarons*, 2 NY3d 547.
- 200.20 (2) (b) (Indictment; what offenses may be charged; joinder of offenses and consolidation of indictments). *People v Cahill*, 2 NY3d 14.
- 220.10 (2) (Plea; kind of pleas). *People v Cahill*, 2 NY3d 14.
- 220.10 (4) (Plea; kind of pleas). *People v Cahill*, 2 NY3d 14.
- 230.20 (Removal of action; removal from County Court to Supreme Court and change of venue; upon motion of party). *People v Cahill*, 2 NY3d 14.
- 260.20 (Jury trial; defendant's presence at trial). *People v Cahill*, 2 NY3d 14.
- 270.15 (3) (Trial jury; examination of prospective jurors). *People v Williams*, 2 NY3d 725.

CRIMINAL PROCEDURE LAW—Continued

- 270.20 (1) (f) (Trial jury; challenge for cause of individual juror if death possible penalty). *People v Cahill*, 2 NY3d 14.
- 320.10 (Nonjury trial; when authorized). *People v Cahill*, 2 NY3d 14.
- 380.50 (2) (Statements at time of sentence). *People v Hemmings*, 2 NY3d 1.
- 450.10 (Appeal by defendant to intermediate appellate court; in what cases authorized as of right). *People v Nieves*, 2 NY3d 310.
- 450.90 (Appeal to Court of Appeals from order of intermediate appellate court; in what cases authorized). *People v Reed*, 2 NY3d 754.
- 530.13 (4) (Orders with respect to defendants in criminal actions and proceedings; protection of victims of crimes, other than family offenses; order issued upon conviction). *People v Nieves*, 2 NY3d 310; *People v Konieczny*, 2 NY3d 569.

DOMESTIC RELATIONS LAW.

- § 72 (Special proceeding or habeas corpus to obtain visitation rights in respect to certain infant grandchildren). *Matter of Wilson v McGlinchey*, 2 NY3d 375.
- § 237 (a) (Counsel fees and expenses). *Frankel v Frankel*, 2 NY3d 601.

EMERGENCY TENANT PROTECTION ACT OF 1974 (L 1974, ch 576, § 4, as amended).

- § 1 *et seq.* (Declaration of housing emergency; regulation of residential rents). *Wolinsky v Kee Yip Realty Corp.*, 2 NY3d 487.

EMERGENCY TENANT PROTECTION REGULATIONS.

- 9 NYCRR 2504.1 (Evictions; restrictions on removal of tenant). *Matter of ATM One v Landaverde*, 2 NY3d 472.

FAMILY COURT ACT.

- § 353.3 (Juvenile delinquency; dispositional hearing; placement). *Matter of Robert J.*, 2 NY3d 339.
- § 355.3 (Juvenile delinquency; dispositional hearing; extension of placement). *Matter of Robert J.*, 2 NY3d 339.

GENERAL MUNICIPAL LAW.

- § 205-e (Right of action to certain injured or representatives of certain deceased police officers). *Williams v City of New York*, 2 NY3d 352.
- § 239-m (1) (b) (Referral of certain proposed city, town and village planning and zoning actions to county planning agency or regional planning council; “referring body” defined). *Matter of Headriver, LLC v Town Bd. of Town of Riverhead*, 2 NY3d 766.
- § 239-m (2) (Referral of certain proposed city, town and village planning and zoning actions to county planning agency or regional planning council; referral of proposed planning and zoning actions). *Matter of Headriver, LLC v Town Bd. of Town of Riverhead*, 2 NY3d 766.
- § 239-m (5) (Referral of certain proposed city, town and village planning and zoning actions to county planning agency or regional planning council; report thereon; final action; super-majority vote). *Matter of Headriver, LLC v Town Bd. of Town of Riverhead*, 2 NY3d 766.

GENERAL OBLIGATIONS LAW.

- § 13-101 (Transfer of claims). *Matter of General Elec. Capital Corp. v New York State Div. of Tax Appeals, Tax Appeals Trib.*, 2 NY3d 249.
- § 13-105 (Effect of transfer of claim or demand). *Matter of General Elec. Capital Corp. v New York State Div. of Tax Appeals, Tax Appeals Trib.*, 2 NY3d 249.

INSURANCE LAW.

- § 4308 (b) (Nonprofit medical and dental indemnity; supervision of superintendent; approval of premiums). *Matter of Excellus Health Plan v Serio*, 2 NY3d 166.
- § 4308 (g) (1) (Nonprofit medical and dental indemnity; supervision of superintendent; increase or decrease of premiums). *Matter of Excellus Health Plan v Serio*, 2 NY3d 166.

JUDICIARY LAW.

- § 44 (8) (a), (c) (Suspension of judges). *Matter of Bauer*, 2 NY3d 782.

LABOR LAW.

§ 27-a (Public Employee Safety and Health Act). *Williams v City of New York*, 2 NY3d 352.

NEW YORK CITY ADMINISTRATIVE CODE.

§ 7-201 (c) (2) (Actions against city; prior written notice of defect). *Bruni v City of New York*, 2 NY3d 319.

§ 8-502 (a) (Civil rights; civil action by persons aggrieved by unlawful discriminatory practices). *Krohn v New York City Police Dept.*, 2 NY3d 329.

§ 27-127 (Building Code; maintenance requirements). *Williams v City of New York*, 2 NY3d 352.

§ 27-128 (Building Code; owner responsibility). *Williams v City of New York*, 2 NY3d 352.

NEW YORK CONSTITUTION.

Art I, § 2 (Trial by jury; how waived). *People v Cahill*, 2 NY3d 14.

Art I, § 12 (Security against unreasonable searches, seizures and interceptions). *People v Jones*, 2 NY3d 235.

Art VI, § 3 (Jurisdiction of Court of Appeals). *People ex rel. Brown v Poole*, 2 NY3d 823.

Art VI, § 3 (b) (Jurisdiction of Court of Appeals). *People v Reed*, 2 NY3d 754; *Heath v Wojtowicz*, 2 NY3d 791.

Art VI, § 3 (b) (7) (Jurisdiction of Court of Appeals). *Kawoya v Pet Pantry Warehouse*, 2 NY3d 752.

Art VI, § 22 (e), (g) (Suspension of judges). *Matter of Bauer*, 2 NY3d 782.

Art VII, § 11 (State debts generally; manner of contracting; referendum). *Local Govt. Assistance Corp. v Sales Tax Asset Receivable Corp.*, 2 NY3d 524.

Art VIII, § 2 (Restrictions on indebtedness of local subdivisions; contracting and payment of local indebtedness; exceptions). *Local Govt. Assistance Corp. v Sales Tax Asset Receivable Corp.*, 2 NY3d 524.

NOT-FOR-PROFIT CORPORATION LAW.

§ 511 (d) (Court approval of disposition of all or substantially all of corporation's assets). *64th Assoc., L.L.C. v Manhattan Eye, Ear & Throat Hosp.*, 2 NY3d 585.

PENAL LAW.

§ 125.27 (1) (a) (v) (Murder, first degree; witness elimination). *People v Cahill*, 2 NY3d 14.

§ 125.27 (1) (a) (vii) (Murder, first degree; in course of and furtherance of certain crimes). *People v Cahill*, 2 NY3d 14; *People v Mateo*, 2 NY3d 383.

§ 170.10 (Forgery, second degree). *People v Cunningham*, 2 NY3d 593.

PUBLIC AUTHORITIES LAW.

§ 3238-a (Local Government Assistance Corporation; payment to City of New York). *Local Govt. Assistance Corp. v Sales Tax Asset Receivable Corp.*, 2 NY3d 524.

§ 3240 (5) (Local Government Assistance Corporation; payments to corporation; agreements providing for specific manner, timing, and amount of payments). *Local Govt. Assistance Corp. v Sales Tax Asset Receivable Corp.*, 2 NY3d 524.

§ 3241 (1) (Local Government Assistance Corporation; agreement with state; pledge to holders of notes or bonds). *Local Govt. Assistance Corp. v Sales Tax Asset Receivable Corp.*, 2 NY3d 524.

PUBLIC HEALTH LAW.

§ 230 (9) (State Board for Professional Medical Conduct; proceedings; confidentiality). *Anonymous v Bureau of Professional Med. Conduct/State Bd. for Professional Med. Conduct*, 2 NY3d 663.

§§ 1370-1376 (Lead Poisoning Prevention Act). *Pelaez v Seide*, 2 NY3d 186.

REAL PROPERTY TAX LAW.

§ 420-a (Exemptions; nonprofit organizations; mandatory class). *Matter of Korean Joong Bu Presbyt. Church of N.Y. v Incorporated Vil. of Old Westbury*, 2 NY3d 787.

REGULATIONS OF DEPARTMENT OF LABOR.

12 NYCRR 300.2 (b) (2) (ii) (a) (Workers' compensation; independent medical examiners; requirements specific to professions). *Matter of Belmonte v Snashall*, 2 NY3d 560.

12 NYCRR 300.2 (b) (3) (Workers' compensation; independent medical examiners; "board certified" defined). *Matter of Belmonte v Snashall*, 2 NY3d 560.

REGULATIONS OF DEPARTMENT OF TAXATION AND FINANCE.

20 NYCRR 534.7 (b) (3) (Refunds and credits attributable to bad debts; allowance of refund or credit). *Matter of General Elec. Capital Corp. v New York State Div. of Tax Appeals, Tax Appeals Trib.*, 2 NY3d 249.

RETIREMENT AND SOCIAL SECURITY LAW.

§ 605 (e) (Disability retirement; medical review). *Matter of Roberts v Murphy*, 2 NY3d 641.

§ 607-b (Performance of duty disability retirement). *Matter of Roberts v Murphy*, 2 NY3d 641.

RULES OF COURT OF APPEALS.

22 NYCRR 500.17 (Discretionary proceedings to review certified questions from federal courts and other courts of last resort). *U.S. Underwriters Ins. Co. v City Club Hotel*, 2 NY3d 787.

SOCIAL SERVICES LAW.

§ 143-b (5) (Public assistance; avoidance of abuses in connection with rent checks; defenses). *Matter of Notre Dame Leasing v Rosario*, 2 NY3d 459.

TAX LAW.

§ 1132 (e) (Sales and compensating use taxes; collection of tax from customer; availability of tax refund or credit). *Matter of General Elec. Capital Corp. v New York State Div. of Tax Appeals, Tax Appeals Trib.*, 2 NY3d 249.

TOWN LAW.

§ 267-b (3) (Area variances; factors to be considered). *Matter of Pecoraro v Board of Appeals of Town of Hempstead*, 2 NY3d 608.

§ 274-b (3) (Approval of special use permits; application for area variance). *Maheshwari v City of New York*, 2 NY3d 288.

UNITED STATES CODE.

42 USC § 1983 (Civil action for deprivation of rights). *Bower Assoc. v Town of Pleasant Val.*, 2 NY3d 617.

UNITED STATES CONSTITUTION.

Art I, § 10 (Contract Clause). *Local Govt. Assistance Corp. v Sales Tax Asset Receivable Corp.*, 2 NY3d 524.

WORKERS' COMPENSATION LAW.

§ 25 (3) (Compensation, how payable; penalty for late payment of award). *Matter of Malone v Bob Bernhardt Paving*, 2 NY3d 756.

§ 137 (3) (Independent medical examinations). *Matter of Belmonte v Snashall*, 2 NY3d 560.

**NEW YORK REPORTS
CUMULATIVE ERRATA TABLE**

- | | |
|--|--|
| 1. 33 NY2d 846 (Petrie v Chase Manhattan Bank) | Change defendant's name in title from James A. Pertie, Jr. to James A. Petrie, Jr. |
| 2. 35 NY2d 179 (Matter of Lutfy v Gangemi) | Change plaintiff's name in title from Edward R. Lufty to Edward R. Lutfy. |
| 3. 53 NY2d 499 (Weinberg v D-M Rest. Corp.) | At 53 NY2d 500, line 35, change running line citation from 73 AD2d 1067 to 73 AD2d 1066. |
| 4. 54 NY2d 137 (People v Baldi) | At 53 NY2d 147, lines 3 and 4, change meaninful to meaningful. |
| 5. 66 NY2d 667 (Matter of Lewis Tree Serv. v Fire Dept. of City of N.Y.) | At 66 NY2d 669, line 15, change citation from 66 NY2d 718 to 66 NY2d 713. |
| 6. 69 NY2d 601 (Matter of Rose Assoc. v State Div. of Hous. & Community Renewal, Off. of Rent Admin.) | Add the word denied in the result column of the motion for leave to appeal table. |
| 7. 75 NY2d 927 (Matter of David T.) | At 75 NY2d 929, line 20, change effect to defect. |
| 8. 77 NY2d 806 (Dowd v Ahr) | Change denied to granted in the result column of the motion for leave to appeal table. |
| 9. 80 NY2d 1030 (People v Sallito) | Change the title entry from Salito to Sallito. |
| 10. 88 NY2d 41 (Town of Orangetown v Magee) | At 88 NY2d 41, change running line citation from as amended 218 AD2d 343 to as amended 218 AD2d 733. |

11. **88 NY2d 400** (People v Huston) At 88 NY2d 402, line 1, change citation from CPL 210.20 [c] to CPL 210.20 [1] [c].
12. **1 NY3d 174** (People v Taylor) At 1 NY3d 177, line 10 of first full paragraph, change (People v Ryan, 93 NY2d at 823-824) to (People v Ryan, 90 NY2d at 823-824), and on line 13 of same paragraph, change (People v Tonge, 90 NY2d at 840) to (People v Tonge, 93 NY2d at 840).
13. **1 NY3d 541** (People v Sanchez) In Criminal Leave Table, middle column, change App Div, 1st Dept, 5/22/03 (NY) to 2d Dept: 306 AD2d 296 (Kings).